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House of Representatives

The House was not in session today. Its next meeting will be held on Thursday, June 18, 2020, at 10 a.m.

Senate

TUESDAY, JUNE 16, 2020

The Senate met at 10 a.m. and was called to order by the President pro tempore (Mr. GRASSLEY).

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Eternal God, have mercy upon this land we love. We place our total trust in You to do for us what we can't do for ourselves. You have delivered us in the past. You have not failed us. Our faith is in You. Lord, inspire our Senators to know that You are still on your throne, working for the good of those who love You. Listen to our prayers, and give us wisdom, courage, and integrity that will enable us to glorify You.

We pray in Your wonderful Name. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

The PRESIDING OFFICER (Mrs. HYDE-SMITH). The Senator from Iowa.

Mr. GRASSLEY. Madam President, I ask unanimous consent to speak for 1 minute in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

CRIMINAL JUSTICE SYSTEM

Mr. GRASSLEY. Madam President, too often, Americans are cynical about our political system when all they see is legislative gridlock. Yet Iowans were able to set themselves apart by working together on law enforcement reforms in the wake of George Floyd's murder.

Every step of the way, the Iowa process was fueled by input from the grassroots, including those who demonstrated peacefully. The Republican-led statehouse and senate partnered with the Democrats to unanimously pass reforms in our State—some of them historic reforms. Governor Reynolds signed House File 2647 to bring additional accountability to Iowa's law enforcement officers.

These are some of the things that they did: created stronger restrictions on the use of choke holds by law enforcement officers; improved the law enforcement decertification process to ensure that those who have been fired or who resign after serious misconduct do not work in our State; strengthened the authority of the Iowa attorney general to prosecute officers whose actions result in the death of another; established annual anti-bias and deescalation training requirements for officers.

We are working on some of these very same policies here on the Federal level. Washington should follow Iowa's example and pass legislation to help correct wrongs and inspire positive change in our communities across the country. Senator LINDSEY GRAHAM will be leading hearings today on this issue before the Committee on the Judiciary. Hopefully, we can act.

I yield the floor.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER. The majority leader is recognized.

NOMINATION OF JUSTIN REED WALKER

Mr. MCCONNELL. Madam President, this week, like most weeks for a month and a half now, has brought a study in contrasts to the U.S. Capitol. Over in the Democratic-led House of Representatives, the lights are off. The doors are locked. There is nobody home.

With our country facing a once-in-a-century pandemic, a historic economic disruption, a major discussion of racial justice, and all of the other important business we were already set to tackle this year before all of this, the Speaker of the House has mostly kept her Chamber on the longest running spring break in human history—lots of talk about supposed priorities but few votes; lots of partisan attacks leveled at the Republicans from a distance but little action. Over here in the Senate, the story has been very different. We are holding hearings. We are legislating. We are confirming nominees. With precautions, we are manning our posts for the country.

Tomorrow, the Senate will begin considering the President's nomination of Judge Justin Walker to fill a vacancy on the DC Circuit—the second most important Federal bench in the country.

As my fellow Kentuckians and I can attest, Judge Walker is exactly the kind of individual our country deserves

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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to have in such a role. He graduated from Duke summa cum laude and then from Harvard Law magna cum laude. He clerked on the DC Circuit himself for an impressive young judge named Brett Kavanaugh and then on the Supreme Court.

He has built a national reputation as a leading academic scholar of the law. It is no wonder that even the ABA rates him ''well qualified.'' He has quickly made a name for himself as a district judge.

A few weeks ago, when the mayor of Louisville tried to cancel drive-in Easter services with disparate restrictions that did not apply equally to other parking lots, Judge Walker won national attention for his eloquent defense of religious liberty. This subject becomes more important by the day. The American people deserve to have strong respect for their First Amendment rights, including their rights of religious exercise and conscience, on one of our country's highest courts. So I look forward to continuing to detail our Kentucky pride for Judge Walker as this week unfolds, and I will take great pride in voting to advance his nomination and to confirm him.

GREAT AMERICAN OUTDOORS ACT

Mr. MCCONNELL. Madam President, the Senate will first pass the Great American Outdoors Act. It will be a big step in the history of our Nation's public lands and great news for their future.

This bill is the product of a lot of hard work by many of our colleagues on both sides of the aisle. It has two clear purposes: It will restore access and function to parks and facilities that have been neglected, and it will secure a stable flow of resources to support recreation and conservation well into the future.

I have detailed in recent days just how many Americans rely on our Nation's public lands—from the guides and outfitters who cater to the booming outdoor recreation economy; to the hotel workers, restaurant owners, and gateway communities that welcome hundreds of millions of annual visitors; to the researchers who study historic sites and unique habitats; to the hunters, anglers, sportsmen, and American families who explore millions of acres of open space.

It is clear that a bright economic future for America is intertwined with this precious resource, so backlogged maintenance and delayed upkeep are a real problem. Too often, tough budgetary choices have left important facilities worn down and natural treasures inaccessible. I am proud that this legislation before us will tackle these critical missions, but you certainly don't have to take my word for it; you can look to the list of no fewer than 60 cosponsors on both sides of the aisle or to the 80 Senators who voted to advance consideration of the bill last week, or you could sample from the ringing endorsements of an impressive cross-section of American recreation and conservation advocates.

Take, for example, the letter the Democratic leader and I received from the last six former Secretaries of the Interior. Men and women who served under Presidents of both parties came together to tell us that ''the Great American Outdoors Act will help ensure a better, brighter future for nature and for all of us.''

Hundreds of advocacy organizations, from the Sierra Club to the American Sportfishing Association, also approve. They say the bill ''will ensure that our parks and other public lands continue to preserve our nation's heritage and recreation opportunities, and that local communities and economies . . . will continue to flourish.''

It is not often that we are presented with the opportunity to take overwhelmingly bipartisan action that will affect a monumental part of American life for so many years to come, and the opportunity in front of us this week comes thanks to the dedicated work of several of our colleagues.

In particular, I would like to thank Senator DAINES and Senator GARDNER once again for their extraordinary leadership. I look forward to seeing their efforts across the finish line, and I urge all Members to join me in supporting this bill and securing our natural wonders for generations of Americans yet to come.

RESERVATION OF LEADER TIME

The PRESIDING OFFICER. Under the previous order, the leadership time is reserved.

CONCLUSION OF MORNING BUSINESS

The PRESIDING OFFICER. Morning business is closed.

LEGISLATIVE SESSION

TAXPAYER FIRST ACT OF 2019—Resumed

The PRESIDING OFFICER. Under the previous order, the Senate will resume consideration of H.R. 1957, which the clerk will report.

The senior assistant legislative clerk read as follows:

A bill (H.R. 1957) to amend the Internal Revenue Code of 1986 to modernize and improve the Internal Revenue Service, and for other purposes.

Mr. MCCONNELL. Madam President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. SCHUMER. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER. The Democratic leader is recognized.

BOSTOCK V. CLAYTON COUNTY, GEORGIA

Mr. SCHUMER. Madam President, yesterday, the Supreme Court ruled that the Civil Rights Act of 1964 does, in fact, prohibit employment discrimination on the basis of sexual orientation and gender identity. It was a landmark decision that represents a step forward—a big step forward—on the long march to full equality for LGBTQ Americans. We salute that decision. That is what the Supreme Court should be doing—moving us in a direction of equality and fairness. All too often, it doesn't these days. So this was a refreshing breath of fresh air from that Court.

The march, of course, is not over. Yesterday's decision, welcomed as it is, reminds us that, even today, even in 2020, we have so much work left to do to advance the cause of justice and equality for all Americans. Only a few days ago, our laws didn't clearly establish that you couldn't be fired by your employer simply because of who you are and whom you love. Yesterday's decision is not the end of the fight. It was one step forward. If it is wrong to discriminate against people because of whom they love and because of who they are and if it is wrong to discriminate against people on the basis of sexual orientation and gender, isn't it wrong on the job? If it is wrong to discriminate against people on the basis of sexual orientation and gender on employment, isn't it wrong on housing? Isn't it wrong on so many other issues?

That is why we need the Equality Act to pass. The decision is certainly not the end of the fight. Disparities and discrimination on the basis of sexual orientation and gender identity still exist in so many aspects of our lives—education, housing, credit, public spaces, services, and in many other ways. If it is wrong to discriminate against people because of their sexual orientation and gender on jobs and employment, it is equally wrong in these other areas like housing and education. We need to pass the Equality Act, which expands the prohibition of discrimination to many other needed areas.

Today, Senate Democrats will send a letter from our caucus to Leader MCCONNELL urging him to schedule the Equality Act for a vote on the floor. The House passed it a year ago. It has been languishing in MCCONNELL's legislative graveyard. I would say to my Republican colleagues: If some of the most conservative people around, like Justice Gorsuch and Justice Roberts, can come to the conclusion that we should stop discriminating, where are you? The Senate Republicans only seem 30 years behind the times on this issue for sure.

I urge the leader to put the Equality Act on the floor now, and let's extend what the Supreme Court did in terms

of employment to so many needed other areas. Wake up, my Republican friends. The times, they are changing, and discrimination against LGBTQ Americans should be over once and for all and should be the law of the land in every aspect of our lives.

JUSTICE IN POLICING ACT

Madam President, now, on another issue where the Republican caucus seems to be behind, since the killing of George Floyd sparked nationwide protests, we have been pushing our colleagues in the Senate to respond to our national pain with collective action. This is a moment in American history where a great mass of our people are demanding change in the streets of our largest cities and smallest towns. Now is the moment to reach for real, lasting, strong, comprehensive change. We cannot merely make some changes around the margins.

Democrats drafted and proposed comprehensive police reform legislation last Monday, the Justice in Policing Act, led by Senators Booker and Harris. With 4 weeks to go in this current session, we have asked Leader MCCONNELL to commit to a vote on the Justice in Policing Act before July 4. We didn't say: ''Do our bill immediately.'' We asked our Republican colleagues to commit to a debate on our bill before July 4—within the next 4 weeks—but so far we haven't heard any indication from the Republican majority that we will take up comprehensive police reform this month.

Last night, a member of the Republican leadership said a bill was unlikely before July 4. Of course, Leader MCCONNELL has also reportedly told his caucus that the Senate was unlikely to do another COVID relief bill until after July 4. When it comes to urgent national priorities, the Republican majority is like a broken Magic 8–Ball that keeps saying: ''Ask again later.''

Peaceful protests have continued for 3 weeks, and Republican Senators want to wait another month, maybe even longer, to consider reform on the floor of the Senate? The popular anger over long-simmering issues of police brutality and racial justice has reached a tipping point. There is no reason to wait. There is no reason to delay. By delaying action, Senate Republicans are playing the same dangerous political games that they played after mass shootings last summer.

Why is it that, when it comes to confirming rightwing judges who want to roll back the clock on healthcare and on voting rights, Senate Republicans always make time, but when it comes to making real changes to police departments, Senate Republicans are already making excuses? Democrats and the American people who overwhelmingly support real meaningful change and accountability in our Nation's police departments will not rest until we achieve comprehensive and bold reform.

CORONAVIRUS

Madam President, of course, we are also still waiting for the Republican Senate majority to propose anything related to COVID–19. Only a few weeks ago, Leader MCCONNELL said that another coronavirus relief bill was likely during the June work period. Once again, in typical fashion of this Republican majority, the deadline has slipped, and now we have no time to consider another COVID bill before July 4, and this will have very real consequences for the American economy.

Leader MCCONNELL is willing to blow through his own deadlines, but some deadlines will arrive whether the Republican leader likes it or not. Whether he likes it or not, his inaction is creating some very steep cliffs for our economy and for the American worker. Funding for the very popular and bipartisan Paycheck Protection Program will run out on June 30. State and local governments need to finalize their budgets by July 4, and many of them will be forced to cut back on critical public services without public support. The moratorium on evictions that we passed in the CARES Act expires on July 24. The emergency unemployment insurance we passed in the CARES Act expires on July 31, and K–12 schools need over $150 billion and as much time as possible to safely reopen this fall.

So, Leader MCCONNELL and Republicans, there are at least five cliffs and many more we face if we don't act soon: the cliff of funding small business, the cliff of helping State and local governments, the cliff on evictions, the cliff on unemployment insurance, and the cliff on the need for schools to reopen in September.

Today, Leader MCCONNELL and I received a letter signed by over 100 economists and scholars, including two former Chairs of the Federal Reserve, three former Chairs of the Council of Economic Advisers, and two Nobel laureates, urging Congress to pass another relief package commensurate with the $16 trillion hole in our economy caused by COVID–19. At a minimum, these distinguished economists wrote: The bill should include ''continued support for the unemployed, new assistance to states and localities, investments in programs that preserve employer-employee relationships, and additional aid to stabilize aggregate demand.''

It sounds a lot like the Heroes Act, which passed the House of Representatives, but, once again, it is sitting in Leader MCCONNELL's legislative graveyard. Economists from all walks of life are telling Senate Republicans to get off the mat and do something to help the economy before it is too late. Governors from both political parties are pleading for aid. Even the Chair of the Federal Reserve, Jay Powell, appointed by President Trump, is sounding the alarm about the need for another emergency relief bill.

When will Senate Republicans finally get the message? When will they understand that unless we do these things, the economy will decline in the future, and that millions who are unemployed, millions whose businesses are in jeopardy, and millions who want to see schools open will not get what they need? We must act now. When will Republicans in the Senate finally get the message? We need to act.

I yield the floor.

The PRESIDING OFFICER. The majority whip.

Mr. THUNE. Madam President, our economy has taken a huge hit from the coronavirus, and we have a lot of work to do to recover. There are encouraging signs, and one of those has been the success of the Paycheck Protection Program.

The pandemic has presented a particular challenge for small businesses that frequently have very limited cash reserves to draw on. That is why, thanks to the efforts of Senators RUBIO, COLLINS, and others, Congress established the Paycheck Protection Program, which provides forgivable loans to small businesses to help them keep employees on their payroll during this crisis.

So far, more than 4.5 million small businesses nationwide have received relief from this program, and the majority of the loans have gone to the smallest businesses. Nearly 3 million of the 4.5 million total loans have been at or under $50,000. In my home State of South Dakota, more than 21,000 businesses have benefited, including some of the many seasonal businesses that have a limited amount of time each year to make the money that they need to survive.

I am very grateful to the thousands of bank and credit union employees around the Nation who processed these loans under challenging circumstances during the pandemic. All told, millions of small business jobs have been saved, and a lot of small businesses that might have gone under during the pandemic are hanging on thanks to this program.

In fact, the Paycheck Protection Program is undoubtedly one of the main reasons that the May jobs numbers were not as bad as expected. Instead of net job loss, the economy actually gained jobs.

Now, that is not to suggest that the May jobs report was rosy. Our unemployment rate is unacceptably high, to put it mildly, but the fact that we gained jobs is a positive sign. It is definitely a step in the right direction, and the Paycheck Protection Program helped us get there.

So far, Congress has provided $2.5 trillion to respond to the coronavirus, including the almost $700 billion allocated to the Paycheck Protection Program. That is a staggering amount of money, equal to roughly half of the entire Federal budget for 2020. These were extraordinary circumstances and extraordinary action was required.

However, Democrats are now pushing for Congress to rush another massive bill out the door. It is important to remember that every dollar Congress has provided to fight the coronavirus has been borrowed money. Now, as I said, it

is money that we needed to borrow, but it is still borrowed money that will have to be repaid.

Will we need to provide more money to confront the pandemic and its effects? Probably. But we need to make sure that we are only appropriating what is really necessary. Rushing a $3 trillion bill through Congress, as Democrats want to do, before the $2.4 trillion we have already provided has even been fully spent is not a responsible way to go about providing additional relief. What we need to focus on right now is monitoring the implementation of coronavirus funding so we can identify where we have spent sufficiently and where we may need to do more.

The Paycheck Protection Program provides a good example of the strategy that we should be using. Congress provided nearly $350 billion for the Paycheck Protection Program when it was first created. Within a short time, after the program's kickoff, however, it became clear that demand was so great that we would need to provide additional funding, and that is what we did. We provided an additional $310 billion in late April.

Then, just a couple of weeks ago, we passed another update to the program—not additional funding but a package of fixes to provide additional flexibility to small businesses.

I have proposed a further refinement to the program that I hope Congress will pass in the near future.

While the Paycheck Protection Program is open to self-employed workers—which describes many farmers—in practice, the program's guidelines have excluded a lot of agricultural producers.

Low commodity prices and a challenging planting season meant that many farmers and ranchers had a negative net income in 2019. And right now, the program's guidelines exclude farmers or ranchers without employees with a negative net income for last year.

My legislation would allow more farmers to access the Paycheck Protection Program by allowing them to use their 2019 gross income instead of their 2019 net income when calculating their loan award. This is what we should be doing when it comes to additional coronavirus funding.

The best way to make sure that we are spending taxpayer dollars wisely and not burdening our economy with more debt is to carefully monitor the implementation of the funds we have already provided and use that information to guide further action. That is what we have done with the Paycheck Protection Program, and that is what we should do with the other coronavirus funding we passed and the other coronavirus programs we implemented.

It is also important to remember that sometimes what is required is not additional money but other types of solutions, like the fixes we passed that add more flexibility to the Paycheck Protection Program.

As we move forward, I will continue to work with my colleagues to respond to the coronavirus, and I will continue to do everything I can to ensure that any additional money we spend is carefully targeted to the real needs, with an eye to minimizing the burden we are putting on future generations. We owe younger Americans nothing less.

I yield the floor.

The PRESIDING OFFICER. The Senator from Illinois.

Mr. DURBIN. Mr. President, is there an urgent need for us to help America in this time of crisis? I think most people would agree there is. As a result, the House of Representatives more than 6 weeks ago passed legislation to continue to provide assistance to Americans who are in need. Certainly, that would include those who are unemployed. We created an unemployment Federal benefit of $600 a week over and above the State benefit, expanded eligibility and the time the benefit would be awarded, and made it available across this country right at the moment when some 40 million Americans were announcing that they had lost their jobs, were unemployed. It was a helping hand that was long overdue and certainly made a difference in the lives of many families.

I think it is responsible for the fact that we did see welcome news last week that some 2 million Americans have gone back to work. I hope that trend continues, but in the meantime, of the 20 million who are unemployed, this helping hand of $600 a week from the Federal Government is essential. It is not exactly a windfall when you calculate it. The Federal benefit, plus State benefit really comes up close to the average wage of most Americans. It is not a major benefit that they can live off of for any long period of time—that is for sure—but it gets them through the crisis, we hope, in paying their rent, their mortgage, utility bills, and providing food and clothing for their family.

Here is the problem: If you want to know if there is some urgency involved in unemployment insurance, consider the fact that on July 31, the program I have just described disappears. Do you think unemployment will disappear on July 31? We should be so lucky, but we know better. It is going to take a while for us to get back on our feet as a nation. We have to stand by those who are unemployed in the meantime, until they can get back to work and provide for their families.

Unfortunately, the program we created ends July 31. Is there an urgent need to extend it in some form? I believe that is obvious to virtually everyone. I can't understand why Senator MCCONNELL, the Republican leader in the Senate, doesn't feel this sense of urgency in his home State of Kentucky, as I do in my home State of Illinois, right across the river. We have common areas. Downstate Illinois and Kentucky are somewhat similar in their economies, and I know there are people who need a helping hand.

I hope Senator MCCONNELL will consider giving them that helping hand—but not just in this area. There is also included in the bill that passed the House of Representatives, the Heroes Act, an extension of COBRA benefits.

What is COBRA? If you are working for a company that provides health insurance, you pay part of the premium, and they pay the other part. If you lose your job but want to continue that health insurance plan, under COBRA you can if you pay both sides, employer and employee, on the premium. The average cost is about $1,700 a month. It is a pretty hefty sum for anyone who just lost their job.

Under the bill that passed the House of Representatives, there would be 100 percent coverage of the employer's portion of the COBRA premium during the period of your unemployment. That is a helping hand, which most workers desperately need. I am sure they need it in the State of Kentucky, just as we do in the State of Illinois and all across the Nation.

There is a sense of urgency if you don't have health insurance, isn't there? We are more conscious than ever about the need for good health insurance. I would hope that Senator MCCONNELL would consider that when he decides whether there is an urgent need for us to pass the bill that was enacted by the House of Representatives.

In addition, there is a major portion of the House bill that provides assistance to State and local governments. We desperately need it across the Nation. Hardly any State—county, major city, even cities of modest size—hasn't seen the cost of government go up as government revenues from sales tax, for example, have diminished and the cost of government related to the COVID–19 crisis have increased.

The helping hand to these State and local governments is consistent with what we did in the first bill, the CARES Act, and is desperately needed. What is the alternative? I know what it is, and most everyone does as well: There will be dramatic layoffs of State and local employees if we don't provide a helping hand from the Federal Government. These employees include, of course, teachers, medical personnel, law enforcement, and the like.

If we want to make certain that we maintain the basic protections of government at the State and local level, then Senator MCCONNELL should consider supporting the bill that already passed the House of Representatives.

There is one major stumbling block when it comes to this issue of Senator MCCONNELL taking up any measure to help our economy from this point forward. It was 6 weeks ago, in April, when Senator MCCONNELL announced that he was drawing a redline that he wouldn't budge from, and that redline said that we had to provide immunity from liability for businesses and others before he would even consider additional benefits for American businesses and families. We don't know exactly

what the Senator had in mind. He announced on several occasions from the floor here that he wanted to put this immunity provision into any future package, but as of today, we still haven't seen it. We are still waiting.

One of his colleagues, Senator CORNYN from Texas and my colleague on the Senate Judiciary Committee, has given several speeches on the subject. There was one that he gave on May 19, which I would like to refer to because it is perhaps his longest statement and the longest Republican statement on just what they have in mind. Senator CORNYN said that there has been a wave of COVID–19-related lawsuits rolling in. He called it an avalanche of lawsuits. He went on to use other terms equally cataclysmic. He called it a litigation epidemic, a tidal wave of lawsuits. He went on to talk about those as creating a need for us to provide some protection against lawsuits.

I decided to take a look at this avalanche, this tidal wave that we heard about so much from Senator MCCONNELL and Senator CORNYN. You see, there is a law firm tracker service that takes a look at every lawsuit filed in America to see what they are all about. They have a category of lawsuits related to COVID–19, and they give regular reports on how many lawsuits are filed.

Let's take a look at the avalanche of lawsuits that have been filed as of yesterday. Remember, 2 million Americans have been diagnosed with the COVID–19 infection—2 million.

Out of 2 million Americans with COVID–19 infections and over 115,000 deaths, as of yesterday, how many medical malpractice lawsuits do you think have been filed based on COVID–19 against healthcare workers, doctors, nurses? How many across the whole United States of America? Five. Five. Some avalanche.

How many lawsuits have been filed by those who say that they are forced to work in unsafe working conditions because of COVID–19? In this tidal wave, there have been 49 of those lawsuits filed—49 across the entire United States.

By way of comparison, how many lawsuits have been filed involving COVID-related disputes between businesses and insurance companies? Six hundred and thirty-one.

Five hundred and sixteen lawsuits have been filed by prisoners because of what they have alleged to be unsafe living conditions related to COVID–19 and 194 lawsuits challenging governments' stay-at-home orders across the board.

This doesn't strike me as an avalanche or a tidal wave or some spate of frivolous lawsuits being filed by workers or customers. Part of the reason, you learn in your first year of law school. In tort law classes, one of the first things you are told is, before you can recover in a lawsuit, you have to prove causation. What was it that caused your injury? How is that defendant responsible for your injury? It is a difficult thing to prove in many lawsuits and very difficult when it comes to an invisible virus as to what circumstances or what individual would be responsible for the fact that you became infected and are filing this lawsuit. Causation is hard.

Here is what it really gets down to: I believe—and most people do—that if a business or an entity is really making a reasonable, good-faith effort to protect employees and customers, that should be a defense to any lawsuit. What would that consist of? We had a hearing in the Senate Judiciary Committee 3 weeks ago. The star witness on the Republican side was a very impressive individual who represented the convenience stores of America. He was from the same State as Senator CORNYN, the State of Texas. His name is Mr. Smartt. He came in and told the story about many facilities that he had which were providing goods and services to the people of Texas and how he was making a good-faith effort to protect those who work for him and those who did business in his establishment. He talked about plastic shields. He talked about hand sanitizers. He talked about spacing and distancing. It was really clear from the start that this CEO of this major Texas corporation was doing his best to protect the people who came into his business and his workplace.

I thought it was a good statement when, on page 7 of his testimony—and I will refer you to it if you would like to look at the Senate Judiciary Committee testimony—he said that his biggest problem was he didn't know what standard he had to live up to, what was the proper thing for him to do from a public health point of view. He didn't know which way to turn. Was it the Centers for Disease Control? Was it the Occupational Safety and Health Administration? Was it the State of Texas? Was it some Federal agency? He was really begging us: Give me a standard to live up to, and I will do my level best to live up to it.

I don't think that is an unreasonable position. I salute him. I would like to be, if necessary, in court defending him, saying: This is a man who is trying his best in the business environment to be a responsible citizen, both for his workers and for his customers, but he doesn't have a standard to operate by.

Why don't we have this Federal standard? Well, you point the finger of responsibility to the White House. President Trump and his administration have refused to come forward with enforceable and inspectable standards that we can use to take a look at those who are trying to protect others from public health exposures. Without that Federal standard, companies like that one in Texas really don't know where to turn. If OSHA came up with a standard and said ''This is what we expect in the workplace'' and you lived up to that standard, I would say, as an attorney who spent a lot of time in the courtroom, you have a pretty strong defense going for you—first, the issue of causation, and secondly, whether you have done what is reasonable on your part to protect people.

That is what it comes down to. Democrats and others argue that we should hold businesses to a reasonable standard of responsibility. We certainly don't encourage or defend frivolous lawsuits. But we don't want bad actors who are ignoring any reasonable standards or responsibility to get away with murder. They should be held responsible, and they should be reliable in terms of their own activity. That is what it comes down to.

Senator MCCONNELL is holding back assistance for State and local governments, money for hospitals, money for the unemployed, because of the so-called redline when it comes to immunity. Listen, it is human nature. If you say to businesses across the board ''You are immune from lawsuits,'' I am afraid some people will take advantage of that. They will not even try. And people get sick as a result of it or maybe worse. We don't want that to happen in this country. We want people to do the right thing—to protect themselves, their families, and to protect others, and in business, to make sure they are protecting the public at large. If they live up to a certain standard, I think they have a good defense to any lawsuit.

But the so-called avalanche and tidal wave of lawsuits—5 medical malpractice lawsuits after 2 million Americans have been infected by COVID–19—really tells the story.

I would encourage the Republicans to finally produce and present to us the standard they want to make part of the law of the land. Let's see what is in it. Let's talk about it. And if you are willing to establish reasonable standards based on public health to protect the public at large, I want to be at the table. We can find common ground. But if you are saying ''We want immunity for these businesses. We want to let them off the hook no matter what they do, even if they do nothing,'' I am sorry, that is worth a fight. We have to make sure that people across America have a reasonable expectation that when they enter a business or go to work, they are going to be in a safe environment, and that the people who employ them, the ones who want to do business with them, have lived up to that responsibility.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. BOOKER. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mrs. LOEFFLER). Without objection, it is so ordered.

JUSTICE IN POLICING ACT

Mr. BOOKER. Madam President, just over a week ago, Senator HARRIS and myself, with the partnership and support of many of the Democrats in the Senate and our Senate leadership, CHUCK SCHUMER, along with colleagues in the House, our Congressional Black Caucus, and over 250 partners throughout the two Chambers, introduced the Justice in Policing Act, a bill designed to take concrete steps to bring long overdue, long called for, much needed, real accountability and transparency and oversight to policing in America.

We introduced the bill in the wake of the killing of George Floyd by law enforcement officers in Minneapolis, along with what happened to Breonna Taylor in her home in Louisville, the killings of other Americans, names who are now known for the wretched, awful way in which they died: Eric Garner, Tamir Rice, Michael Brown, and so many others. So many others whose names we do not know are all part of a system that does not reflect our common values and does not reflect the highest ideals of this Nation. In fact, it is just the opposite. It reflects the darkness of our past and our present. It reflects racism and bigotry and not equal justice under the law.

We are at a point in American history that is at a crossroad, where millions of Americans in all 50 States are engaging in some type of action of protest, whether it is on social media platforms or in the middle of a pandemic out in the streets. The question we have right now before us in this body is this: In the face of Americans of all backgrounds, races, religions, and parties who are calling for reform, what will this body do?

A lot of folks want to reduce the approaches that are coming forward as a Republican or Democratic approach. I am telling you right now that this is not a choice between one side of the aisle or another. It is a choice between meaningful reforms in this moment or making symbolic gestures that will do nothing to save people's lives. It is a choice between action and inaction.

The bill we are proposing is not new. These are reforms that have been put in place in some cities and in some States. This is a real effort to hold policing in America accountable for egregious behavior. It will create transparency, as sunlight is the best disinfectant to injustice. It will also bring about an end to policies and practices that should be ended in our country. They have been called for by President Bush in his first address to Congress for an end to racial and religious profiling.

We see, in fact, as to some of the more, so-called, controversial elements of this bill, like qualified immunity, that conservatives and Democrats on both sides of the aisle—folks from the Cato Institute, Clarence Thomas, and you see conservative organization after conservative organization—say the obvious, that no one should be shielded from accountability when they are violating the civil rights of another American.

We have a bill that calls for change that will protect lives and address the practices that have killed Americans, create accountability and transparency in departments, and make sure that no one in our country is above the law.

This is not a time for half steps and half measures. It is not a time to nibble around the edges. It is not a time to find the lowest common denominator. It is not a time—when so many Americans feel a metaphorical knee on the neck of justice—for us to pull our knee halfway off of that neck and call it progress. No, this is a time for us to do what is right and necessary to end the kind of violence and murder and unaccountability that we see and that is too endemic in our Nation.

This is the truth. The measures in this bill will pass. Congress will one day get this right. I am confident that one day in this country the provisions in the Justice in Policing Act will ban religious and racial profiling. I am confident that one day in this country we will ban choke holds. I am confident that one day in this country we will have a national registry of police misconduct, of police use of force. I am confident that one day no one who murders someone in broad daylight in front of cameras will be shielded from accountability on the Federal level, in our civil courts, or in our criminal courts, by impossible standards to meet. It is clear that one day we shall overcome what is now injustice, that this body will do the right thing.

There will be a time in America when mental health issues will be treated with healthcare and not police and prisons. There will be a time in America that addiction will be treated with treatment and not police and prisons. There will be a time in America that the fragile within our society will not be further hurt and harmed by practices and prisons but will be elevated and cared for. I know this time is coming. But I believe that the time is now, that justice delayed is justice denied. If we do not act and claim this moment, this time, then we, as a country, are going to find ourselves here again.

In my short life, I have seen decades of this. I was born right after the Kerner report calling out these practices and demanding reforms. In that time, I watched Rodney King get beaten and officers who did it be held unaccountable for their actions. This cycle is continuing in our country every day.

There are so many cases that we don't see because we don't have transparency. They explode into the national consciousness when someone catches on videotape what we know is wrong but we have not taken the measures to stop it. Now is the time that we must act and not find ourselves here a month from now, a year from now, 3 years from now, watching this awful cycle play over and over.

Listen to the American people—all 50 States, all backgrounds—joining together in a course of conviction to put a stop to this nightmare. Now is the time—no half measures, no half steps, no diluted attempts, no fainting toward what should be done but not having the courage to boldly go in the direction that one day this bill will pass. But I believe ''one day'' should be today. Congress should act.

I am so proud that I am not alone in this position. I am so proud that there are others in this body who are joining with me, with the same sense of urgency to get broad-based reforms done.

I see my colleague from Oregon, one of the many champions for justice in this body. I am grateful now to yield to him.

The PRESIDING OFFICER. The Senator from Oregon is recognized.

Mr. MERKLEY. Madam President, I am honored today to join Senator BOOKER, Senator HARRIS, and so many of my colleagues to work to take this moment of national outcry and turn it into an opportunity, a moment of national action.

For weeks now, in protests across our land, millions of fellow Americans have been rising up and speaking out to demand justice, accountability, opportunity, and, above all, the equality promised by our Founders 244 years ago.

This latest movement may have been sparked by the senseless killing of George Floyd, a Black man, at the hands of public safety officers. One officer, sworn to protect and defend him, knelt on his neck for 9 minutes, extinguishing his life. But this movement is about so much more. The pain and anger and the anguish that have burst forth from the hearts of Black Americans everywhere run far deeper than a single tragedy. It is a pain born of an endless string of tragedies, the senseless killings of Breonna Taylor, Ahmaud Arbery, Eric Garner, Tamir Rice, Sandra Bland, Freddie Gray, Michael Brown, Trayvon Martin, and more—so many more Black men and women who should be alive today—of Rayshard Brooks, shot in the back by a police officer, who died this past Friday night. It is a pain borne even before we were yet a country, when more than 400 years ago, traders kidnapped Africans from their own lands, brought them here to these shores—American shores—sold them, locked them into generations of brutal slavery, treated not as people but as property, chained, sold, whipped, raped, treated as something less than human.

Our Nation has never come to terms with this legacy. There is no memorial on the National Mall. There is no Truth and Reconciliation Commission. So, still today, America's gaping wound of racism bleeds pain and injustice, and inequality continues to plague every system in our country.

Too many Black men and women have lost their livelihoods, their lives, and their dignity to a justice system rigged against them: racial profiling, mandatory minimums, stop and frisk,

acts of racial profiling, and racially driven predatory actions.

We entrust to our public safety officers vast power to serve their communities, but have we ensured that their vast power is exercised equally on behalf of all citizens? We have not.

Too often, forces—public safety forces, police forces—treat White citizens as clients and Black citizens as a threat. That is systemic racism, and it must change. It is why I am so proud to stand here in support of Senator BOOKER's and Senator HARRIS's sweeping Justice in Policing Act reform bill. We need to hold officers accountable for their actions. We need to change the culture of policing in America, and this legislation is the right law at the right moment to begin to do that.

No one should ever be profiled based on the color of their skin. Choke holds, like the one that killed Eric Garner, must be a thing of the past. No-knock warrants, like the one that ended with Breonna Taylor being shot to death in her bed, should no longer exist. Under the Justice in Policing Act, these will be gone.

When a public safety officer misuses the immense power of his or her badge, that misuse must be investigated, must be documented, must be penalized, and the record of that abuse must be public. That is the essence of accountability that goes hand in hand with the responsibility and the power that goes with wearing the badge.

Never again should an officer who has been fired for abusing their power be able to go down the road and be hired by another department and be able to continue abusive practices in a new setting. That is why I have advocated for a national database of police misconduct, to achieve this outcome. And it is why I am so pleased that Senator BOOKER has included such a database in the Justice in Policing Act.

In 1968, the Kerner Commission, which was examining the source of the demonstrations the year before concluded: ''Bad policing practices, a flawed justice system, unscrupulous consumer credit practices, poor or inadequate housing, high unemployment, voter suppression, and other culturally embedded forms of racial discrimination all converged to propel violent upheaval on the streets of African-American neighborhoods in Americans cities, north and south, east and west.'' Doesn't that sound familiar—all too familiar—here, 52 years later, half a century later?

One person testifying at the Commission said: I read the report of the 1919 riot in Chicago, and it is as if I were reading the investigative report on the Harlem riot of 1935, the reporting of the investigating committee of the riot of 1943, the report of the McCone Commission on the Watts riot. I must say in candor to members of this Commission, it is a kind of ''Alice in Wonderland,'' with the same moving picture shown over and over again, the same analysis, the same recommendations, and the same inaction.

That is why I am standing on the floor in support of this act, because inaction is not acceptable. Let the same not be said about this moment years from now.

Today is a moment for a day of action, for greater investments in affordable housing and decent communities and in schools and teachers in minority communities, for greater investments in Black business owners and early education programs like Head Start. It is a time to ensure that every American truly has a right to vote and is free from voter suppression and voter intimidation.

This Friday, our Nation will, once again, recognize and celebrate Juneteenth, the day when slavery officially ended in this country 155 years ago. Let this Juneteenth stand as a day for all of us to reflect on the calls for justice crying out across our land. Now is a time to be agents of change—yes, to listen to the voices of the people, to join with those who have taken to the streets, enduring rubber bullets and the batons and the tear gas, to stand up for what is right. Now is a moment to stand shoulder to shoulder with our fellow Americans who have had enough of the suffering of inequality and of injustice, so together we can help our Nation live up to the ideal of a land where everyone, no matter the color of their skin, is treated with the dignity and the respect and the opportunity and the equality equal to all others.

The PRESIDING OFFICER. The Senator from Virginia is recognized.

Mr. KAINE. Madam President, on Saturday, I attended a rally for justice sponsored by two young women—one, a high-schooler and one a middle-schooler—in my hometown. The rally was one of numerous marches and rallies that have occurred every day, sometimes multiple times a day, in Richmond in the weeks after the horrific public murder of George Floyd.

Hundreds of people gathered in the Maggie L. Walker Plaza, a plaza named after a pioneering African-American woman, a business and civil rights leader.

They gathered in the plaza to hear from our city's young people. Many raised their hands when they were asked if they were graduates of this class of 2020, a class whose senior year was upended in mid-March and who face a future that, frankly, seems very, very frightening to many of them.

I attended to listen. I used to be the mayor and Governor—now a Senator—but I attended as a neighbor to listen. I wasn't on the program, and I didn't ask to speak. I wanted to hear how our young people view this moment in time and what they are asking of us.

What I heard in many different ways, from speeches and artistic performances, was no more politics as usual; no more police killings of people of color; no more empty promises of reform after each new policing outrage; no more education system that downplays the reality of injustice in this country since its birth; no more educational content that also downplays the contributions of African Americans, Indians, Latinos, and others to our Nation; no more veneration of the Confederacy in Richmond, in Virginia, or anywhere else in the United States.

This gathering, this rally, had a lot of police there. The police were there trying to keep the crowd from spilling from the plaza onto the busy Broad Street, where they would have been endangered by passing vehicles. Some of the attendees of the rally advocated to defund the police, but others disagreed. Some asserted ''all cops are bad,'' but others disagreed. The rally was robust, it was raw, it was diverse, and it was respectful. It was the epitome—the absolute epitome—of peacefully assembling to petition government for redress of grievances contemplated by the First Amendment.

Just as my young activists urged in many different ways to end politics as usual, I desperately want to end apathy as usual. Apathy of the citizenry is a chief guarantor of politics as usual. In the tremendous energy demonstrated by these Richmonders and demonstrated on the streets of communities all over this country, I am starting to be hopeful about the end of apathy as usual. These young people, they want action and results, and they deserve it. That is why I am proud to join Senators BOOKER, HARRIS, and many others in supporting the Justice in Policing Act of 2020.

We need to ban choke holds. We need to ban no-knock warrants. We need to ban racial and religious profiling. We need to hold police officers and police departments accountable for violent, reckless behavior. We need to promote better training and professional accreditation of police departments. Why do we demand that universities maintain accreditation to receive Federal funds but make no such demand of law enforcement agencies?

We need to do much more within the criminal justice system—but also within all of our systems—to dismantle the structures of racism that our Federal, State, and local governments carefully erected and maintained over centuries.

We know a little bit about this in Virginia. The first African Americans to the English Colonies came to Point Comfort, VA, in 1619. They were slaves. They had been captured against their will, but they landed in Colonies that didn't have slavery. There were no laws about slavery in the Colonies at that time.

The United States didn't inherit slavery from anybody. We created it. It got created by the Virginia General Assembly and the legislatures of other States. It got created by the court systems in Colonial America in the sense that it enforced fugitive slave laws.

We created it. We created it and maintained it over centuries. In my lifetime, we have finally stopped some of those practices, but we have never

gone back to undo it. Stopping racist practices at year 350 of 400 years but then taking no effort to dismantle them is not the same as truly combating racism.

I am mindful of the challenge laid down by our young people: no more politics as usual.

It is one thing to introduce a bill. We do that all the time here. So often the introduction of the bill is all that occurs—no committee hearing, no committee markup, no committee vote, no floor debate, no floor vote, no signature by a President—merely words on a page and a 1-day story and then, possibly, a blame game about who was at fault for nothing happening.

That has been my biggest disappointment in 7½ years in the Senate. Unlike my service at the State and local levels, where we took action and then engaged in healthy competition about who should get credit, in Congress, it is too often a story of inaction and then an unproductive competition over who should be blamed for nothing getting done: politics as usual.

I pray that the engaged activism of our citizens has brought us to a new moment that will compel us to act in ways, large and small, in accord with the equality ideal that we profess to believe.

This bill is a test of our resolve, and I urge my colleagues to meet the moment so that we can look our young people in their faces and tell them that we truly heard them.

I yield the floor.

The PRESIDING OFFICER. The Senator from Maryland.

Mr. CARDIN. Madam President, it was 2015, shortly after the death of Freddie Gray in police custody in Baltimore, that I was in Sand Town, the community in which Freddie Gray grew up, meeting with community leaders, many of whom I had known for many, many years.

We had an honest discussion about how policing in Baltimore had unfolded. I was surprised to hear that these community leaders who wanted safety in their community felt that they could not confide with the police because they did not want people from their communities subjected to the discriminatory policing of the Baltimore City police force.

I had another meeting during that time with a group of African-American families. Everyone told me the story about how they feared particularly when their young African-American sons went into the community because of the fear that they would be discriminated against and hurt by the police. That fear was real.

As a result of the Freddie Gray tragedy, we requested a pattern-and-practice investigation by the Department of Justice, and what was discovered during that investigation was that the policies of the Baltimore City Police Department's zero tolerance to crack down on crime were used to profile the African-American community. In many cases, the police presence in the community provoked the violence and added to the harm of the people in the community.

I wanted to take this opportunity to thank Senator BOOKER and Senator HARRIS for putting together a bill that we need to take up on the floor of the Senate as quickly as possible: the Justice in Policing Act. It contains many provisions that, quite frankly, should have been enacted well before now.

The tragic deaths of George Floyd and Rayshard Brooks just underscore the importance for us to act now. We need to debate these issues, and we need to pass legislation.

I am grateful for Senator BOOKER including two provisions that I had filed as legislation in several Congresses. One is the End Racial and Religious Profiling Act, a bill I filed a while ago.

I think many of us remember the Trayvon Martin tragic loss, profiled because of the color of his skin. Racial or religious profiling targets a class of Americans for discriminatory treatment. It is not when you have individual information about a specific crime and indicators; it is when you target a community for special treatment.

It is wrong. It is wrong because it is against the values of America of equality and justice. It is wrong because it wastes resources which are so valuable to keep our communities safe. It is wrong because it turns communities against police. If we are going to have effective law enforcement, the community and police need to work together, not at odds. It is wrong because it becomes deadly. Too many innocent people have lost their lives because of discriminatory profiling. It is time for this practice to end in America.

I want to applaud the Obama administration because they took action at the Federal law enforcement level to make racial profiling illegal, but it still takes place in local law enforcement. The legislation included in the Justice in Policing Act would make that illegal. It would prohibit it, and it provides for ways to enforce, to make sure that police departments comply with it.

It also provides for training so law enforcement understands what racial profiling is all about. It also provides for us to get the data so we know exactly what is happening at all levels of policing, whether State, local, or auxiliary.

The Leadership Conference on Civil and Human Rights testified on the issue of discriminatory profiling last week, and I want to share some of the testimony of Vanita Gupta. She testified:

> The equal treatment of all people, regardless of background, class, or characteristic, protects and preserves public safety and builds legitimacy in police. Discriminatory policing, which targets people of color more often than others, has serious consequences not only for individuals and communities but also for law enforcement and society, by fostering distrust in law enforcement. . . . Through policy, training, and practice, law enforcement agencies can work to prevent and hold officers accountable for discriminatory policing, and reduce and mitigate its disparate impact on marginal communities.

I want to thank her for her testimony, and I want to thank Senator BOOKER for including those provisions that would end this practice in the Justice in Policing Act.

There is a second bill that I have introduced for several Congresses: the Law Enforcement Trust and Integrity Act. It provides for performance-based standards for police officers. It embraces accreditation standards based upon President Obama's Task Force on 21st Century Policing. It does provide for training and oversight and proper investigations for those police officers who have crossed the line. It enhanced the pattern-and-practice discrimination cases so that consent decrees can be effective in ending these wrong practices.

I am pleased that these two provisions are included in the Justice in Policing Act, as well as so many other important changes for reform and accountability in law enforcement: the no-knock warrants, the standard that we hold officers accountable who have lost the trust of the American people, the registry so that law enforcement can know by background checks whether particular applicants have been involved in instances in other jurisdictions.

All these are very, very important provisions that we need to act on and we need to act on now. Let us work together to guarantee equal justice under law and fulfill the promise of our Constitution in order to form a more perfect union, establish justice, and ensure domestic tranquility.

Let this Nation finally guarantee equal justice under the law.

I yield the floor.

Mr. BOOKER. Madam President, before the good Senator from Illinois speaks, I just want to, if I may, express my gratitude to the two colleagues who just spoke. The Senator from Virginia, who has been a champion on these issues when he was a Governor and now as a U.S. Senator, has been in the Senate much longer than I have. I have a lot of love for the history that he knows of his own State and the fact that he knows that that history of injustice has to be confronted.

My mom did sit-in events in Charlottesville, VA, when she lived in DC, where I was born, and she went out to help integrate lunch counters in his great State. The fact that he is on this bill and he is a leader on these issues is extraordinary to me at this important time—and doing it in such a unifying way. I am grateful for that.

I wanted to just say to the Senator from Maryland, I am newer to the Senate, and he has components of his bill that, after challenges in Baltimore with Freddie Gray, he helped to lead and write. It is not a partisan thing that he is calling for. There have been

many Republicans who have come out and say this idea that you will profile people because of their race or religion is anathema to the very ideals of the Constitution. It is so obvious on its face.

I have seen polling where upwards of 90 percent of Republicans agree that we should not have people profiled based upon their race or religion, and that is one of the ideals of this bill, if you look at the common views of this; yet he has been fighting for this for years. I am grateful to have him as a part of it.

I just want to say, as an introduction, on the Senate floor and for the record, to Senator DURBIN, who has been a partner of mine on criminal justice reform: This whole system of policing and prisons and jails which has swept up millions of Americans and their families and their children is despicable, that we are the land of the free and incarcerate so many people.

His work on crack cocaine/powder cocaine disparities before I even came to the Senate has helped to lead to the liberation of so many African Americans, so I am grateful that he, too, is on this bill.

With that, I yield to the Senator from Illinois.

The PRESIDING OFFICER. The Democratic whip is recognized.

Mr. DURBIN. Madam President, I thank the Senator from New Jersey.

During the course of one of his political campaigns, Abraham Lincoln's opponent said to him: You have switched your position. You have reversed your position on an issue. You have changed on an issue.

Abraham Lincoln said: It is true. You see, I would rather be right some of the time than wrong all of the time.

Well, I learned that lesson, as many of us have who have served in Congress, when you vote for a measure and, many years later, have to reflect on whether it was the right vote. I voted for something called the War on Drugs. It seemed like a sensible thing to do, and many joined me: Black and White Members of the House of Representatives. It was after the death of Len Bias, the Maryland basketball star who overdosed.

In the moment of panic over crack cocaine, we did something which was going to just make a very clear public statement. The penalty for crack cocaine was going to be 100 times the penalty for powder cocaine—100 times. We were going to let America know: Don't mess with crack cocaine.

What a colossal failure it turned out to be. The price of crack cocaine on the street went down instead of up; the number of users on the street went up instead of down; and we filled the prisons of America, over the next 10 years, to a level we had never seen before, primarily with African Americans who had been convicted of possessing and selling crack cocaine.

I realized, as I am sure many others did too, that it was a big mistake. It was an experiment that failed at the expense of many people and their families and their lives. So 10 years ago, I started out to try to change it. The 100-to-1 standard, in my mind, was indefensible. It didn't work, No. 1. No. 2, there was no scientific evidence that crack cocaine was that much more dangerous than powder cocaine.

So I set out to make it 1 to 1, where it should be. I ran into an adversary by the name of Senator Sessions from Alabama. He didn't like the idea very much of my change. After long negotiations, we agreed to drop the standard to 18 to 1. I can't tell you the wisdom behind the number 18, but it was a compromised number.

It changed a lot of things. Thousands of people in prison were able to leave early, and many had their sentences reduced. But it wasn't enough. We needed to go further. It was clear, when it came to mandatory minimums and ''Three Strikes, You're Out'' and all of the things that led to imprisonments—which were almost impossible to describe—we needed another bill.

I joined with Senator MIKE LEE, a very conservative Republican in the Senate, and we moved forward with the legislation. Others joined us as well, but we were stopped by one man who happened to be the chairman of the Senate Judiciary Committee, CHUCK GRASSLEY. Senator GRASSLEY said: I don't like this bill.

He came to the floor many times and gave speeches against the bill. So it became obvious to me, if anything was going to happen, I needed to win over CHUCK GRASSLEY. So I sat down with him and—literally for 1 whole year—negotiated changes in the bill, things that I didn't want to give up but were part of the process to move us forward.

We came up with the FIRST STEP Act, and he, proudly, was the lead sponsor on it, and I was his cosponsor—happy to be. Then we found an ally in the White House, Jared Kushner, who is open about the fact that his father spent time in prison and who believed in reform.

We put together the FIRST STEP Act. One of the first people I went to was CORY BOOKER, then a new Senator from New Jersey, and said: I want you to support this bill. Read it, and tell me if you can.

He came back to me with several proposals. One of them was the incarceration of juveniles that you wanted to make sure would be changed in America—and several other worthy suggestions we incorporated in the bill. And he became part of the team. The team was ultimately successful when, to the surprise of everyone in Washington, President Trump signed the FIRST STEP Act into law.

So those who are skeptical that what we are about here cannot result in legislation have ignored the obvious—something that occurred in the last year or two with this White House, with this President, and with a Republican majority in the Senate. We did something significant, and we can do it again, and we should.

What we are talking about now with Justice in Policing is so obvious to the world. What has brought us to this point of this debate? I think two things have brought us here, and maybe we didn't see it coming: videotapes and DNA. That is what brought us here. It is no longer speculation as to what happened in a parking lot. It is no longer conjecture as to what happened at the side of a curb in Minneapolis. We see it. We see it, and we can't get the images out of our mind.

A knee on the neck for 8 minutes 46 seconds. Just in case that sounds like a short period of time, try kneeling, as Senator KAINE did in our moment of silence in the auditorium just a few weeks ago. Try imagining someone's knee on your neck for 8 minutes 46 seconds. George Floyd lost his life in that period of time.

I think the image that sticks with me is not only that man on the ground begging for his life but the image of the policeman who was being implored and begged by all the people around: Take your knee off. Let him breathe. And he just looked with those cold, hard eyes as he took the life out of that man. That image is something I will carry for the rest of my service in life, as are the images from the Wendy's parking lot in Atlanta, GA.

All of these things have brought us to the moment where we realize something must be done.

I listened, Senator KAINE, when he talked about the rally he attended in Richmond over the weekend. What a coincidence that he would talk about the young people who organized it. In my home State, I have been to several rallies in the city of Chicago held by leaders in the community, religious and otherwise, but the meetings that I attended that had the most impact on me have been organized by high school students.

In my hometown of Springfield, Nykeyla Henderson is a junior in high school. She is a tall young woman, kind of rangy, and doesn't look like the type of person who would ever speak up for anything. But she and her twin sister, Nykia, decided to put together a rally at the State capitol 2 weeks ago in Springfield. Fifteen hundred people showed up. No windows were broken. No curses were thrown around. Nobody was throwing anything. They made it clear that it was going to be a peaceful rally and all about Black Lives Matter.

I told her later that it is an amazing achievement at her stage in life that she were able to do this. How unusual it was that a young woman—a young African-American woman—took on this role of leadership with others.

This last Sunday, I went to Jerseyville, IL. I was telling Senator BOOKER about this. I don't know if there are many, if any, Black families in Jersey County. I represented this area for a long time, and I don't remember any. They had a rally on the lawn next to the courthouse at 4 p.m., Sunday afternoon. I went down there

because of another African-American high school young woman named Lay'Lhany Davis. Lay'Lhany goes to high school about 20 miles away in Alden. She called for a Black Lives Matter rally in Jersey and asked if I would come. I said I wouldn't miss it. She had done the same thing in Edwardsville, another small town. They had a rally, and when they started cruising with banners supporting political candidates and all the derision they were throwing at her, she said to these people: We are not going to be like that. We are not going to do that. This is going to be peaceful.

I respect her very much for it.

Here are these two 16-, 17-year-old young African-American women who are true leaders and inspiring in their humility. They are not looking for a headline. They wouldn't know what to do with it. They are wide-eyed at the number of people who are showing up. The people who show up, by and large, are young people. White, Black, Brown people come there begging for freedom and liberty and hoping that we can do something in Washington. And why shouldn't we? The reason we ran for these offices is to address the issues of the day in our time, to take on the tough chores of finding compromise when it looks like it is impossible. I think we can do this, and I know that we must.

I want to recount one other thing before I yield the floor. I see others arriving here. It was 10 days ago when I asked the African-American members of my staff to get on a conference call. We spend a lot of time on conference calls. There were quite a few on the call, and I started talking about their experiences. They were a little reluctant to volunteer much. Then the dam broke, and one of them said something that led another one to say something. It turned out to be one of the best conversations I have ever had with my staff. They told me some things that I needed to hear because listening is sometimes more important for a Senator than speaking, although I do a lot of speaking.

I can recall so many of them described for me the very first time—and they remember it, and they remember who said it—they were called the N-word. They remember it. Each went through that experience on the playground or in a school. I am thinking to myself that I never had an experience in my life that was that profound that I remember it to this moment of someone using a word against me.

Another young woman talked about the fact her mother sat her down at a young age and said: Listen to me. When you go to the store to buy something, always ask for a receipt. Always ask for a receipt. You put that receipt in that bag because somebody is going to stop you at the door and say you stole it, and you can show them you paid for it because you have the receipt.

I thought, my mother never gave me that lesson. She never had to. I will never be stopped at the door. I am White. This young woman was Black.

Time and again, the stories they told reminded me that the issue of racism is one we have faced in this country, as you said, for over 400 years—when slavery came to our shores, before we were known as the United States of America, to this day. The greed and racism behind slavery still challenge us to this moment.

Can we come up with an approach that is sensible? I hope we can. When you look at the history of Reconstruction, the Black codes, Jim Crow, the Great Migration, and everything that followed, you realize that we are still in the midst of this debate. We are as drawn to it as any moment in American history, and we have to face it and face it squarely and honestly. I think we can, and I think we must.

Let me say one word about the anti-lynching law. I read about the history of the anti-lynching law in the U.S. Congress. I am sure Senator BOOKER knows it well. A Congressman from Missouri, Leonitis Dyer, was not African American. He was a White Congressman, a veteran of World War I, an attorney from St. Louis, and a former prosecutor who was outraged by the East St. Louis race riots. East St. Louis is my hometown, born and raised across the river. He was outraged by the race riots there and people killed. He introduced the anti-lynching laws. He got it through the House, and it came over here and died in the Senate. That measure has languished in this Chamber ever since.

I thought to myself, lynching is a terrible, Southern phenomena. Boy, am I wrong. I did a little research and studied the history over the weekend. I was saddened to learn that in my home county, St. Clair County, on the Belleville Square, an African American was lynched. Another African American was lynched in Decatur, IL, a town in Central Illinois I represented for years. Sadly, other lynchings took place in parts of Illinois that you might not have guessed.

I learned the history of Anna, IL. I won't say it on the floor because I don't want to put it in the RECORD. Unfortunately, the name ''Anna'' has some racial connotations to it, which I will share privately with others. There was a lynching based on a person living in Anna who was lynched in Carroll, IL. This happened in the land of Lincoln. It happened in the North. It happened in my home State that I love. It is a reminder that hatred can be found everywhere.

It is our job here with this bill to move forward and say to the good police: Thank you for serving us. Now join us in making sure we don't have bad police. In your ranks, you know the people who cannot be trusted with their badge and gun to use them responsibly. You know the people who shouldn't be policemen. Join us in making sure your ranks show real quality in the recruitment, in the training, and in the review of performance of all those who are serving in law enforcement.

We need to do so much more. I am sure there is much more to be said. I want to thank my colleagues, Senators BOOKER and HARRIS, for bringing us to this moment. This is our moment.

I beg TIM SCOTT, whom I dearly love as a colleague and a person, to join us in a bipartisan effort to do something historic at this moment.

Don't believe we can't do it. Believe we can do the right thing that will stand the test of time.

I yield the floor.

The PRESIDING OFFICER. The Senator from Maryland.

Mr. VAN HOLLEN. Madam President, I want to begin where my colleague, the Senator from Illinois, left off, which is thanking Senator BOOKER, the Senator from New Jersey, Senator HARRIS, CBC, and the people protesting around this country for bringing us to this floor at this moment to demand urgent change.

I am pleased to be joined by my colleague from the State of Maryland, Senator CARDIN, from across the Potomac River, Senator KAINE, and, of course, Senator DURBIN from Illinois. We are here because, like those millions of Americans taking to the streets around the country, we understand that this is a moment when we must turn the pain into progress. We must transform the pain of George Floyd's death and the unjust deaths of so many other Black Americans into deep and lasting change. We must bring the passionate pleas of the protesters across the Nation to the floor of the Senate to take action to root out systemic racism in all its ugly forms.

This is a deeply ingrained problem, and it is clear that tinkering around the edges is not enough. Systems embedded with racism need to be overhauled. The State in the form of the police cannot be allowed to continue unjustly taking the lives and liberty of Black men and women. We must change the nature of policing. We need to change the culture.

Here in the Senate, we must change laws to compel changes in culture. Let us remember that the police as an institution are a reflection of the greater society, and we have an obligation to change all those institutions where we find ingrained racist practices, everywhere we find it, since the Nation stood horrified by the video of George Floyd gasping for breath, crying out ''I can't breathe'' as his life was snuffed out of him with a knee to his neck.

Other Black men have senselessly died at the hands of police.

By now, we probably have all seen the video of Rayshard Brooks. He fell asleep in his car after drinking. He was then interviewed by police for over 20 minutes. If you haven't watched that encounter, I urge you to do so because after that 20-minute conversation, he ended up dead with two bullets in his back. That encounter should never have ended that way.

Not far from here, in Woodstock, VA, we had another recent encounter that did not end in violence but exposed some of the racist assumptions that are too often wired into police responses and into societal responses. A Black pastor and Air Force veteran saw a man and woman disposing of an old refrigerator on his property. He told them to stop. The two were upset that the pastor would not let them dump this refrigerator on his property, and they grew irate. They went away, and they came back with three others. Then these five White people surrounded the pastor, began jostling him, taunting him, calling him names, and saying they didn't give a darn about his life and the Black Lives Matter stuff.

In defense, he drew a gun, which he legally carried. He called 9–1-1 to get the police to come. The police did come. They arrested and handcuffed the Black pastor while the five White people continued to threaten him and wave as the police took him away.

The sheriff in Woodstock has apologized, and the proper charges, including hate crime charges, have been filed against those who trespassed and harassed the pastor, but that initial response tells you what you need to know.

Those are the kinds of encounters that Black men and women face everywhere in this country on a regular basis—North, South, East, and West.

It reflects the same impulse of the woman in Central Park, NY, who was asked by a Black man and birdwatcher enthusiast to obey the law and leash her dog. Instead, she called the police on him to tell them that an African American was threatening her life. She was exploiting the fact that she would likely be believed.

It is same ingrained and racist impulses that resulted in five Black youth—now known as the exonerated five but who were locked up and spent years and years in prison after being falsely accused of a brutal assault in that same Central Park in New York.

It is the same racist narrative of one of the first American films, ''The Birth of a Nation,'' showed by Woodrow Wilson in the White House.

You can draw a straight line from slavery to Jim Crow, legal segregation, de facto segregation, and institutionalized racism to the deaths of George Floyd and so many other Black Americans.

Tinkering with the system will not be enough. Calling for more data and transparency is necessary, but it will not be enough. We have to take up and pass the Justice in Policing Act.

I want to thank Senators BOOKER and HARRIS and the Congressional Black Caucus for leading this legislative effort.

The Supreme Court yesterday had an opportunity to take up and change the doctrine of qualified immunity. They chose not to. Qualified immunity has allowed police and other State officials to act with impunity. There must be consequences for unjustly depriving citizens of life and liberty. The changes called for in the Justice in Policing Act are necessary to protect individuals, to protect communities, and to protect all those police officers who uphold their oath to protect the communities they serve.

The police are the agents of the State. Holding police accountable and requiring justice in policing is just the first step. We must also confront the other manifestations of systemic racism and the institutions and societal norms that allow them to continue. We must dismantle them with the same deliberate actions that ingrain them in the first place.

Tinkering with the system will not be enough. We need dramatic reforms in our criminal justice system. We have less than 5 percent of the world's population but 20 percent of its prison population—something that the Senator from New Jersey has spoken about often, as have my colleagues. We need to change that. That is a stain on our country. We need to get rid of the private prison system that gives some corporations a financial incentive to propagate a system that locks so many people up, but we need many other changes as well.

We know that COVID–19 has disproportionately killed people of color. We must address the underlying health disparities that lead to radically different outcomes for the Black community from COVID–19 to maternal mortality.

President Trump celebrated the fact that the May unemployment rate was 15 percent. That is nothing in and of itself to celebrate. It means millions and millions of Americans are out of work through no fault of their own. But he neglected to mention that the Black unemployment rate went up in that May report because we have deep inequities from our systems of income and wealth.

We have deep inequalities in our school systems. Title I is persistently underfunded by over $30 billion every year. Think about the $2.1 trillion we are spending to help keep the economy from going underwater in this short period of time. My goodness, we could spend $300 billion over 10 years to fully fund title I.

We are seeing continued discrimination in housing and the Department of Housing and Urban Development has to make efforts to advance fairness.

We have a lot of work to do in this country. We have a lot of work to do in the Senate.

This is a moment of reckoning for this country—another one. This time, let's not allow it to pass and let's start—let's start—right now by taking up and passing the Justice in Policing Act. But that is just a start. We have so much more work to do to build a truly more perfect union and to live up to the promise of equal rights and equal justice and equal opportunity and really ensure that we have equal justice under law, which of course is ensconced above the Supreme Court of the United States.

Let's get to work. Let's do it now.

I yield the floor.

The PRESIDING OFFICER. The Senator from Minnesota.

Ms. KLOBUCHAR. Madam President, I come to the floor today because it is time to end systemic racism with systemic change. So I am calling on my colleagues to work with us to immediately bring the Justice in Policing Act to the floor.

I thank Senator BOOKER, who is here with us today, and Senator HARRIS for their work on this bill, as well as the House Members who are leading in the other Chamber. We must pass this bill, and we should do it immediately with bipartisan support.

George Floyd should be alive today, but he isn't. He was murdered in my State. He was murdered in my city. He was murdered on videotape so the whole world could see it. The whole world saw as his life evaporated before our eyes.

Our Nation has been left in pain, grieving, marching, and demanding justice. His murder has galvanized a nationwide movement for justice, both for George Floyd and for the Black community and communities of color across America that have experienced injustice for far too long—not just injustice at the hands of the police, but also economic injustice, educational injustice. And, if anything, these last few months of this pandemic have shed a big magnifying glass and put it on top of what has been happening for way too long.

As we grieve this loss, we have work to do in our own States, and that is justice in this particular case, including accountability for the officers involved. Minnesota Attorney General Keith Ellison, whom I have known for many, many years—I am very sure that he will have full faith and has forever in his conviction for justice, and he is pursuing this case against the officers.

But as lawmakers, we must also make systemic change. We cannot answer our Nation's calls for justice with silence. That would make us complicit. We cannot answer with what the President called domination. That would make us monsters. We must answer with action. That is what makes us lawmakers.

Since I have come to the Senate 13 years ago, I have watched as change has come inch by inch. I see Senator DURBIN with us today, who led the effort on changing the disparity on crack cocaine. I was a new member of the Judiciary Committee when he led that work. I see Senator BOOKER here. Both of them, as well as a number of us, worked on the FIRST STEP Act. That was really important to reduce sentencing for nonviolent offenders. But, again, it is inch by inch. We must move by miles.

There is systemic racism at every level of our justice system, and it has

taken far too long to right these wrongs. And it is on us in Congress, especially on those of us who have worked in this system—mayors, prosecutors, attorneys general. Those of us who have seen what is happening have a special obligation to make this change.

We took an oath as Senators. We didn't wave a Bible in the air for a photo op. We placed our hand on that Bible and swore to support and defend the Constitution against all enemies, foreign and domestic. That enemy we face right now is racism; it is injustice.

This is not a time for half measures and equivocation. It is a time for real change and swift action, including holding police officers accountable for misconduct and violence, changing police practices, and making our justice system more transparent.

There are a lot of good police officers out there—a lot of good police officers—but they are brought down, just as our entire community is, when you have someone like Derek Chauvin commit the murder that he did. When they watch the videotape, they feel like we feel. And that is why this bill is so important—the Justice in Policing Act.

This comprehensive legislation changes Federal law so that officers can be held accountable for misconduct and increases that transparency and improves police training.

First, on accountability, the Justice in Policing Act will hold officers accountable for misconduct and violence by changing the Federal use-of-force standard from reasonable to necessary so that force is only used when necessary to prevent death or serious injury, and it requires States to adopt similar stands if they want to receive certain Federal funding.

Changing the standard is not just some little legalese word that makes a change. It will save lives.

When these changes have been adopted at the local level, there has been a significant drop in the use of force. These words can be the difference between whether a prosecutor can prove a case against a police officer or not.

People ask what has happened around the country with some of these cases—some of these blatant things that people recently have seen on videotape.

In my State, Philando Castile, who was in a neighboring jurisdiction to Minneapolis—look at what these standards are. Lawmakers have control over these standards. Even when a case like that was prosecuted with excellent prosecutors, who did their all, they were not able to get a guilty verdict. Look at the standards.

In addition to improving the way that individual officers are held accountable for misconduct, the bill holds police departments accountable, because we know that there are systematic changes that are needed at police departments.

I have called on the Department of Justice, along with 26 of my colleagues, to conduct a full-scale investigation into the patterns and practices of the Minneapolis Police Department. We have waited weeks for a response.

Under the Obama administration, 25 of these pattern and practice investigations were brought. Under the Trump Justice Department, just one unit of one department in Springfield, MA, was examined.

Now, just as I headed to the floor here, we got a letter from the Justice Department, but they did not commit to this investigation. They said they were going to continue to look at the evidence.

Meanwhile, the Governor of Minnesota and the State human rights department has had to fill in. They are conducting their own investigation, and I have faith that they will do the right thing. But, again, this should be coming from the Justice Department.

We know that Minnesota is not the only State whose recent events have shown us misconduct from the police and that have experienced a pattern and practice that need to be examined. But, again, we wait that investigation from the Department of Justice.

After what we saw on the video, is it not warranted in this case to have such an investigation? I would ask the Justice Department under Donald Trump and under William Barr: What facts would warrant an investigation if not these?

In addition to improving the tools to hold police accountable, we also need to ensure that there is transparency so we can once again build trust with our communities. What does this mean? Well, it means that we have officers that actually get in trouble in one department and then they go to another department and no one even knows what happens. It means that the public does not have access to information about serious issues of misconduct that are held tightly within city departments and city archives in some place, when in fact it is a matter of life and death for the people of this country.

And, of course, we need wholesale changes to the way policing happens. I worked with Senators SMITH and GILLIBRAND to include provisions in the bill to require States to ban the use of choke holds in policing to receive certain Federal funding and to ban them overall.

This would be an important change that actually would help with prosecutions across the country, if this practice was actually banned.

George Floyd's murder, at the hands of police officers, was horrific and inhumane and, sadly, as we know, not the first or last time a Black man was taken too soon by those in uniform. We must stop this cycle of violence to get something done.

We have an opportunity to make real change here, and if Leader MCCONNELL refuses to bring this bill to the floor, he and his colleagues who support him are on the wrong side of history.

In the words of George Floyd's family, whom I had the honor to speak with, ''We will demand and ultimately force lasting change by shining a light on this and by winning justice.''

I will conclude with this. A few years ago, like so many of my colleagues, I went to Selma, AL, with Representative JOHN LEWIS. I stood there on the bridge where he had his head beaten in. I was in awe of his persistence, his resilience, and his faith that this country could always do better.

That weekend, after 48 years, the White police chief of Montgomery handed his police badge to Congressman LEWIS, and he publicly apologized on behalf of police for not protecting Congressman LEWIS and the Freedom Marchers 48 years before.

I don't want it to take another 48 years for my city to heal. I don't want it to take another 48 years for my State to heal or for this country to heal or for our Nation to fix a justice system that has been broken since it was built. I want justice now. The voices you hear from across the country—they want justice now.

It is time we delivered, and not just in platitudes. It is time we acted, and not just talk about acting. This is our moment. This is history. So let's make history.

I yield the floor.

The PRESIDING OFFICER (Mr. CRUZ). The Senator from Wyoming.

Mr. BARRASSO. Mr. President, I come to the floor today to discuss the Senate plan for justice reform.

First, it is important to note that justice will not come from any community with lawlessness. It will not come from any community with a disregard for law and order. It will not come from any community with radical cuts in police budgets in cities like New York and Los Angeles. It will not come from any community that defunds the police.

These are not the solutions that Americans are seeking. Yet I see headlines from around the country with pictures of those demonstrating and applauding Democrat politicians who are calling for defunding of the police—the Democrat politicians who are demanding not just defunding but also dismantling the police in their own communities.

That will not work. That will not work, and the American people see it and they know it. In fact, a new ABC poll finds that 64 percent of Americans oppose these dangerous, liberal ideas like defunding the police, and 60 percent oppose police department budget cuts.

Liberal leaders, meanwhile—look, they have let anarchists occupy part of Seattle. You turn on the TV, and you can see what is happening there. They have actually burned down a police precinct.

They called this area CHAZ—C-H-A-Z—the Capitol Hill Autonomous Zone. Can you imagine such a thing? Well, now they have renamed it to CHOP, which stands for the Capitol Hill Occupied Protest. Whatever they want to

call it, to me and to Americans all across the country, it is still criminal lawlessness.

Democrats and Republicans need to stand up to these dangerous radicals. We must never defund or disband the police—never. Defunding police departments is a dangerous idea. Violent crime will spike. Call 911, and no one will be there to respond to your emergency.

I believe that rather than defund, we must defend the police as appropriate and make sure that we invest more in law enforcement, not less. We need to improve police training, accountability, transparency, recruiting, and community engagement, and that is what the Republican bill does.

House Democrats have written a very partisan bill, aimed at making over and taking over—not just making over but also taking over—policing in America. The Democrats' plan would nationalize the police—nationalize it—18,000 police units and 800,000 police officers—nationalize the police and, of course, without adequate funding.

The truth is that the House isn't even in session. Their plan was written in secret. House Democrats didn't consult Republicans and, apparently, didn't even consult a number of their own Members. They didn't plan to debate the bill and don't plan to debate it for a couple of weeks.

As you know, Republicans, on the other hand, have been working and listening, and we are leading. Our effort, of course, is led by Senator TIM SCOTT of South Carolina. We have developed what I believe is a smart plan and a workable solution. The bill is called the JUSTICE Act. It is written to garner bipartisan support, and I hope some of our colleagues on the other side of the aisle will join in this effort.

This is a sensible measure that will make bipartisan justice reform a reality that we need. It is not a political exercise. It is practical legislation, and it deserves to become law. So I hope Democrats will join in the effort.

The JUSTICE Act includes a number of very important reforms. It provides for every police officer in the country to use body cameras to curb the unnecessary use of force. I will tell you that I believe that body cameras have made a difference in changing the hearts of Americans all across the country.

It requires States that receive Federal grants to report details of all uses of force causing death or serious injury. For the first time, we will have real, actionable data.

It promotes greater access to officer employment records to improve hiring practices. This prevents bad officers from moving from one department to another.

It provides funds to help police departments recruit and hire officer candidates that better reflect the diversity of the communities in which they serve.

It requires higher standards for police to obtain and use no-knock search warrants. These warrants will allow officers to enter homes without announcing their presence.

Our bill creates two commissions to report back to Congress. A new commission on civil rights will study and report on ways to address issues affecting Black men and boys, and a criminal justice commission, modeled on the 9/11 Commission, will recommend criminal justice reforms.

Now, the Senate has already passed this commission, and we have done it unanimously. We sent it to the House and they have failed to act.

Our bill also requires police training on deescalation tactics and alternatives to the use of force.

I believe the JUSTICE Act is important legislation. I would like to see it on the floor in the very near future.

Still, there are limits to Federal action. Law enforcement is governed by State laws and is largely managed by local officials. State and local leaders must step up and do their part.

With the JUSTICE Act, we have taken an essential step forward in what we all realize is a necessary process.

So I urge all my colleagues—on both sides of the aisle—to support this plan for necessary justice reform.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. CORNYN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. CORNYN. Mr. President, I ask unanimous consent to complete my remarks before the lunch recess.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. CORNYN. Mr. President, as the Nation discusses the need for police reforms, our work in the Senate to deliver those reforms is ramping up. This afternoon, the Judiciary Committee, on which the Presiding Officer and I serve, will be holding a hearing to examine the use of force and community relations.

I am glad that our witnesses include two outstanding Texas witnesses—Erin Nealy Cox, the U.S. Attorney of the Northern District of Texas, and Chief Art Acevedo, Chief of the Houston Police Department and also the chair of the Major Cities Chiefs Association. I know they will be able to help shed some light on the changes that need to be made to restore trust between officers and the communities they serve, and I appreciate their willingness to share their perspectives with us.

It is important, I believe, for us to hear from a variety of sources as we debate what those potential reforms might look like: those who represent law enforcement, community and faith-based organizations, and the men and women who get up every day and put on the uniform to protect us by serving in law enforcement agencies. We need to hear from all of them.

In recent weeks, African Americans across the country have shared their experiences with law enforcement—stories we have heard of being profiled, discriminated against, targeted, and having a negative perception of law enforcement that even in dangerous situations they are afraid to call the police. Really, the way it was described in a meeting I had on Friday in Dallas by Chief Hall and Sheriff Brown is that they called it a wedge between law enforcement and some minority communities for lack of trust. John Crusoe, the district attorney, said because of the number of offenses for which minorities are arrested and prosecuted, it seemed to be disproportionate. They have the impression that somehow they are being targeted unfairly. We know that even our friend, TIM SCOTT, an African-American Senator, has said he knows what it is like to be driving while Black and to be stopped, where somebody who looks like me would not be stopped by the police.

We need to work our way through this. We know that Black parents have spoken openly about their concerns for their own sons and daughters and that lessons that they have given them of what they should do if pulled over by the police: turning off the car, rolling down the windows, placing their hands on the dashboard, and explaining what they are doing before reaching in their pocket for their driver's license.

Well, the lack of trust between law enforcement and our communities isn't unfounded, but it is unsustainable. In order for every American to not only be safe but feel safe, we need to enact long overdue reforms to our Nation's police departments. Mostly, these are not prescriptive in nature. These are in the realm of being an assistance to our law enforcement officials and not somehow assuming, as some do, that racial discrimination is rampant among law enforcement. I don't believe that. I don't believe that there is systemic racial discrimination in our law enforcement officers where they target minorities. I just don't believe that.

I do believe there are some bad actors who abuse their power and violate even the status of their own police department. And, unfortunately, in the example of the officer who had his knee on the neck of George Floyd, we know that there have been 17 separate complaints made against him in their internal affairs division there, but, apparently, neither the police department nor the city leadership—the mayor and city council—did anything about it, or if they did, we have not yet learned about it.

Well, we know that Senator SCOTT has been leading the effort in our conference to try to come up with a reasonable package of legislative responses, and it is really kind of surprising to me to see the overlap between the political parties and also our colleagues in the House.

Now, there are some things that I don't think we should do. For example, there are some who call for reforming qualified immunity, a judicial doctrine that protects the discretionary acts of a government employee or government official and holds them financially responsible only if they violate an established standard. Well, the same legal doctrine that protects police officers protects school teachers as well, and I will bet that a number of our colleagues who are calling for wholesale reform of qualified immunity didn't even know that.

Well, as I said, it is important that we hear from a variety of voices, and that is why I appreciate Mayor Johnson in Dallas hosting a roundtable with a group of law enforcement leaders and faith leaders who are committed to delivering real change. I spent a few minutes talking about what we are doing here in Washington, but I spent most of my time listening. I think that is something we need to do more of—to listen. We are all pretty good at talking, but we need to do more listening.

Everyone agrees that there is a problem—a big one—that will not go away if we ignore it. As the mayor acknowledged, the fact that everyone agrees that the status quo is not sustainable represents progress in and of itself. That is the first step toward solving a problem—recognizing that you have one. But now it is time to turn that consensus into collective action.

We know that many of the changes that need to be made will happen at the local and State level. At the U.S. Congress, we have a Capitol Police, but we don't control what happens in the Minneapolis Police Department or the Dallas Police Department or San Antonio or any other locally run and controlled law enforcement agency. We know that they are not all the same. Most major law enforcement agencies, like the one in Dallas, have deescalation training. It has been mandatory for years.

So when people talk about doing that and mandating it here from Washington, the fact is that most of our major law enforcement agencies are already doing a lot of these things, like banning choke holds, for example. One of the participants in our roundtable was Frederick Frazier, a longtime law enforcement officer who actually trains officers in deescalation.

More recently, the Dallas Police Department banned choke holds, as I mentioned, and any use of force intended to restrict a person's airways. They have also embraced a policy requiring officers to intervene in a situation where use of force is unnecessary and inappropriate. For example, if a law enforcement officer sees another officer use excessive force or dealing with that use of force inappropriately, the Dallas Police Department requires the other officers who witnessed that to intervene—something we did not see happen in Minneapolis.

During our discussion, Chief Hall also discussed steps they are taking to release body camera or dash camera footage and overall increased transparency. Similar changes are being made in cities across Texas and across the country, and I think transparency is an important area where changes can and should occur. A one-size-fits-all Federal approach to policing would be, I think, a mistake.

But here in Washington, we do have a role to play. We have both the opportunity and the responsibility to ensure that America's police departments are helping public safety and are not considered to be a threat by the communities they serve. The bill being led by Senator SCOTT would take major steps in the right direction. While the final details are being ironed out, our discussions have included a range of proposals that would address everything from training to transparency, to minority hiring.

I am not interested in passing a bill for the sake of just checking a box and saying we have done something significant. That route is sure to lead to even more problems. I am interested in delivering real reforms, as I am confident all of my colleagues here in the Senate are, and I think our legislative efforts can produce a product that will be responsive to the crisis we are now experiencing—a crisis largely of trust.

Of course, for those changes to reach communities in Texas, they also need to be able to pass not only a Republican-controlled Senate but a Democratic-controlled House and be signed by President Trump, and I believe the legislation we will unveil tomorrow could deliver in each of those bodies. I think each of us has a responsibility to take action to repair and address the fear, the anger, and the lack of trust between law enforcement and our communities, and this bill does an important first step.

I am proud to have worked with Senator SCOTT and all of our colleagues in this effort, and we all will make our contribution before we are through. I am looking forward to sharing those details tomorrow during the press conference.

With that, I yield the floor.

RECESS

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess until 2:15 p.m.

Thereupon, the Senate, at 12:31 p.m., recessed until 2:15 p.m. and reassembled when called to order by the Presiding Officer (Mrs. CAPITO).

TAXPAYER FIRST ACT OF 2019—Continued

H.R. 1957

Mr. GARDNER. Madam President, yesterday, we had a series of successful votes to move forward on the Great American Outdoors Act. I am excited with the votes we have taken last week and the votes last night and that we will finally move to passage of the legislation, the Great American Outdoors Act, tomorrow. I urge my colleagues to support this bill.

We had the opportunity over the last several weeks—last week, in particular—to talk about what it means for every State in the country, what it means for every county in the country, and the significant opportunity for conservation, which is the crown jewel of conservation programs and, of course, our national parks. It is not just national parks, of course. It is our forests, and it is our BLM grounds and the efforts we have with the Bureau of Indian Education.

I thought I would talk specifically about some Colorado projects today and what the Land and Water Conservation Fund has meant for Colorado.

This is a photo of Wilson Peak in Colorado. It rises over Telluride in southwest Colorado. Wilson Peak is one of the 54 mountains in Colorado that top 14,000 feet. Climbers and hikers eager to summit the 14,500-foot peak, located in the Lizard Head Wilderness, have been frustrated for years by key land access routes being blocked, which made it impossible to get to. In addition, Wilson Peak long remained the last ''fourteener'' in Colorado without public access.

Through 9 years, very complex land exchange negotiations, and work to assemble suitable exchange properties and funding, the Trust for Public Land purchased 25 patented mining claims, including the summit and key portions of the main summit trail from multiple private owners. In 2011, the Trust for Public Land formally transferred ownership of land to the U.S. Forest Service, ensuring in perpetuity the public access to Wilson Peak summit.

If you go to the next one, this is a photograph of the Big Thompson River. In 1976, rains began to pour near Estes Park, CO, and caused one of the biggest natural disasters in Colorado's history. A remarkable 12 inches of rain fell in about 4 hours. As a reminder, there are areas of Colorado that only get about 14 inches of moisture a year. A remarkable 12 inches of rain fell in about 4 hours, bringing the Big Thompson River to 19 feet above its normal level, and sending 31,000 cubic feet per second of water racing downstream, down the canyon, carrying with it everything and anything in its path. The flood claimed 145 lives, 418 homes, 52 businesses, and caused millions and millions of dollars of damage in 1976.

In the aftermath of the disaster, Larimer County recognized that simply rebuilding new homes in harm's way within the floodway didn't make sense. The county turned to the Land and Water Conservation Fund as an important part of the solution. With just over $1 million from Land and Water Conservation Fund and some other matching resources, the county acquired a number of properties along the Big Thompson River, which provided

new outdoor recreation opportunities to residents and visitors on 156 acres of land along the river, highlighted by four new county parks. This has been an incredible recreation opportunity, but it has certainly led to greater safety for Coloradans.

The Blanca Wetlands Area of Critical Environmental Concern is another incredible area of Colorado. The Bureau of Land Management has benefited. After decades of water overappropriation caused the lowering of the valley's water table, the rapid disappearance of wetlands and plummeting bird population, State and Federal agencies initiated the Wetland Restoration Effort in the 1960s, including this wetlands area. You can see the work we have done with the Land and Water Conservation Fund on this.

Red Mountain Pass is another example. It is a multiphased project completed by the Trust for Public Lands and Colorado Partners with funding from the LWCF. It is a scenic property lying above the town of Ouray that forms portions of the panoramic backdrop used by motorists from Highway 550's Red Mountain Pass and on Ouray and San Juan Counties' rugged alpine loops. It is an incredible experience. You can see the work we have done with it here.

If you go to the Uncompahgre National Forest, over the years, LWCF has invested nearly $27 million into the Uncompahgre[-]San Juan National Forest of Colorado to protect this valley, which is a 10-year-long process that ultimately resulted in the conservation of thousands of acres surrounding the town. It is incredible for recreation and preservation—this critical habitat and environmental treasure and conservation accomplishment for all of the country.

I also want to point out some of the great news about this bill back in Colorado.

Madam President, I ask unanimous consent to have printed in the RECORD this article from the Durango Herald, which was written on June 13, and an article from the Denver Post, dated June 9, 2020.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

[From the Durango Herald, June 13, 2020]

'HOLY GRAIL' CONSERVATION BILL ADVANCES IN U.S. SENATE

(By Jacob Wallace)

A new bill funding maintenance and improvement projects for public lands is gaining steam in the U.S. Senate.

The Great American Outdoors Act would permanently fund the Land and Water Conservation Fund, a trust set up by the U.S. government to pay for park maintenance projects, and establish a consistent source of revenue for park conservation that would reduce years of maintenance backlog throughout public lands.

The bill, spearheaded by Sen. Cory Gardner, R–Colo., and Sen. Joe Manchin, D–W.Va., passed on an 80–17 vote Monday, allowing it to proceed to floor debate in the Senate.

''This is a historic opportunity for us, in a bipartisan fashion, to pass the most significant conservation measure in over 50 years,'' Gardner said.

More than 800 conservation and outdoor recreation groups have signed on to a letter published in March supporting the bill, arguing that it was a permanent fix to a long-neglected issue. The Outdoor Alliance, one of the nonprofit organizations that signed the letter, pushed to expand the legislation to include the Bureau of Land Management and other public agencies in addition to the National Park Service.

''This is definitely the biggest investment in parks and public lands that we've seen in years, in decades,'' said Tania Lown-Hecht, spokeswoman for the Outdoor Alliance. ''This is not to be underestimated.''

If passed, the bill would mandate $1.9 billion in money raised from offshore oil and gas leases, and other energy projects would go toward outdoor maintenance and recreation projects through 2025. It would also fully fund the about $900 million budget of the LWCF, with the money split between the National Park Service, U.S. Forest Service, Fish and Wildlife Service, Bureau of Land Management and Bureau of Indian Education, with the bulk of the money going to national parks.

Lown-Hecht and others have been making the pitch that conservation spending is a strong job creator: One study found that every $1 million spent on the LWCF could support between 16.8 and 30.8 jobs.

''It will put people to work in public lands, and that's an investment that will bring back more than a dollar for every dollar spent,'' Lown-Hecht said.

The LWCF was created in 1964 and was based on the idea that the depletion of one natural resource, offshore oil and gas, should be offset by the care of other natural resources protected as parks.

Since that time, however, Congress has often failed to appropriate the full amount of money that the fund could have received each year, creating a logjam of maintenance projects in national parks across the country that have totaled to more than $30 billion in deferred maintenance, according to the fund's own account.

The bill gained momentum after Sens. Gardner and Steve Daines, R–Mont., visited the White House in March to convince President Donald Trump to support the bill. Since then, the bill has earned the attention of Senate Majority Leader Mitch McConnell as well as other Republican senators eager to support a bipartisan bill during an election year.

Gardner also noted that the timing of the bill is especially prescient as rural communities in Southwest Colorado and elsewhere have been hard hit by a drop in tourism and job losses during the pandemic. Advocates agree, arguing park projects could be part of a broader plan for recovery.

''We see this as a way to not only address the maintenance backlog on these lands but to put jobs on the ground for people where they've lost them,'' said Tom Cors, policy director for The Nature Conservancy.

The Senate will continue to debate the bill throughout the week. Sen. Michael Bennet, D–Colo., has also announced his support of the bill. If it passes, the House of Representatives will then have the option to vote on an identical companion bill introduced last week.

Cors is cautiously optimistic about the bill's chances, saying it is a conservation win 55 years in the making.

''We've been working on this for years and years and this is the holy grail of the conservation community,'' Cors said. ''We're ecstatic that this is happening''

[From the Denver Post, June 9, 2020]

WITH CORY GARDNER LEADING THE CHARGE, SENATE TAKES UP GREAT AMERICAN OUTDOORS ACT

(By Bruce Finley)

Colorado senators are leading a congressional push to pass landmark conservation legislation that would deploy $9.5 billion to maintain overrun national parks and permanently direct $900 million a year for outdoor recreation on public lands.

President Donald Trump has said he will sign this Great American Outdoors Act if lawmakers get it to his desk. Senators this week took up the issue, aiming for a vote next Tuesday, and around 200 House members have said they'll support similar legislation.

Conservationists for decades have prioritized these measures as crucial steps to ensure healthy public lands, increasingly seen as essential for a booming recreation industry that has become an economic mainstay, especially in Colorado and the West.

Congress has failed to provide the full $900 million a year for land acquisition and other spending that the 1965 Land and Water Conservation Act requires. Lawmakers have approved spending between $255 million and $450 million a year since 2008 and only twice in 55 years provided the full $900 million.

National Park Service officials have estimated deferred maintenance as land and facilities deteriorate will cost more than $20 billion.

''We've been trying for decades to get this done. Now we have an historic window to actually achieve it. This is a moment where we need to capitalize to get this great achievement accomplished,'' Sen. Cory Gardner said in an interview Tuesday.

On March 3, Gardner, of Yuma, went to the White House and, in a discussion with Trump, showed a photo he'd taken on his iPhone of the Black Canyon of the Gunnison National Park in Colorado. Trump said it was beautiful. Gardner also said he pointed to a portrait of President Teddy Roosevelt, a leading conservationist, in suggesting that Trump support could lead to a major achievement. He said Trump gazed up at the portrait and said he would sign the legislation.

Sen. Michael Bennet of Denver is one of some 60 Senate sponsors of the Great American Outdoors Act but is proposing amending it to include the Colorado Outdoor Recreation and Economy (CORE) Act, which would protect about 400,000 acres of public land in Colorado, establishing new wilderness and recreation opportunities.

''This week, we have an opportunity to secure new protections for public lands in Colorado that were left out of the public lands bill Congress passed last year,'' Bennet said, urging colleagues to incorporate the CORE Act ''or to quickly pass'' it on its own.

Gardner said, regarding the amendment, that Bennet ''may try to get a vote on that. That is his bill. The GAOA certainly will help the CORE Act.''

A June 3 letter to congressional leaders from six former Department of Interior secretaries, including Ken Salazar (2009–2013) and Gale Norton (2001–2006) of Colorado, urged swift passage of the GAOA ''without any amendments.''

This push to provide permanent full funding for the Land and Water Conservation Fund and step up public lands maintenance reflects years of wrangling in Congress to support outdoors recreation on public land.

The Land and Water Conservation Act, passed in 1965, says money should go to federal agencies to acquire land and to states for acquisition of land and waters and to develop recreation facilities.

The Great American Outdoors Act combines two previous bills that each had strong majority bipartisan support. One part would provide full and permanent funding of $900 million each year, the amount the fund is authorized to receive, from offshore oil and gas revenues—not tax dollars. The other aims for parks restoration by investing $1.9 billion annually for the next five years to maintain land managed by the National Park Service, Forest Service, Fish and Wildlife Service, Bureau of Indian Education and Bureau of Land Management.

Conservation groups have welcomed the bill.

''This will be a remarkable gift for the future and also is important for the present. It's going to put up to 100,000 people to work each year fixing our national parks,'' said Tracy Stone-Manning, associate vice president for public lands at the National Wildlife Federation, a conservation group with 6 million members.

Beyond national parks and forests, the congressional spending each year could help cities such as Denver and Missoula, where urban voters are pushing leaders to acquire more land for parks and other open space.

''Our parks and open space set-asides need to grow with our population. We've seen, during the pandemic, the importance of the ability to be safely outside in parks,'' Stone-Manning said.

''Denver could identify property that is worth acquiring and use Land and Water Conservation Fund dollars to help acquire it,'' she said. ''Humans have to have access to nature for our health, and we have a long-term need to protect our larger landscapes.''

Mr. GARDNER. Madam President, this article is entitled the '''Holy Grail' conservation bill advances in U.S. Senate.'' If you take a look at the article, it quotes conservationists and people across the country who are working on the legislation, and it ends with this:

''We've been working on this for years and years and this is the holy grail of conservation community,'' Cors said. We're ecstatic that this is happening.

That is from a member of the Nature Conservancy.

The article from the Denver Post talks about the legislation and, again, the conservation community that supports the legislation.

''This will be a remarkable gift for the future and also is important for the present. It's going to put up to 100,000 people to work each year fixing our national parks,'' said Tracy-Stone Manning, associate vice president for public lands at the National Wildlife Federation, a conservation group with 6 million members.

It goes on to point out ''cities such as Denver and Missoula, where urban voters are pushing leaders to acquire more land for parks and other open space.''

This is an opportunity for us to achieve those goals in our urban areas.

Finally, Madam President, I ask unanimous consent to have printed in the RECORD a letter from a number of Coloradans in support of the Great American Outdoors Act sent to Congress a few weeks ago.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

DEAR SENATORS & REPRESENTATIVES: As Colorado-based businesses and organizations, we urge you to support our state's great outdoors through full funding of the Land and Water Conservation Fund {LWCF}. We ask that you lend your full support to passing the Land and Water Conservation Fund Permanent Funding Act, so that our nation's most successful conservation program can continue its long track record of success.

LWCF is built on a simple idea: that a portion of offshore drilling fees should be used to protect important land and water for all Americans. Through its over 50-year history, LWCF has invested more than $278 million in Colorado's public lands and outdoor recreation. Funds have gone toward public lands including Colorado crown jewels like the Black Canyon of the Gunnison and Rocky Mountain National Parks, toward healthy working forests through the public-private partnerships of the Forest Legacy Program, and toward local parks and trail projects in communities across the state.

These investments not only benefit the public lands and outdoor opportunities that are a valued part of our Colorado way of life, but also promote tourism and the outdoor recreation industry which are among our state's most important economic drivers. The Outdoor Industry Association reports that active outdoor recreation in Colorado generates $28 billion in consumer spending, supporting 229,000 Colorado jobs. Our great outdoors isn't just good fun—it's good business.

Congress last year passed permanent reauthorization of the LWCF; now it is time to ensure that it is fully funded now and into the future. Please support passage of the Land and Water Conservation Fund Permanent Funding Act, to benefit Colorado's vital outdoor recreation economy and the quality of life we enjoy as Coloradans.

Sincerely,

David Nickum, Executive Director, Colorado Trout Unlimited; Suzanne O'Neill, Executive Director, Colorado Wildlife Federation; Don Holmstrom, Co-chair, Backcountry Hunters & Anglers; April Archer, CEO, SaraBella Fishing LLC; Ben Kurtz, President, Fishpond; David Dragoo, President, Mayfly Outdoors; Julie Mach, Conservation Director, Colorado Mountain Club; Matt Rice, Director, Colorado River Basin Program, American Rivers; Corinne & Garrison Doctor, Co-owners, Rep Your Water; Henry Wood, VP of Sales & Marketing, Upslope Brewing; Randy Hicks, Owner, Rocky Mountain Anglers, Boulder; Buck Skillen, President, Five Rivers Chapter, Durango; Mark Seaton, President, San Luis Valley Chapter, Alamosa.

Michele White, Owner, Tumbling Trout Fly Shop, Lake George; Pete Ashman, President, Grand Valley Anglers, Grand Junction; Johnny Spillane, Owner, Steamboat Fly Fishers, Steamboat Springs; Erik Myhre, Founder & President, Basin + Bend, Evergreen; Allyn Kratz, President, Pikes Peak Chapter, Colorado Springs; Christopher Smith, Board President, Left Hand Watershed Group, Longmont; Dan Chovan, President, Yampa Valley Fly Fishers, Steamboat Springs; Nick Noesen, President, Eagle Valley Chapter, Eagle; Mike Larned, President, Alpine Anglers, Estes Park; Brandon Mathis, Marketing Coordinator, Backcountry Experience, Durango; Tucker Ladd, President/Owner, Trouts Fly Fishing, Denver; Brendan Besetzny, President, Boulder Flycasters; Mike Kruise, Owner, Laughing Grizzly Fly Shop, Longmont.

Mickey McGuire, President, Rocky Mountain Flycasters, Ft. Collins; Barbara Luneau, President, St. Vrain Anglers, Longmont; Steve Wolfe, President, Southern Colorado Greenbacks Chapter, Pueblo; Chris Keeley, Principal, Anglers All, Littleton; David Leinweber, Owner, Angler's Covey, Colorado Springs; Trent Hannafious, President, Gunnison Gorge Anglers, Montrose; Jack Llewellyn, Executive Director, Durango Chamber of Commerce; Rob Schmidt, Manager, Duranglers, Durango; Grant Smith, Owner, Riverwalk Theater, Edwards, Edwards Supply Company, Edwards; Kirk Klancke, President, Colorado River Headwaters Chapter, Fraser; Cole Glenn, Manager, San Juan Angler, Durango; Karla Baise, CSR Community Engagement Specialist, Odell Brewing Company, Ft. Collins; Jake Jones, Managing Director, Eleven Outdoors, Crested Butte.

Charlie Craven, Owner, Charlie's Fly Box, Arvada; Jackson Streit, Owner, The Mountain Angler, Breckenridge; Kyle Perkins, Fishing Manager, Golden River Sports, Golden; Allen Adinoff, President Cutthroat Chapter, Littleton; Jeff Poole, President, North Fork Ranch Guide Service, Shawnee; Ed Calmus, President, West Denver Chapter, Golden; Bill Dvorak, Owner, Dvorak Expeditions, Nathrop; Greg Hardy, President, Gore Range Anglers, Silverthorne; Dennis Steinbeck, President/Co-owner, Blue Quill Angler, Evergreen; Jeremy Dakan, Owner, Pine Needle Mountaineering, Durango; Shaun Hargerave, Partner, Boulder Boat Works, Carbondale; Peter Stitcher, Owner, Ascent Fly Fishing, Littleton; Greg Felt, Chaffee County Commissioner.

Mr. GARDNER. Madam President, this is signed by David Nickum, executive director of Colorado Trout Unlimited; Suzanne O'Neill, executive director of Colorado Wildlife Federation; and Colorado Mountain Club, Backcountry Hunters & Anglers, Odell Brewing Company in Fort Collins, on and on, talking about the LWCF being built on a simple idea and the fact that we can help restore our national parks and our greatest treasures with the combined efforts of the Land and Water Conservation Fund and the Great American Outdoors Act in this legislation.

As Members prepare for this vote tomorrow, I hope they will consider the impact this will have on generations to come.

Yesterday, we talked about a letter written by the great-grandson of President Teddy Roosevelt. The fact that we are continuing today that legacy to build on the conservation and the environmental successes that started well over 100 years ago in this country and our public lands is an incredible treasure that this country has and that we can build on for generations to come.

I yield the floor.

The PRESIDING OFFICER. The Senator from New York.

JUSTICE IN POLICING ACT

Mrs. GILLIBRAND. Madam President, I rise to speak about an overwhelming and urgent need to reform the way our country approaches policing. The death of Eric Garner, Michael Brown, Breonna Taylor, George Floyd, Tony McDade, Andrew Kearse, and countless others are deeply disturbing and, most unfortunately, nothing new.

The truth is, for every name we know, there are countless more that we don't. This type of oppression and brutality has been part of Black-American lives for far too long. It should not happen, and in the horrific instances when it does, it should not take a viral video

and a nationwide protest to get some measure of justice.

We are at a moment of moral reckoning in this country, and we must take action. Our country needs bold reforms to address the systemic and institutional racism that plagues our criminal justice system. The Justice in Policing Act of 2020, introduced by my colleagues Senators BOOKER and HARRIS, would make crucial and much needed changes to address our Nation's policing practices and policies. We should pass this bill as soon as possible.

We were reminded, sadly, of the urgency of this legislation on Friday, when Rayshard Brooks was shot in the back by police in Atlanta. It is clear that we don't have time to waste. Lives are on the line today. We need reform now. We need accountability, and we need it to happen now.

The Justice in Policing Act of 2020 would ban the no-knock warrant police used to enter Breonna Taylor's apartment before killing her. It would prevent unnecessary deaths like Rayshard Brooks by requiring that officers use deescalation techniques and resort to deadly force only as the last resort.

It also includes a provision that I worked on with Congressman HAKEEM JEFFRIES, the Eric Garner Excessive Force Prevention Act. It would ban the types of choke holds and carotid holds that killed George Floyd and Eric Garner by making the use of these dangerous maneuvers a Federal civil rights violation.

Black Americans are killed by police at more than twice the rate of White Americans, despite accounting for less than 13 percent of our population. This legislation would not only end racial and religious profiling, but it would mandate training on racial bias and on an officer's duty to intervene.

The bill would also improve accountability by requiring Federal uniform police officers to wear body cameras and require State and local law enforcement to use existing Federal funding to ensure their officers use body cameras as well.

Too often, after these unthinkable incidents of brutality, we learn that law enforcement officers responsible had a history of misconduct. This bill would collect better and more accurate data on police misconduct and the use of force and create a national registry that would track officers' complaint records throughout their careers. And it would improve the use of pattern and practice investigations into unconstitutional and discriminatory policing practice at the Federal, State, and local levels.

The fact is that 99 percent of killings by police do not result in any charges. Convictions on those charges are even rarer. This bill would amend the Federal criminal statute that has made it extremely difficult to prosecute law enforcement officers.

Finally, the bill would take the long overdue step of making lynching a Federal crime. After the killing of Ahmaud Arbery, it is clear that this problem must be addressed. We can never bring back those who we have been lost in these horrific killings or even begin to make these families whole. But we can and must take steps toward making sure that these tragedies never happen again.

An Executive order that merely restates the law that Congress passed in 1994 is clearly not enough. Establishing justice is at the heart of the preamble of our Constitution, and we must deliver on the promise that we made as a nation. We must match the efforts of those working to change the system from the outside with the efforts of those who are changing the system from the inside, with efforts to change it for good. We have a lot of work ahead of us, and this bill will ensure that we start on the right foot.

I would like to read a passage of Scripture that informs me on this issue. Matthew 25, verse 44:

> They also will answer: Lord, when did we see you hungry or thirsty or a stranger or needing clothes or sick or in prison, and did not help you?
>
> He will reply: Truly, I tell you, whatever you did not do for one of the least of these, you did not do for me.
>
> Then, they will go away to eternal punishment but the righteous to eternal life.

We have a moral obligation. We have an obligation given our shared commitment to upholding the Constitution. We have a moral responsibility to not let this moment pass.

Who are we? What defines us? What kind of people are we? If we refuse to act now when the country is raging—rightfully so—we decline to do what is right.

I yield the floor.

The PRESIDING OFFICER. The Senator from Illinois.

REMEMBERING LARRY WALSH, SR.

Ms. DUCKWORTH. Madam President, earlier this month, Illinois lost a local legend after a courageous 5-year battle against cancer.

A lifelong Illinoisan and a 50-year public servant, Larry Walsh, Sr., was known for his booming voice and big smile. He was a warm, welcoming presence in my life and the lives of his family, friends, and countless others.

Larry, much like the communities he would come to represent on the local, county, and State levels, embodied the spirit and ethos of Illinois. He was born in Elwood, into a family with deep roots in the farming community. Dedicating his early life to the family trade, he graduated Joliet Junior College, class of 1968, earning his associate's degree in agriculture.

In 1970, at only the age of 21, he made his foray into politics, winning an election to the local school board. Just 3 years later, he was elected as Jackson Township supervisor—a position he took great pride in and continued to hold until December of 2004.

He was first elected to the Will County Board in 1974—a county he would ultimately lead as county executive for the last 16 years of his life.

Will County is a great cross-section of Illinois. It is where the farmlands of Central and Southern Illinois converge with the industry of Chicago and Joliet. It is not only home to over 100,000 acres of farmland, but it is also a booming transportation hub anchored by North America's largest inland port, the CenterPoint Intermodal Center—a project that Larry helped to land. Larry was one of the few Illinois politicians who could credibly represent and be an advocate for both Illinois's farming community and understand the region's need for industrial expansion.

Throughout his career in public service, he was steadfastly committed to bipartisanship—an absolute must for a leader who would help guide Will County's development into the fastest growing county in our State.

Before he returned to the county board in 2004, Larry served in the Illinois Senate, representing the 43rd District. In Springfield, he befriended a fellow freshman Senator and seatmate on the floor, Barack Obama. Their friendship would prove critical, as Larry helped introduce him to the farming community in Will, Kankakee, and Iroquois Counties and then became the first State senator to endorse him in what was then considered a longshot run for the U.S. Senate in 2004.

Larry's list of accomplishments is quite long and spans a crucial time in Will County's development. During Larry's time in the State senate and his return to lead the Will County Board, the county experienced a 53-percent growth in size and now is the fourth largest county in the State. Throughout his 16-year tenure as Will County executive—the longest Will County executive tenure ever—he redoubled his commitment to bipartisan, responsible community development. In addition to helping land CenterPoint Intermodal, he helped establish the Midewin National Tallgrass Prairie Reserve, championed the construction of a new Will County sheriff's office law enforcement center, and broke ground on the new Will County Courthouse that will open this fall.

Beyond elected service, he remained deeply rooted in and dedicated to his community. He was a member of the Joliet Exchange Club, the Elwood Lions Club, Friends of Hospice, and many local chambers of commerce. He passionately contributed to local charities, like MorningStar Mission, Make-A-Wish Foundation, Boy Scouts of America, and Cornerstone, among many others.

He was a lifelong parishioner of St. Rose of Lima Catholic Church in Wilmington. He attended daily Mass and was a Eucharistic minister and a member of the Knights of Columbus.

I can't begin to do justice to the legacy that Larry leaves behind, but to his wife, Irene, of 50 years, his six children, and all the rest of his loved ones, please know how much we all cared for

and how much we all respected Larry and how greatly he will be missed.

Thank you.

I yield back.

The PRESIDING OFFICER. The Senator from Tennessee.

SENATE LEGISLATIVE AGENDA

Mrs. BLACKBURN. Madam President, as I do every week, this past weekend, I went back to Tennessee. I will tell you, it really did my heart a lot of good to see people who are out and about and enjoying beautiful weather and enjoying our beautiful State. Nashville is beginning to open the doors of our music venues. Our church bells are ringing, people are attending services, and our hikers are back exploring our beautiful State parks and the Smokies.

Here on Capitol Hill, though, things really do look a lot different. When we come back into town, we still return to empty offices and emptier hallways. I will tell you, I have had a lot of people ask me: What in the world is happening in Washington these days? Well, even though the Chamber will look empty to those who are watching on TV, I want everybody who is watching to know that the Senate is here, and the Senate is at work.

Before the pandemic sent everyone home, we had made great progress repairing our Nation's judiciary and filling empty seats at important Federal agencies. The Senate has placed 198 well-qualified, constitutionalist judges on the Federal bench. This week, we are going to hit that 200 number. We will be considering more of our district court nominations in coming weeks.

We are also preparing to consider the nomination of a former member of our House Republican Study Committee team. Russ Vought has been serving as OMB's Acting Director since January of 2019, and soon we will decide whether to make that position permanent. I will tell you, I think Russ is more than worthy of that honor, and I encourage my colleagues to support his confirmation when the time comes for that vote.

CHINA

At this point, we know for a fact that the Chinese Government withheld information about the novel coronavirus that could have spared the American people a lot of heartache and even prevented the COVID–19 outbreak from escalating into a global pandemic. Their lies have already had catastrophic effects on the American economy, on loss of life, on people's livelihoods, and on their well-being. But I think it is important to reiterate that this kind of behavior from China is not new. It is not new. It is just newly realized.

For a long time now, corporations, educational institutions, and even Members of this body have been happy to ignore the problem because of profits. I have spoken at length about the many ways that Big Tech's entanglement with Beijing has jeopardized our privacy, intellectual property, and our Nation's security.

Everyone here is familiar with the Chinese Communist Party's shameless use of political violence against the Uighurs, the Tibetans, and the Hong Kong freedom fighters, but what many don't know is that the Chinese Communist Party has been using their Confucius Institute program to fly under the radar at American colleges and universities and to suppress information about the true nature of the Chinese Government's role.

These so-called institutes are pitched as opportunities to promote cultural studies, but in reality they are propaganda mills directly funded by the Chinese Communist Party. By design, they threaten academic liberty and free speech. But somehow Beijing has managed to place 72 Confucius Institutes on American college campuses. It is hard to believe, but 72 of our Nation's colleges and universities are hosts to these Chinese Communist Party-funded Confucius Institutes. They even say that this is part of their soft power and their propaganda.

American students deserve to know who is really talking to them at these institutes. Last week, we took the first step toward protecting the integrity of our universities by passing the bipartisan CONFUCIUS Act by unanimous consent. The bill would grant full managerial authority to the universities that host Confucius Institutes and prohibit the application of any foreign law on any campus of a host institution. This is one piece of a larger effort to expose the Chinese Communist Party's efforts to pollute the minds of our young people. We thank Senator KENNEDY for his leadership in passing this legislation last week.

Earlier this year, I introduced the Transparency for Confucius Institutes Act, which would require ''program participation agreements'' between these institutes and their American hosts to address the way Chinese officials influence what can and cannot be taught in these programs.

I also led a group of colleagues in urging Education Secretary Betsy DeVos to increase agency oversight of these programs so that we—the American people, the American taxpayer, students, and their families—know what is being taught and the programs that are being offered in these institutes and, also, know who is paying for this.

Since March, life in America has changed dramatically, but the challenges and threats this country faces have not gone away. Because of that, it is important that, yes, we keep our attention on these issues that are still out there. Even though our attention has been placed on the crisis and the matter at hand, we still have a duty to govern and to protect the country and her institutions from destructive influences at home and those that come from far away.

I encourage my colleagues to remember this and to stay focused as we begin another week of negotiations and votes.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. HAWLEY. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mrs. BLACKBURN). Without objection, it is so ordered.

BOSTOCK V. CLAYTON COUNTY, GEORGIA

Mr. HAWLEY. Madam President, I rise today to offer a few thoughts about the Bostock case handed down by the Supreme Court yesterday. I have it here. I have now had a chance to read the case, the decision by the majority of the Court, and the two dissenting opinions.

I have to say I agree with the news reports that have said that this is truly a seismic decision. It is truly a historic decision. It is truly a historic piece of legislation.

This piece of legislation changes the scope of the 1964 Civil Rights Act. It changes the meaning of the 1964 Civil Rights Act. It changes the text of the 1964 Civil Rights Act. In fact, you might well argue it is one of the most significant and far-reaching updates to that historic piece of legislation since it was adopted all of those years ago.

Make no mistake, this decision, this piece of legislation will have effects that range from employment law to sports to churches.

There is only one problem with this piece of legislation. It was issued by a court, not by a legislature. It was written by judges, not by the elected representatives of the people. And it did what this Congress has pointedly declined to do for years now, which is to change the text and the meaning and the application and the scope of a historic piece of legislation.

I think it is significant for another reason as well. This decision, this Bostock case and the majority who wrote it, represents the end of something. It represents the end of the conservative legal movement or the conservative legal project as we know it. After Bostock, that effort as we know it, as it has existed up to now, is over. I say this because if textualism and originalism give you this decision, if you can invoke textualism and originalism in order to reach a decision, an outcome fundamentally that changes the scope—meaning and application of statutory law—then textualism, originalism, and all of those phrases don't mean much at all.

Those are the things we have been fighting for. That is what I thought we had been fighting for. Those who call ourselves legal conservatives, if we have been fighting for legalism and textualism and this is the result of that, then I have to say that it turns out we haven't been fighting for very much, or maybe we have been fighting for quite a lot, but it has been exactly the opposite of what we thought we were fighting for.

This is a very significant decision. It marks a turning point for every conservative, and it marks a turning point for the legal conservative movement. The legal conservative project has always depended on one group of people in particular, in order to carry the weight of the votes, to actually support this out in public, to get out there and make it possible electorally, and those are religious conservatives. I am one myself.

Evangelicals, conservative Catholics, conservative Jews—they are the ones—let's be honest—they are the ones who have been the core of the legal conservative effort. The reason for that is—it dates back decades now, back to the 1970s. The reason for that is these religious conservatives are from different backgrounds, but what they have consistently sought together was protection for their right to worship, for their right to freely exercise their faith, as the First Amendment guarantees, for their right to gather in their communities, for their right to pursue the way of life that their scriptures variously command and that the Constitution absolutely protects. That is what they have asked for, that is what they have sought all these years.

Yet, as to those religious conservatives, how do they fare in yesterday's decision? What will this decision mean, this rewrite of Title VII? What will it mean for churches? What will it mean for religious schools? What will it mean for religious charities?

Well, in the many pages of its opinion—33 pages to be exact—the majority does finally get around to say something about religious liberty on one page. What does it say? Here is the substance of the Court's analysis: How ''doctrines protecting religious liberty interact with Title VII,'' as reinterpreted now by the Court, ''are questions for future cases.'' Let's have that again. How ''doctrines protecting religious liberty interact with Title VII are questions for future cases.'' No doubt they are huge questions.

We eagerly await what our super-legislators across the street in the Supreme Court building there at One First Street will legislate on this question. What will become of church-hiring liberty? What will become of the policies of religious schools? What will become of the fate of religious charities? Who knows? Who is to say? They are questions for future cases.

I will say this in defense of the Court: It is difficult to anticipate in one case all future possible implications. That is why courts are supposed to leave legislating to legislators. That is why article III does not give the U.S. Supreme Court or any Federal court the power to legislate but only the judicial power to decide cases and controversies, not to decide policies.

I will also say this: Everybody knows—every honest person knows that the laws in this country today are made almost entirely by unelected bureaucrats and courts; they are not made by this body. Why not? Because this body doesn't want to make law, that is why not. In order to make law, you have to take a vote. In order to vote, you have to be on the record, and to be on the record is to be held accountable, and that is what this body fears above all else. This body is terrified of being held accountable for anything on any subject. So can we be surprised that where the legislature fears to tread, where the article I body—this body that is charged by the Constitution for legislating—refuses to do its job, courts rush in and bureaucrats too? Are they accountable to the people? No, not at all. Do we have any resource? Not really. What should we do? Now we must wait to see what the super-legislators will say about our rights in future cases.

If this case makes anything clear, it is that the bargain that has been offered to religious conservatives for years now is a bad one. It is time to reject it. The bargain has never been necessarily explicitly articulated, but religious conservatives know what it is. The bargain is that you go along with the party establishment, you support their policies and priorities—or at least keep your mouth shut about it—and in return, the establishment will put some judges on the bench who supposedly will protect your constitutional right to freedom of worship and freedom of exercise. That is what we have been told for years now. We were told that we are supposed to shut up while the party establishment focuses more on cutting taxes and handing out favors to corporations—multinational corporations that don't share our values, that will not stand up for American principles, and that are only too happy to ship American jobs overseas. But we are supposed to say nothing about that.

We are supposed to keep our mouths shut because maybe we will get a judge out of the deal. That was the implicit bargain. We are supposed to keep our mouths shut while the party establishment opens borders and while the party establishment pursues ruinous trade policies. We are supposed to keep our mouths shut while those at the upper end of the income bracket get all of the attention while working families and college students and those who don't want to go to college but can't get a good job—they get what attention?

Workers. Children. What about parents looking for help with the cost of raising children; looking for help with the culture in which they have to raise children; looking for help with the communities, rebuilding the communities in which they must carry out their family life? What about college students trying to find an education that isn't ruinously expensive and then trying to figure out some way to pay back that ruinous debt? What about those who don't have a college degree and don't want one but would like to get a good job? What about them?

We are supposed to stay quiet about all of that and more because there will be pro-constitutional religious liberty judges—except that there aren't; except that these judges don't follow the Constitution; except that these judges invoke textualism and originalism in order to reach their preferred outcome.

I want to be clear. I am not personally criticizing any Justice who joined the majority opinion or wrote it. I believe 100 percent that the Justice who principally offered this—Justice Gorsuch—and those who joined him are sincere and were writing to the best of their ability, reasoning to the best of their ability. Whatever else you might say about the opinion, it is not sloppily reasoned. I think they were doing what they thought was best and using all of the skills and gifts they have.

I question how we got here. I question how judges who hold to this philosophy ended up on that bench. I question the bargain that people of faith have been offered and asked to hold to for all of these years.

The truth is, to those who have objected to my own questioning of judicial nominees in this body, to those who said I was wrong to question judges who came before the Judiciary Committee, to those who chided me for asking tough questions even of nominees by a Republican President, to those who said I was slowing down the process and I was out of line, and to the supposedly conservative groups who threatened to buy television time in my own State to punish me for asking questions about conservative judges, I just have this to say: This is why I ask questions. This is why I won't stop. And I wish some more people would ask some harder questions because this outcome is not acceptable, and the bargain religious conservatives have been offered is not tenable.

I would just say it is not the time for religious conservatives to shut up. We have done that for too long. It is time for religious conservatives to stand up and to speak out. It is time for religious conservatives to bring forward the best of our ideas on every policy affecting this Nation. We should be out in the forefront leading on economics, on trade, on race, on class, on every subject that matters for what our Founders called the ''general welfare'' because we have a lot to offer, not just to protect our own rights but for the good of all of our fellow citizens.

As religious believers, we know that serving our fellow citizens—whatever their religious faith or whatever their commitments may be—we know that serving them, aiding them, working for them is one of the signature ways we show a love of neighbor. It is time for religious conservatives to do that. It is time for religious conservatives to take the lead rather than being pushed to the back. It is time for religious conservatives to stand up and speak out rather than being told to sit down and shut up.

I am confident that people of faith and good will all across this country are ready to do that and want to do

that and have something to offer this country and every person in this country, whatever their background or income or race or religion, and because of that, I am confident in the future. I am also confident that the old ways will not do. Let this be a departure. Let this be a new beginning. Let this be the start of something better.

I yield the floor.

The PRESIDING OFFICER. The Senator from Alabama.

DR. MARTIN LUTHER KING, JR.'S LETTER FROM BIRMINGHAM JAIL

Mr. JONES. Madam President, one of the greatest indictments I believe ever written was written on scraps of paper in a lonely jail cell in Birmingham, AL, in 1963. The letter from a Birmingham jail written by Dr. Martin Luther King is a call to action.

Last year, for the first time in the history of this body, the entire letter was read on the Senate floor by three Republicans, three Democrats—a bipartisan effort, a bipartisan reading of a letter that is so important, the words of which still resonate today.

Today, we do it again. I am pleased that we have once again three Republicans and three Democrats to take part in this historic reading. At this point, as we get to that letter, I would like to yield the floor to my friend from South Carolina, Senator SCOTT, for a special introduction for this important reading.

The PRESIDING OFFICER. The Senator from South Carolina.

Mr. SCOTT of South Carolina. Madam President, we are at a critical time in our Nation's history. I think we can all sense the opportunity that is before us. Through the challenges of COVID and the death of George Floyd and its aftermath, we can affect real, lasting change.

Perhaps the most famous line in Dr. King's letter from Birmingham jail is ''Injustice anywhere is a threat to justice everywhere.'' Let me say that one more time. ''Injustice anywhere is a threat to justice everywhere.'' More than at any time I can remember, people of all ages and races are standing up together for the idea that Lady Justice must be blind.

Although COVID has delayed this now-annual reading of Dr. King's letter, it has truly never been more important than it is right now.

I want to thank all of my colleagues from both sides of the aisle for reading today and Senator JONES for putting this together again.

Every time we hear them, the words of Dr. King teach us something new. I hope the Nation hears these words with an open mind and an open heart and we all come together unified for a bigger purpose.

Senator JONES, let me close by saying that the letter from the Birmingham jail was a letter written to the clergy of the time. As Senator HAWLEY was speaking about the importance of standing up for our religious liberties, the one thing he said at the end was that we should stand up now for all the issues facing our Nation—the economic issues, the racial issues.

I thought it important and appropriate that following that speech, you have the reading of the letter from the Birmingham jail to the leaders, the religious leaders, to become involved and engaged in this current struggle. That is how change comes to America. Thank you for leading this process.

The PRESIDING OFFICER. The Senator from Louisiana.

Mr. KENNEDY. Madam President, with me today is one of my colleagues from my office, Mr. Blain Callas.

In the words of Dr. King's letter from a Birmingham jail:

APRIL 16, 1963.

MY DEAR FELLOW CLERGYMEN:

While confined here in the Birmingham city jail, I came across your recent statement calling my present activities ''unwise and untimely.'' Seldom do I pause to answer criticism of my working ideas. If I sought to answer all of the criticisms that cross my desk, my secretaries would have little time for anything other than such correspondence in the course of a day, and I would have no time for constructive work. But since I feel you are men of genuine good will and that your criticisms are sincerely set forth, I will try to answer your statement in what I hope will be patient and reasonable terms.

I think I should indicate why I am here in Birmingham, since you have been influenced by the view which argues against ''outsiders coming in.'' I have the honor of serving as president of the Southern Christian Leadership Conference, an organization operating in every southern state, with headquarters in Atlanta, Georgia. We have some eighty five affiliated organizations across the South, and one of them is the Alabama Christian Movement for Human Rights. Frequently we share staff, educational and financial resources with our affiliates. Several months ago the affiliate here in Birmingham asked us to be on call to engage in a nonviolent direct action program if such were deemed necessary. We readily consented, and when the hour came we lived up to our promise. So I, along with several members of my staff, am here because I was invited here. I am here because I have organizational ties here.

But more basically, I am in Birmingham because injustice is here. Just as the prophets of the eighth century B.C. left their villages and carried their ''thus saith the Lord'' far beyond the boundaries of their home towns, and just as the Apostle Paul left his village of Tarsus and carried the gospel of Jesus Christ to the far corners of the Greco Roman world, so am I compelled to carry the gospel of freedom beyond my home town. Like Paul, I must constantly respond to the Macedonian call for aid.

Moreover, I am cognizant of the interrelatedness of all communities and states. I cannot sit idly by in Atlanta and not be concerned about what happens in Birmingham. Injustice anywhere is a threat to justice everywhere. We are caught in an inescapable network of mutuality, tied in a single garment of destiny. Whatever affects one directly, affects all indirectly. Never again can we afford to live with the narrow, provincial ''outside agitator'' idea.

Anyone who lives inside the United States can never be considered an outsider anywhere within its bounds.

Now, you deplore the demonstrations taking place in Birmingham. But your statement, I am sorry to say, fails to express a similar concern for the conditions that brought about the demonstrations. I am sure that none of you would want to rest content with the superficial kind of social analysis that deals merely with effects and does not grapple with underlying causes. It is unfortunate that demonstrations are taking place in Birmingham, but it is even more unfortunate that the city's white power structure left the [African-American] community with no alternative.

In any nonviolent campaign there are four basic steps: collection of the facts to determine whether injustices exist; negotiation; self purification; and direct action. We have gone through all these steps in Birmingham. There can be no gainsaying the fact that racial injustice engulfs this community. Birmingham is probably the most thoroughly segregated city in the United States. Its ugly record of brutality is widely known. [African Americans] have experienced grossly unjust treatment in the courts. There have been more unsolved bombings of [African-American] homes and churches in Birmingham than in any other city in the nation. These are the hard, brutal facts of the case. On the basis of these conditions, [African-American] leaders sought to negotiate with the city fathers. But the latter consistently refused to engage in good faith negotiation.

Then, last September, came the opportunity to talk with leaders of Birmingham's economic community. In the course of the negotiations, certain promises were made by the merchants—for example, to remove the stores' humiliating racial signs. On the basis of these promises, the Reverend Fred Shuttlesworth and the leaders of the Alabama Christian Movement for Human Rights agreed to a moratorium on all demonstrations. As the weeks and months went by, we realized that we were the victims of a broken promise. A few signs, briefly removed, returned; the others remained. As in so many past experiences, our hopes had been blasted, and the shadow of deep disappointment settled upon us. We had no alternative except to prepare for direct action, whereby we would present our very bodies as a means of laying our case before the conscience of the local and the national community. Mindful of the difficulties involved, we decided to undertake a process of self purification. We began a series of workshops on nonviolence, and we repeatedly asked ourselves: ''Are you able to accept the blows without retaliating?'' ''Are you able to endure the ordeal of jail?''

We decided to schedule our direct action program for the Easter season, realizing that except for Christmas, this is the main shopping period of the year. Knowing that a strong economic-withdrawal program would be the by product of direct action, we felt that this would be the best time to bring pressure to bear on the merchants for the needed change.

Then it occurred to us that Birmingham's mayoral election was coming up in March, and we speedily decided to postpone action until after election day. When we discovered that the Commissioner of Public Safety, Eugene ''Bull'' Connor, had piled up enough votes to be in the run off, we decided again to postpone action until the day after the run off so that the demonstrations could not be used to cloud the issues.

Like many others, we waited to see Mr. Connor defeated, and to this end, we endured

postponement after postponement. Having aided in this community need, we felt our direct action program could be delayed no longer.

The words of Dr. King. A letter from a Birmingham jail, April 16, 1963.

I yield the floor.

The PRESIDING OFFICER. The Senator from Alabama.

Mr. JONES. Madam President, continuing reading the letter from Birmingham jail:

You may well ask: ''Why direct action? Why sit ins, marches and so forth? Isn't negotiation a better path?'' You are quite right in calling for negotiation. Indeed, this is the very purpose of direct action. Nonviolent direct action seeks to create such a crisis and foster such a tension that a community which has constantly refused to negotiate is forced to confront the issue. It seeks so to dramatize the issue that it can no longer be ignored. My citing the creation of tension as part of the work of the nonviolent resister may sound rather shocking. But I must confess that I am not afraid of the word ''tension.'' I have earnestly opposed violent tension, but there is a type of constructive, nonviolent tension which is necessary for growth. Such as Socrates felt that it was necessary to create a tension in the mind so that individuals could rise from the bondage of myths and half truths to the unfettered realm of creative analysis and objective appraisal, so must we see the need for nonviolent gadflies to create the kind of tension in society that will help men rise from the dark depths of prejudice and racism to the majestic heights of understanding and brotherhood. The purpose of our direct action program is to create a situation so crisis packed that it will inevitably open the door to negotiation. I therefore concur with you in your call for negotiation. Too long has our beloved Southland been bogged down in a tragic effort to live in a monologue rather than dialogue.

One of the basic points in your statement is that the action that I and my associates have taken in Birmingham is untimely. Some have asked: ''Why didn't you give the new city administration time to act?'' The only answer that I can give to this query is that the new Birmingham administration must be prodded about as much as the outgoing one, before it will act. We are sadly mistaken if we feel that the election of Albert Boutwell as mayor will bring the millennium to Birmingham. While Mr. Boutwell is a much more gentle person than Mr. Connor, they are both segregationists, dedicated to the maintenance of the status quo. I have hoped that Mr. Boutwell will be reasonable enough to see the futility of massive resistance to desegregation. But he will not see this without pressure from devotees of civil rights. My friends, I must say to you that we have not made a single gain in civil rights without determined legal and nonviolent pressure. Lamentably, it is an historical fact that privileged groups seldom give up their privileges voluntarily. Individuals may see the moral light and voluntarily give up their unjust posture; but as Reinhold Niebuhr has reminded us, groups tend to be more immoral than individuals.

We know through painful experience that freedom is never voluntarily given by the oppressor; it must be demanded by the oppressed. Frankly, I have yet to engage in a direct action campaign that was ''well timed'' in the view of those who have not suffered unduly from the disease of segregation. For years now I have heard the word ''Wait!'' It rings in the ear of every Negro with piercing familiarity. This ''Wait'' has almost always meant ''Never.'' We must come to see, with one of our distinguished jurists, that ''justice too long delayed is just denied.''

We have waited for more than 340 years for our constitutional and God given rights. The nations of Asia and Africa are moving with jetlike speed toward gaining political independence, but we still creep at horse and buggy pace toward gaining a cup of coffee at a lunch counter. Perhaps it is easy for those who have never felt the stinging darts of segregation to say, ''Wait.'' But when you have seen vicious mobs lynch your mothers and fathers at will and drown your sisters and brothers at whim; when you have seen hate filled policeman curse, kick and even kill your black brothers and sisters; when you see the vast majority of your twenty million Negro brothers smothering in an airtight cage of poverty in the midst of an affluent society . . . when you take a cross country drive and find it necessary to sleep, night after night, in the uncomfortable corners of your automobile because no motel will accept you; when you are humiliated day in and day out by nagging signs reading ''white'' and ''colored''; when your first name becomes [an expletive], your middle named becomes ''boy'' (however old you are) and your last name becomes ''John,'' and your wife and mother are never given the respected title ''Mrs.''; when you are harried by day and haunted by night by the fact that you are a Negro, living constantly at tiptoe stance, never quite knowing what to expect next, and are plagued with inner fears and outer resentments; when you are forever fighting a degenerating sense of ''nobodiness''—then you will understand why we find it difficult to wait.

I yield the floor.

The PRESIDING OFFICER. The Senator from Oklahoma.

Mr. LANKFORD. ''There comes a time when the cup of endurance runs over, and men are no longer willing to be plunged into the abyss of despair. I hope, sirs, you can understand our legitimate and unavoidable impatience. You express a great deal of anxiety over our willingness to break laws. This is certainly a legitimate concern. Since we so diligently urge people to obey the Supreme Court's decision of 1954 outlawing segregation in the public schools, at first glance it may seem rather paradoxical for us consciously to break laws. One may well ask: 'How can you advocate breaking some laws and obeying others?' The answer lies in the fact that there are two types of laws: Just and unjust. I would be the first to advocate obeying just laws. One has not only a legal but a moral responsibility to obey just laws. Conversely, one has a moral responsibility to disobey unjust laws. I would agree with St. Augustine that 'an unjust law is no law at all.'''

Now, what is the difference between the two? How does one determine whether a law is just or unjust? A just law is a man made code that squares with the moral law or the law of God. An unjust law is a code that is out of harmony with the moral law. To put it in the terms of St. Thomas Aquinas: An unjust law is a human law that is not rooted in eternal law and natural law. Any law that uplifts human personality is just. Any law that degrades human personality is unjust. All segregation statutes are unjust because segregation distorts the soul and damages the personality. It gives the segregator a false sense of superiority and the segregated a false sense of inferiority. Segregation, to use the terminology of the Jewish philosopher Martin Buber, substitutes an ''I it'' relationship for an ''I though'' relationship and ends up relegating persons to the status of things. Hence, segregation is not only politically, economically and sociologically unsound, it is morally wrong and sinful. Paul Tillich has said that sin is separation. Is not segregation an existential expression of man's tragic separation, his awful estrangement, his terrible sinfulness? Thus it is that I can urge men to obey the 1954 decision of the Supreme Court, for it is morally right; and I can urge them to disobey segregation ordinances, for they are morally wrong.

Let us consider a more concrete example of just and unjust laws. An unjust law is a code that a numerical or a power majority group compels a minority group to obey but does not make binding on itself. This is difference made legal. By the same token, a just law is a code that a majority compels a minority to follow and that it is willing to follow itself. This is sameness made legal. Let me give another explanation. A law is unjust if it is inflicted on a minority that, as a result of being denied the right to vote, had no part in enacting or devising the law. Who can say that the legislature of Alabama which set up that State's segregation laws was democratically elected? Throughout Alabama all sorts of devious methods are used to prevent Negroes from becoming registered voters, and there are some counties in which, even though Negroes constitute a majority of the population, not a single Negro is registered. Can any law enacted under such circumstances be considered democratically structured?

Sometimes a law is just on its face and unjust in its application. For instance, I have been arrested on a charge of parading without a permit. Now, there is nothing wrong in having an ordinance which requires a permit for a parade. But such an ordinance becomes unjust when it is used to maintain segregation and to deny citizens the First Amendment privilege of peaceful assembly and protest.

I hope you are able to see the distinction I am trying to point out. In no sense do I advocate evading or defying the law, as would the rabid segregationist. That would lead to anarchy. One who breaks an unjust law must do so openly, lovingly, and with a willingness to accept the penalty. I submit that an individual who breaks a law that conscience tells him is unjust, and who willingly accepts the penalty of imprisonment in order to arouse the conscience of the community over its injustice, is in reality expressing the highest respect for the law.

Of course, there is nothing new about this kind of civil disobedience. It was evidenced sublimely in the refusal of Shadrach, Meshach, and Abednego to obey the laws of Nebuchadnezzar, on the ground that a higher moral law was at stake. It was practiced superbly by the early Christians, who were willing to face hungry lions and the excruciating pain of chopping blocks rather than submit to certain unjust laws of the Roman Empire. To a degree, academic freedom is a reality today because Socrates practiced civil disobedience. In our own nation, the Boston Tea Party represented a massive act of civil disobedience.

We should never forget that everything Adolf Hitler did in Germany was ''legal'' and everything the Hungarian freedom fighters did in Hungary was ''illegal.'' It was ''illegal'' to aid and comfort a Jew in Hitler's Germany. Even so, I am sure that had I lived in Germany at the time, I would have aided and comforted my Jewish brothers. If today I lived in a Communist country where certain principles dear to the Christian faith

are suppressed, I would openly advocate disobeying that country's antireligious laws.

I must make two honest confessions to you, my Christian and Jewish brothers. First, I must confess that over the past few years I have been gravely disappointed with the white moderate.

I have almost reached the regrettable conclusion that the Negro's great stumbling block in his stride toward freedom is not the White Citizen's Counciler or the Ku Klux Klanner, but the white moderate, who is more devoted to ''order'' than to justice; who prefers a negative peace which is the absence of tension to a positive peace which is the presence of justice; who constantly says: ''I agree with you in the goal you seek, but I cannot agree with your methods of direct action''; who paternalistically believes he can set the timetable for another man's freedom; who lives by a mythical concept of time and who constantly advises the Negro to wait for a ''more convenient season.'' Shallow understanding from people of goodwill is more frustrating than absolute misunderstanding from people of ill will. Lukewarm acceptance is much more bewildering than outright rejection.

I had hoped that the white moderate would understand that law and order exist for the purpose of establishing justice and that when they fail in this purpose they become the dangerously structured dams that block the flow of social progress.

I had hoped that the white moderate would understand that the present tension in the South is a necessary phase of the transition from an obnoxious negative peace, in which the Negro passively accepted his unjust plight, to a substantive and positive peace, in which all men will respect the dignity and worth of human personality. Actually, we who engage in nonviolent direct action are not the creators of tension. We merely bring to the surface the hidden tension that is already alive. We bring it out in the open, where it can be seen and dealt with. Like a boil that can never be cured so long as it is covered up but must be opened with all its ugliness for the natural medicines of air and light, injustice must be exposed, with all the tension its exposure creates, to the light of human conscience and the air of national opinion before it can be cured.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from Ohio.

Mr. BROWN. Madam President, a letter from Birmingham jail by Dr. Martin Luther, Jr.:

In your statement you assert that our actions, even though peaceful, must be condemned because they precipitate violence. But is this a logical assertion? Isn't this like condemning a robbed man because his possession of money precipitated the evil act of robbery? Isn't this like condemning Socrates because his unswerving commitment to truth and his philosophical inquiries precipitated the act by the misguided populace in which they made him drink hemlock? Isn't this like condemning Jesus because his unique God consciousness and never ceasing devotion to God's will precipitated the evil act of crucifixion? We must come to see that, as the federal courts have consistently affirmed, it is wrong to urge an individual to cease his efforts to gain his basic constitutional rights because the quest may precipitate violence. Society must protect the robbed and punish the robber. I had also hoped that the white moderate would reject the myth concerning time in relation to the struggle for freedom. I have just received a letter from a white brother in Texas. He writes: ''All Christians know that the colored people will receive equal rights eventually, but it is possible that you are in too great a religious hurry. It has taken Christianity almost two thousand years to accomplish what it has. The teachings of Christ take time to come to earth.'' Such an attitude stems from a tragic misconception of time, from the strangely irrational notion that there is something in the very flow of time that will inevitably cure all ills. Actually, time itself is neutral; it can be used either destructively or constructively. More and more I feel that the people of ill will have used time much more effectively than have the people of good will. We will have to repent in this generation not merely for the hateful words and actions of the bad people but for the appalling silence of the good people. Human progress never rolls in on wheels of inevitability; it comes through the tireless efforts of men willing to be coworkers with God, and without this hard work, time itself becomes an ally of the forces of social stagnation. We must use time creatively, in the knowledge that the time is always ripe to do right. Now is the time to make real the promise of democracy and transform our pending national elegy into a creative psalm of brotherhood. Now is the time to lift our national policy from the quicksand of racial injustice to the solid rock of human dignity.

You speak of our activity in Birmingham as extreme. At first I was rather disappointed that fellow clergymen would see my nonviolent efforts as those of an extremist. I began thinking about the fact that I stand in the middle of two opposing forces in the Negro community. One is a force of complacency, made up in part of Negroes who, as a result of long years of oppression, are so drained of self respect in the sense of ''somebodiness'' that they have adjusted to segregation; and in part of a few middle-class Negroes who, because of a degree of academic and economic security and because in some ways they profit by segregation, have become insensitive to the problems of the masses. The other force is one of bitterness and hatred, and it comes perilously close to advocating violence. It is expressed in the various black nationalist groups that are springing up across the nation, the largest and best known being Elijah Muhammad's Muslim movement. Nourished by the Negro's frustration over the continued existence of racial discrimination, this movement is made up of people who have lost faith in America, who have absolutely repudiated Christianity, and who have concluded that the white man is an incorrigible ''devil.''

I have tried to stand between these two forces, saying that we need emulate neither the ''do nothingism'' of the complacent nor the hatred and despair of the black nationalist. For there is the more excellent way of love and nonviolent protest. I am grateful to God that, through the influence of the Negro church, the way of nonviolence became an integral part of our struggle. If this philosophy had not emerged, by now many streets of the South would, I am convinced, be flowing with blood. And I am further convinced that if our white brothers dismiss as ''rabble rousers'' and ''outside agitators'' those of us who employ nonviolent direct action, and if they refuse to support our nonviolent efforts, millions of Negroes will, out of frustration and despair, seek solace and security in black nationalist ideologies—a development that would inevitably lead to a frightening racial nightmare.

Oppressed people cannot remain oppressed forever. The yearning for freedom eventually manifests itself, and that is what has happened to the American Negro. Something within has reminded him of his birthright of freedom, and something without has reminded him that it can be gained. Consciously or unconsciously, he has been caught up by the Zeitgeist, and with his black brothers of Africa and his brown and yellow brothers of Asia, South America and the Caribbean, the United States Negro is moving with a sense of great urgency toward the promised land of racial justice. If one recognizes this vital urge that has engulfed the Negro community, one should readily understand why public demonstrations are taking place. The Negro has many pent up resentments and latent frustrations, and he must release them. So let him march; let him make prayer pilgrimages to the city hall; let him go on freedom rides—and try to understand why he must do so. If his repressed emotions are not released in nonviolent ways, they will seek expression through violence; this is not a threat but a fact of history.

So I have not said to my people: ''Get rid of your discontent.'' Rather, I have tried to say that this normal and healthy discontent can be channeled through into the creative outlet of nonviolent direct action. And now this approach is being termed extremist. But though I was initially disappointed at being categorized as an extremist, as I continued to think about the matter I gradually gained a measure of satisfaction from the label. Was not Jesus an extremist for love: ''Love your enemies, bless them that curse you, do good to them that hate you, and pray for them which despitefully use you, and persecute you.'' Was not Amos an extremist for justice: ''Let justice roll down like waters and righteousness like an ever flowing stream.'' Was not Paul an extremist for the Christian gospel: ''I bear in my body the marks of the Lord Jesus.'' Was not Martin Luther an extremist: ''Here I stand; I cannot do otherwise, so help me God.'' And John Bunyan: ''I will stay in jail to the end of my days before I make a butchery of my conscience.'' And Abraham Lincoln: ''This nation cannot survive half slave and half free.'' And Thomas Jefferson: ''We hold these truths to be self evident, that all men are created equal . . .'' So the question is not whether we will be extremists, but what kind of extremists we will be. Will we be extremists for hate or for love? Will we be extremists for the preservation of injustice or for the extension of justice? In that dramatic scene on Calvary's hill three men were crucified. We must never forget that all three were crucified for the same crime—the crime of extremism. Two were extremists for immorality, and thus fell below their environment. The other, Jesus Christ, was an extremist for love, truth and goodness, and thereby rose above his environment. Perhaps the South, the nation and the world are in dire need of creative extremists.

I yield the floor.

The PRESIDING OFFICER. The Senator from Utah.

Mr. ROMNEY. Madam President, I continue reading the letter from the Birmingham jail by Dr. Martin Luther King, Jr.:

I had hoped the white moderate would see this need. Perhaps I was too optimistic; perhaps I expected too much. I suppose I should have realized that few members of the oppressor race can understand the deep groans and passionate yearnings of the oppressed race, and still fewer have the vision to see that injustice must be rooted out by strong, persistent and determined action. I am thankful, however, that some of our white brothers in the South have grasped the meaning of this social revolution and committed themselves to it. They are still all too few in quantity, but they are big in quality. Some—such as Ralph McGill, Lillian

Smith, Harry Golden, James McBride Dabbs, Ann Braden and Sarah Patton Boyle—have written about our struggle in eloquent and prophetic terms. Others have marched with us down nameless streets of the South. They have languished in filthy, roach infested jails, suffering the abuse and brutality of policemen who view them as ''dirty niggerlovers.'' Unlike so many of their moderate brothers and sisters, they have recognized the urgency of the moment and sensed the need for powerful ''action'' antidotes to combat the disease of segregation. Let me take note of my other major disappointment. I have been so greatly disappointed with the white church and its leadership. Of course, there are some notable exceptions. I am not unmindful of the fact that each of you has taken some significant stands on this issue. I commend you, Reverend Stallings, for your Christian stand on this past Sunday, in welcoming Negroes to your worship service on a nonsegregated basis. I commend the Catholic leaders of this state for integrating Spring Hill College several years ago.

But despite these notable exceptions, I must honestly reiterate that I have been disappointed with the church. I do not say this as one of those negative critics who can always find something wrong with the church. I say this as a minister of the gospel, who loves the church; who was nurtured in its bosom; who has been sustained by its spiritual blessings and who will remain true to it as long as the cord of life shall lengthen.

When I was suddenly catapulted into the leadership of the bus protest in Montgomery, Alabama, a few years ago, I felt we would be supported by the white church. I felt that the white ministers, priests and rabbis of the South would be among our strongest allies. Instead, some have been outright opponents, refusing to understand the freedom movement and misrepresenting its leaders; all too many others have been more cautious than courageous and have remained silent behind the anesthetizing security of stained glass windows. In spite of my shattered dreams, I came to Birmingham with the hope that the white religious leadership of this community would see the justice of our cause and, with deep moral concern, would serve as the channel through which our just grievances could reach the power structure. I had hoped that each of you would understand. But again I have been disappointed.

I have heard numerous southern religious leaders admonish their worshipers to comply with a desegregation decision because it is the law, but I have longed to hear white ministers declare: ''Follow this decree because integration is morally right and because the Negro is your brother.'' In the midst of blatant injustices inflicted upon the Negro, I have watched white churchmen stand on the sideline and mouth pious irrelevancies and sanctimonious trivialities. In the midst of a mighty struggle to rid our nation of racial and economic injustice, I have heard many ministers say: ''Those are social issues, with which the gospel has no real concern.'' And I have watched many churches commit themselves to a completely other worldly religion which makes a strange, un-Biblical distinction between body and soul, between the sacred and the secular.

I have traveled the length and breadth of Alabama, Mississippi and all the other southern states. On sweltering summer days and crisp autumn mornings I have looked at the South's beautiful churches with their lofty spires pointing heavenward. I have beheld the impressive outlines of her massive religious education buildings. Over and over I have found myself asking: ''What kind of people worship here? Who is their God? Where were their voices when the lips of Governor Barnett dripped with words of interposition and nullification? Where were they when Governor Wallace gave a clarion call for defiance and hatred? Where were their voices of support when bruised and weary Negro men and women decided to rise from the dark dungeons of complacency to the bright hills of creative protest?''

Yes, these questions are still in my mind. In deep disappointment I have wept over the laxity of the church. But be assured that my tears have been tears of love. There can be no deep disappointment where there is not deep love. Yes, I love the church. How could I do otherwise? I am in the rather unique position of being the son, the grandson and the great grandson of preachers. Yes, I see the church as the body of Christ. But, oh! How we have blemished and scarred that body through social neglect and through fear of being nonconformists.

There was a time when the church was very powerful—in the time when the early Christians rejoiced at being deemed worthy to suffer for what they believed. In those days the church was not merely a thermometer that recorded the ideas and principles of popular opinion; it was a thermostat that transformed the mores of society. Whenever the early Christians entered a town, the people in power became disturbed and immediately sought to convict the Christians for being ''disturbers of the peace'' and ''outside agitators.'' But the Christians pressed on, in the conviction that they were ''a colony of heaven,'' called to obey God rather than man. Small in number, they were big in commitment. They were too God-intoxicated to be ''astronomically intimidated.'' By their effort and example they brought an end to such ancient evils as infanticide and gladiatorial contests. Things are different now. So often the contemporary church is a weak, ineffectual voice with an uncertain sound. So often it is an arch defender of the status quo. Far from being disturbed by the presence of the church, the power structure of the average community is consoled by the church's silent—and often even vocal—sanction of things as they are.

But the judgment of God is upon the church as never before. If today's church does not recapture the sacrificial spirit of the early church, it will lose its authenticity, forfeit the loyalty of millions, and be dismissed as an irrelevant social club with no meaning for the twentieth century. Every day I meet young people whose disappointment with the church has turned into outright disgust.

Perhaps I have once again been too optimistic. Is organized religion too inextricably bound to the status quo to save our nation and the world? Perhaps I must turn my faith to the inner spiritual church, the church within the church, as the true ekklesia and the hope of the world. But again I am thankful to God that some noble souls from the ranks of organized religion have broken loose from the paralyzing chains of conformity and joined us as active partners in the struggle for freedom. They have left their secure congregations and walked the streets of Albany, Georgia, with us. They have gone down the highways of the South on tortuous rides for freedom.

I yield the floor.

The PRESIDING OFFICER. The Senator from Illinois.

Ms. DUCKWORTH. Madam President, I continue with the reading of the letter from Birmingham jail, Dr. Martin Luther King, Jr.

Yes, they have gone to jail with us. Some have been dismissed from their churches, have lost the support of their bishops and fellow ministers. But they have acted in the faith that right defeated is stronger than evil triumphant. Their witness has been the spiritual salt that has preserved the true meaning of the gospel in these troubled times.

They have carved a tunnel of hope through the dark mountain of disappointment. I hope the church as a whole will meet the challenge of this decisive hour. But even if the church does not come to the aid of justice, I have no despair about the future. I have no fear about the outcome of our struggle in Birmingham, even if our motives at present are misunderstood. We will reach the goal of freedom in Birmingham and all over the nation, because the goal of America is freedom. Abused and scorned though we may be, our destiny is tied up with America's destiny. Before the pilgrims landed at Plymouth, we were here. Before the pen of Jefferson etched the majestic words of the Declaration of Independence across the pages of history, we were here. For more than two centuries, our forebears labored in this country without wages; they made cotton king; they built the homes of their masters while suffering gross injustice and shameful humiliation—and yet out of a bottomless vitality they continued to thrive and develop. If the inexpressible cruelties of slavery could not stop us, the opposition we now face will surely fail. We will win our freedom because the sacred heritage of our nation and the eternal will of God are embodied in our echoing demands. Before closing I feel impelled to mention one other point in your statement that has troubled me profoundly. You warmly commended the Birmingham police force for keeping ''order'' and ''preventing violence.'' I doubt that you would have so warmly commended the police force if you had seen its dogs sinking their teeth into unarmed, nonviolent Negroes. I doubt that you would so quickly commend the policemen if you were to observe their ugly and inhumane treatment of Negroes here in the city jail; if you were to watch them push and curse old Negro women and young Negro girls; if you were to see them slap and kick old Negro men and young boys; if you were to observe them, as they did on two occasions, refuse to give us food because we wanted to sing our grace together. I cannot join you in your praise of the Birmingham police department.

It is true that the police have exercised a degree of discipline in handling the demonstrators. In this sense they have conducted themselves rather ''nonviolently'' in public. But for what purpose? To preserve the evil system of segregation. Over the past few years I have consistently preached that nonviolence demands that the means we use must be as pure as the ends we seek. I have tried to make it clear that it is wrong to use immoral means to attain moral ends. But now I must affirm that it is just as wrong, or perhaps even more so, to use moral means to preserve immoral ends. Perhaps, Mr. Connor and his policemen had been rather nonviolent in public, as was Chief Pritchett in Albany, Georgia, but they have used the moral means of nonviolence to maintain the immoral end of racial injustice. As T. S. Elliot has said: ''The last temptation is the greatest treason: To do the right deed for the wrong reason.''

I wish you had commended the Negro sit inners and demonstrators of Birmingham for their sublime courage, their willingness to suffer, and their amazing discipline in the midst of great provocation. One day the South will recognize its real heroes. They will be the James Merediths, with the noble sense of purpose that enables them to face jeering and hostile mobs, and with the agonizing loneliness that characterizes the life of the pioneer. They will be old, oppressed battered Negro women symbolized in a seventy two year old woman in Montgomery,

Alabama, who rose up with a sense of dignity and with her people decided not to ride segregated buses, and who responded with ungrammatical profundity to one who inquired about her weariness: ''My feets is tired, but my soul is at rest.'' They will be the young high school and college students, the young ministers of the gospel and a host of their elders, courageously and nonviolently sitting in at lunch counters and willingly going to jail for conscience' sake. One day the South will know that when these disinherited children of God sat down at lunch counters, they were in reality standing up for what is best in the American dream and for the most sacred values in our Judeo Christian heritage, thereby bringing our nation back to those great wells of democracy which were dug deep by the founding founders in their formulation of the Constitution and the Declaration of Independence.

Never before have I written so long a letter. I'm afraid it is much too long to take your precious time. I can assure you that it would have been much shorter if I had been writing from a comfortable desk, but what else can one do when he is alone in a narrow jail cell, other than write long letters, think long thoughts, and pray long prayers?

If I have said anything in this letter that overstates the truth and indicates an unreasonably impatience, I beg you to forgive me. If I have said anything that understates the truth and indicates my having a patience that allows me to settle for anything less than brotherhood, I beg God to forgive me.

I hope this letter finds you strong in the faith. I also hope that circumstances will soon make it possible for me to meet each of you, not as an integrationist or a civil-rights leader but as a fellow clergymen and a Christian brother. Let us all hope that the dark clouds of racial prejudice will soon pass away and the deep fog of misunderstanding will be lifted from our fear drenched communities, and in some not too distant tomorrow, the radiant stars of love and brotherhood will shine over our great nation with all their scintillating beauty.

Yours for the cause of Peace and Brotherhood,

MARTIN LUTHER KING, JR.

I yield the floor.

The PRESIDING OFFICER (Mr. BOOZMAN). The Senator from Alabama.

Mr. JONES. Mr. President, I want to first thank my colleagues who joined me today.

As Senator SCOTT said, we had hoped to do this in April on the anniversary of the writing of this letter. Unfortunately, the pandemic overtook us. But, as Senator SCOTT said, I don't think the timing could be any better than today.

Just as last year when we did this, I am sure that each of my colleagues today will leave the floor with an even greater appreciation of Dr. King's legacy and I hope a better understanding of where America finds itself today.

When we think of Dr. King, we usually see him on the steps of the Lincoln Memorial eloquently and passionately describing his dream for America or behind a pulpit in Memphis urging his audience to press forward, to not be discouraged in their quest for civil and equal rights because he had been to the mountaintop and he had seen the Promise Land.

It is, frankly, somewhat astounding to read his thoughts that were read on the floor today and picture him in a small, dirty jail cell, writing in longhand on napkins and scraps of paper and newspaper to a group of ministers who were not hateful as much as they were questioning the need for action at that particular moment in 1963.

There are some who would say that, to share my thoughts on our situation today, I need to move beyond a letter written in 1963, beyond a call of action so long ago. Certainly, it is true that there are more contemporary voices and writings that explain how we should see our times and what actions are needed today, now and in the present. After all, although it was uncertain in the spring of 1963, Dr. King, in a movement, would go on to achieve historic changes with the signing of the Civil Rights Act of 1964, the Voting Rights Act of 1965, and so many other legislative victories.

But I believe we are at a similar moment today, in this time, in this place, and that Dr. King's words are as contemporary as they are powerful. You see, in 1963, Alabama had become the focal point of the racism and division and hatred that existed throughout our Nation. Bombings and fires in Black neighborhoods were commonplace; suspects never apprehended; a Governor promising segregation now, segregation tomorrow, segregation forever; Bull Connor shocking the Nation when he unleashed vicious police dogs and firehoses on innocent children engaged in a peaceful protest; and later in that year, a church bombing that killed four young girls simply because of the color of their skin.

The question on the day Dr. King was arrested was, Why now? Why the risk of jail and perhaps death to protest conditions in a city that Dr. King had described as the most segregated in America—a city, though, that had just elected a new city government that had promised change? It is a question Dr. King and all Black Americans had heard for too long, and it was time for an answer.

I believe the wisdom of this letter is perhaps the best frame to view how we move forward during this moment, the movement of this time, the movement of this generation. In passage after passage, Dr. King warns us how easily people can fall back to accepting the status quo, how easily people can hear the word ''wait'' when, in fact, the word means ''never.''

From a jail cell in Birmingham in 1963, Dr. King told us that action in that moment was critical so that issues of racism and inequality throughout the land would no longer be ignored. And here we are, 57 years later—57 years later—and his words are still just as timely. The action in this moment, our moment, is likewise critical so that issues of systemic racism and inequality can finally be erased.

While so many seem to be heeding Dr. King's call for action—across the country, we see it time and again: hundreds, if not thousands, of people heeding Dr. King's call for action today—my greatest fear at this moment, quite frankly, is that so many people who have felt powerless or unaffected who are willing to march and speak out, ready to change the fairness of our laws and society—my greatest concern is that these good people will get distracted. It is easy to be overwhelmed by the magnitude of the problem. It is understandable to not know where to begin. But it is not enough to simply agree any longer, to simply have a conversation.

Remember, Dr. King confesses to the ministers to whom he is responding that he has been gravely disappointed with what he terms, in 1963, the ''White model.''

If a conversation is all that comes from the moment we are in, then our society will have lost the greatest chance of our lifetime to remedy wrongs that have compounded for centuries.

It is time for both our institutions and our society to meaningfully reverse the degenerating sense of nobodiness.

In this moment, we have a critical mass of society that understands the legitimate and unavoidable patience of which Dr. King spoke. The last few months have made the truths of being Black in America clear to all.

We have watched somewhat helplessly as a pandemic killed Black people at the rate of almost 2½ times that of other Americans, not from a mutation of the virus but from an underfunded health system that too often deprives Black Americans care for diabetes, heart disease, and other health issues that are now described as preexisting conditions.

We have watched an economic toll as Black-owned businesses failed at twice the rate of others, and unemployment for Black Americans grows faster and will stay higher than those of the rest of America.

Of course, through this pandemic, we have also seen the heroes: Black workers delivering packages, stocking grocery stores, and serving on frontlines in hospitals and as first responders. But the economic reality of being Black in America remains a sin of our Nation.

There have certainly been many Black Americans who have pushed through a system weighted against them to prosper, to find the American dream. We celebrate those folks but must face the fact that discrimination and institutional racism push much too hard against the health, education, job opportunities, and financial security of those whom this Government of the United States of America once counted as only three-fifths of a person.

Then, while in the course of this pandemic, as we were seeing the truths of this system and society that have been easy to pretend did not really exist, on our screens came a video of a Black man being killed with the knee of a police officer on the back of his neck.

The image of George Floyd on the ground—as low as one could possibly, physically get in life—with the knee of a police officer—an agent of the State—on his neck, keeping him on the ground, was far more than just an image of the legalities of a violation of George Floyd's civil rights and the color of law; it was an image of a society and a culture that keep the knee on the necks of Black Americans through systemic racism and discrimination.

George Floyd's cries of ''I can't breathe'' were not just the cries of an innocent man pleading for his life but the cries of so many of our fellow Americans who are choked by healthcare systems that deny them access to quality and affordable healthcare; who are, in Dr. King's words, ''smothering in an airtight cage of poverty,''; who can't breathe the fresh air of affordable housing, education, and economic opportunities; or who simply have to hold their own breath when they or their sons or their daughters venture away from their home, fearing a police encounter that will take their life.

Perhaps even more than the dogs and the firehoses in Birmingham or the State trooper beatings on the Edmund Pettus Bridge in Selma, AL, the video of George Floyd's last moments on Earth was a confluence of events that gave our Nation an image of itself that it could no longer bear.

I truly—I truly and fully believe that the soul of America has come to the streets of America looking for a way for all of her people to live in a more just society; that we are at a time when what I have called a crisis trifecta of health, economic, and inequality has resulted in a careful examination and introspection of our beliefs and our priorities about race and about poverty; that we have come to understand more than at any time in the history of our country that whatever affects one directly affects all indirectly.

Standing on the floor of the U.S. Senate, though, I know that this moment requires more than introspection on our part. We in this body and in government as a whole have the power to effect actual change. To not do so with speed would be forever unpardonable.

As a person, as an individual, as a citizen of the United States, I know that I must, like everyone in this country, open my heart and my mind to listen with concern and empathy and to act as an individual. But I also know that as a U.S. Senator, I am ready to act, freely admitting that I might not have the ideal solution or all of the answers but not letting the theoretical perfect be the enemy of tangible change that we must see, not asking our citizens to wait any longer than they already have.

As a body, we have acted before, and we should act again. To that end, we are seeing proposals for law enforcement reform from the administration, from congressional leaders on both sides of the political aisle, and in both Houses of the U.S. Congress. I am hopeful—even optimistic—that we can find the common ground necessary to achieve meaningful reform, but we will need to do more for this country.

As Dr. King reminds us, sometimes a law is just on its face and unjust in its application. I would add to that that a law that seemed to hold such promise at one time can be eroded to the point where it becomes unjust.

To that end, I respectfully submit that we should review the Voting Rights Act to make sure that easy success at the ballot box is a reality, especially in the midst of a healthcare crisis. We should examine existing laws and practices in education to make sure everyone has equal access to a quality education. We should examine existing laws to ensure that everyone has equal economic opportunities, including protections from employment discrimination.

To that extent, I should add that, with the historic Supreme Court decision yesterday—one which I applaud, even though some in this body may not—we should immediately bring the Equality Act to the floor of the Senate and affirm our commitment to ending discrimination in the workplace in any form, against any individual.

We should examine again existing laws that continue to deny quality, affordable healthcare to poor and low-income households, including giving States like Alabama the incentives necessary to expand Medicaid to get those Federal dollars to help lift those individuals who not only struggled before this pandemic but have lost their healthcare during this pandemic.

We need to examine laws like the Fair Housing Act, signed only a week after Dr. King's assassination, in order to ensure that that act fulfills the promise upon which it was enacted.

We spend billions of dollars each year to perpetuate housing that keeps people without means, especially Black families, trapped in places where it is difficult to access education, healthy food, and economic opportunities. Unfortunately, all signs are pointing to a worsening housing crisis because of the pandemic.

As a people and as a Congress, we cannot let this moment pass. By saying that, I mean more than just passing reforms. Surely reforms are needed, but the greater need is not just to reform but to transform, to make a dramatic change in the nature and character of our institutions and our culture toward a more just government and society.

To that end, as we focus on heeding Dr. King's call to action written in 1963, we should also remember his words written just 3 years after the passage of the Civil Rights Act and 2 years after the passage of the Voting Rights Act. In his 1967 final book ''Where Do We Go From Here: Chaos Or Community?'' Dr. King wrote:

[America] has been sincere and even ardent in welcoming some change. But too quickly apathy and disinterest rise to the surface when the next logical steps are to be taken. Laws are passed in a crisis mood after a Birmingham or a Selma, but no substantial fervor survives the formal signing of legislation. The recording of the law in itself is treated as the reality of the reform.

The point is simply, but significantly, to those of you who have suffered long for equality and for opportunity: Keep this moment alive. Keep it alive beyond the crisis mood we find ourselves in today by continuing to engage those who have more recently seen your plight through new eyes. Demand that we not just meet this moment with more division, intolerance, and anger at one another that pulls us farther apart and deeper into chaos where we have failed to heal. That cannot be America's future.

Demand that it not be, as Dr. King's letter warned, simply a moment for another conversation that makes it sound like something is changing but it never does.

The path from the first slave ship to land on these shores, to the lone, barren jail cell in Birmingham, AL, where Dr. King wrote his letter that we read today, to the deaths of George Floyd and Breonna Taylor and Rayshard Brooks—that path is a long one—too long. It is a path of a multigenerational failure to be the America of our ideals, where the Civil War is actually over and we are truly one Nation, with liberty and justice for all.

I will tell you, as a son of the South—the Deep South—that we should not lose this moment. We in the South have been at the center of this divide for too long, and we can be at the center of healing it and leading the Nation to a more just society.

Since our country's inception, we have said the words: ''All are created equal.'' We have pledged that we are a nation with justice for all—all, not some—all. But we know that we have never lived up to that ideal. We all know it.

In response to many of the protests that are taking place across this country today, where voices and T-shirts and face masks proclaim that ''Black lives matter,'' some insist on saying that ''all lives matter.'' Of course they do, but we will not be a country where we are all truly equal and where justice is for all until we can all say the words ''Black lives matter'' and mean it.

We have to mean it now. All of us must reject the voices of hatred and intolerance and division. All of us must embrace taking action to root out injustice and to seek justice and opportunity for all. The road to racial justice in America has taken far too long, but it is a path we must walk together if we are to reach the mountaintop.

To my colleagues, I say: Join me and others. To the people of Alabama and our Nation I say: Join together.

It is time, America. It is time.

I yield the floor.

The PRESIDING OFFICER. The Senator from Texas.

Mr. CRUZ. Mr. President, today is the second time in the last 2 years that

I have had the opportunity to join the Senator from Alabama, coming together with a bipartisan group of Senators to read Dr. King's letter from the Birmingham jail.

I want to thank the Senator from Alabama for his leadership and bringing this group together. I have read that letter many times before, but I had never read it out loud. I had never heard the words spoken, much less heard them spoken in this historic Chamber.

I think today is a time when every American should listen to those words. Today is a time that every American should look back at the incredible call to justice that Dr. King gave us.

This is a time where our Nation is grieving. This is a time where there is anger, division, rage. This is a time where our country is divided on racial lines in a way it hasn't been in a long, long time. This is a time where we need to hear a call to unity—a call to unity and a call to justice. Dr. King's call was powerful for both, for unity and for justice.

I would like to just briefly make three observations about this historic letter. The first is that this was a letter from a pastor written to pastors. We refer to Dr. King as ''Dr. King,'' and it is easy to forget that he was also Reverend King. He was a Christian minister who preached the Gospel.

The very first words of this letter are ''My Dear Fellow Clergymen.'' That is to whom this was addressed, the leaders in the church, where he had a message of get off your rear ends and stand for justice.

If you are a person of faith, then, justice, defeating racial discrimination, defeating bigotry is not just a matter of truth, but it is a matter of morality.

Here is what Dr. King said about it in the opening paragraphs of the letter: ''I am in Birmingham because injustice is here.''

Understand how much this was a call to church leaders. He says: ''Just as the prophets of the eighth century B.C. left their villages and carried''. . . . their message. . . . ''just as the Apostle Paul left his village of Tarsus and carried the gospel of Jesus Christ to the far corners of the Greco Roman world, so am I compelled to carry the gospel of freedom beyond my own home town.''

At a time when our Nation is grieving, is in anguish, is in anger, is in division, Dr. King's—Reverend King's—message to church leaders to stand up for justice, to stand up for truth resonates clear as a bell today.

As a second observation, Dr. King, in this letter and throughout his ministry, throughout his public leadership, called over and over and over to resist violence. Against the voices of those who agreed with him about the injustices, he was calling out where he said violence is not the way.

As we have seen rioting in our cities, as we have seen small businesses burned to the ground, as we have seen police officers assaulted and wounded and murdered in violent and angry protests and riots and looting, the words of Dr. King calling out to resist violence and to speak for justice—those words—should be heard by all of us.

A third observation, in calling for justice, Dr. King appealed to our founding principles. There are some, particularly young people, today, who are angry, who are being peddled, I think, what is a bill of goods—a lie—that America is fundamentally unjust, that it is an evil society built upon racism.

That is simply not true. Is there evil in the world? Yes. Is there racism in the world? Yes. Is there oppression in the world? Yes. Is all of that present in the United States? Absolutely.

But Dr. King, in this letter, didn't endeavor to tear down the foundations of our Nation. Instead, he made an explicit appeal that the promises this Nation was founded upon—the promises of freedom, the promises of equality—we have not yet fully achieved that, but we can.

That is the beauty of this American experiment. We are a nation founded on the proposition that all men are created equal, even though our history has been troubled in achieving that objective.

So I thank my colleagues, both Republicans and Democrats, who came today to reread this letter. We need to hear these words. We need to hear this message. We need to stand for justice and stand for unity.

I yield the floor.

The PRESIDING OFFICER (Mr. CASSIDY). The Senator from Tennessee.

Mr. ALEXANDER. Mr. President, there is a reason why 800 conservation organizations, every U.S. Secretary of Interior from Babbitt to Zinke, and the President of the United States, President Trump, support the legislation we are going to be voting on at about noon tomorrow, and that is because, in my view and in the view of many others, it is the most important piece of conservation legislation this country will have passed in at least half a century. And why is that? It is because it takes nearly $14 billion—up to $14 billion—over the next 5 years from energy exploration on our public lands and spends it to cut in half the deferred maintenance backlog in our national parks, our national forests, and our national refuges, and also to rebuild Indian schools.

In addition to that, it does something that Congress has been trying to do for 60 years, since the midsixties. It permanently funds the Land and Water Conservation Fund, which supplies to both the Federal Government and States money to create national parks and routes to fishing access and to other places in the country that we all treasure.

In the middle of the Great Depression in the 1930s, the people of eastern Tennessee and western North Carolina looked around and said: Why are all the national parks out West? Well, it was because the Federal Government owned a lot of the land out West and carved a bunch of it up to make national parks—Yellowstone, Yosemite, Grand Canyon, and other places that we know. So they looked around the United States in the east and said: Where can we have a national park? And they settled on the Great Smoky Mountains. So they created a park that is half in Tennessee and half in North Carolina. It wasn't easy to do in the midst of the Great Depression.

Governor Austin Peay of Tennessee brought the legislature—mostly Democrats—to Republican East Tennessee twice by train to see this 500,000 acres of land. The State of Tennessee couldn't come up with enough money to buy it, and neither could North Carolina. Then John D. Rockefeller, Jr., offered $5 million in honor of his mother, Laura Spelman Rockefeller, if anybody would match it. So the State legislatures in both States—Tennessee and North Carolina—appropriated $2 million each, and then the remaining million was raised by public subscription—schoolchildren, teachers. People all over the region raised the money, and that $10 million bought 500,000 acres that today is visited by 12 million Americans every year. It is by far the most visited national park, attracting two, three—four times as many visitors as many of our most popular western parks because it is located in the east and because it has the highest mountains in the east.

But here is the problem with the Great Smoky Mountains National Park: The 12 million visitors a year are about to use it up. Too many of the 800-plus miles of trails are worn, so when you walk on them, you stumble. Too many of the roads are potholed. Too many of the roofs leak.

There is one campground that I can see from my house almost on Chilhowee Mountain at the edge of the park called the Look Rock Campground that has been closed for 5 or 6 years because the sewage system won't work—5,000 families want to go up there and can't, and the sewage system won't work. Obviously these aren't just Tennessee families; they are from all over the country. We have 6 or 7 million people living in Tennessee. We have 14 million visitors a year.

So what this bill does is it says to the Great Smoky Mountains: All right. You have $224 million of deferred maintenance—of potholes, of worn trails, of sewage systems, of leaky roofs—$224 million. Your operating budget is only $20 million a year. This deferred maintenance is 10 to 12 times the amount of your operating budget. It will never get done. It will never get done without a bill like this or this bill, which will say to the Smokies and to the National Mall and to the Pearl Harbor Visitor Center and to the Grand Canyon and to all 419 of our national parks: We are going to cut half of the $12 billion deferred maintenance bill—we are going to cut half of that out over the next 5 years, and we are going to take money

from energy exploration on public lands and use some of it for that.

Not just our national parks, President Trump agreed—in fact, I talked to him about it on his trip to Tennessee when he came to visit after the tornadoes.

I said: Mr. President, the sponsors of our bill, Democrats and Republicans, would like to add to the bill our other public lands. We would like to add the national forests.

The Cherokee National Forest, for example, is in Tennessee and North Carolina. It is even bigger than the Smokies. It has 3 million visitors a year. It also has about $27 million of deferred maintenance. It will never be able to do that without this bill or something like it.

I said: How about our wildlife refuges, Mr. President? We have the Tennessee Wildlife Refuge. It has $8 million in deferred maintenance. It won't be able to get the boat ramps right so people can go fishing over by Kentucky Lake.

The President said: I will support it. Put it in if the Democrats and Republicans cosponsoring the bill want it in there.

Because he did, it is in there.

It is in there just like the House of Representatives brought the bill out of its committee—it had those public lands in there. We didn't when it came out of our committee. It had the Land and Water Conservation Fund in the House, just as we did when it came out.

Let's talk about the Land and Water Conservation Fund for a minute. That was supposed to be $900 million a year from oil and gas revenues that are spent by the Federal Government and by State governments to buy treasured lands.

The Senator from Montana, Senator DAINES, says that in his State, 80 percent of the fishing accesses have been purchased by the Land and Water Conservation Fund.

In my State, the Governor opened a new park, Rocky Fork, a magnificent place in Upper East Tennessee, much of it purchased by Land and Water Conservation Fund money—$221 million into Tennessee since 1964.

But that is not as much as it was supposed to be because when this was enacted by Congress in 1964, at the recommendation of the Rockefeller Commission—the first outdoor recreation review commission—it was supposed to be $900 million a year. Environmental burden—that is the oil and gas drilling; environmental benefit—that is the purchase of conservation land. The money gets credited over in the Treasury Department, but it doesn't get spent every year. This changes that.

This is not just an idea of the Lawrence Rockefeller Commission in the sixties. In 1985 and 1986, President Reagan appointed the President's Commission on Americans Outdoors. I chaired that Commission, and the No. 1 recommendation of the Commission was permanent funding for the Land and Water Conservation Fund.

So since the midsixties, good people in this body and good people outside of this body have been working to make the Land and Water Conservation Fund permanent and haven't been able to do that, but now we can.

Now let's talk about the money for a minute.

Senator PORTMAN, a former director of the budget office, points out that we are spending real money to reduce an unpaid debt. This isn't like just adding to the budget, which we do sometimes without paying for it. This is real money. If we don't produce enough oil this year—and last year we produced about 11.6 billion by selling energy produced on our public lands—if we don't produce the money, we don't spend it. Some have objected that it is mandatory and not paid for. That is a difference of opinion. The Office of Management and Budget has approved it, and the President's budget has approved it. I think it is paid for because it is real money to reduce unpaid debt.

For example, we take some of the money from energy exploration, and if you live in Wyoming, you get 50 percent of it right off the top. If you live in Alaska, you get 90 percent right off the top. If you live in Louisiana, you get 27½ percent, or in any other coastal State, or you might get 37½ percent from another area. All that money is mandatory in the sense that it has to be paid to those States every year. We are just taking some of that kind of money out of that pot, after the others have been paid, and spending it for this purpose.

This would not have happened if it weren't for an unusual group of Senators who worked on this for a long time: Senators BURR and CANTWELL; Senators GARDNER, MANCHIN, and DAINES on the Land and Water Conservation Fund; and then on the parks, Senator WARNER and Senator PORTMAN, who went to work early.

Secretary Zinke came to see me in Tennessee 3 years ago and asked me to work on the parks bill, and I was delighted to find, when Senators KING and HEINRICH and I began working on it, that there were a number of us with the same idea.

As I mentioned, President Trump has been behind it from the beginning and behind the expansion of it, and he is the first President that has allowed us to use money from energy exploration for this purpose, and he should deserve credit for that.

Senator MCCONNELL deserves credit. He has a lot that he could put on the floor, and he put this bill on the floor for 2 weeks. Only the majority leader can do that, and he did it.

I am grateful to Senator SCHUMER and the Democratic leadership for creating an environment in which we could pass this bill in a bipartisan way.

It is said that if you want to pass a big piece of legislation in the U.S. Senate, you need three things. One is that it is an important objective that is good for the country. One is good relationships among the sponsoring Senators. And one is a superior staff. We have had all three of those, and I would like to place into the RECORD—or I think I will read them—the names of some of the staff members who have been so helpful to us: Curtis Swager and Jennifer Loraine of Senator GARDNER's office; Jason Thielman, Joshua Sizemore, and Holly Hinojosa of Senator DAINES' office; Lance West, David Brooks, and Renae Black of Senator MANCHIN's office; Pam Thiessen and Sarah Peery of Senator PORTMAN's office; Elizabeth Falcone and Micah Barbour of Senator WARNER's office; David Cleary, Lindsay Garcia, Allison Martin, and Anna Newton of my staff; Chad Metzler, Morgan Cashwell, and Kate Durost of Senator KING's office; Amit Ronen of Senator CANTWELL's office; Maya Hermann and Virgilio Barrera of Senator HEINRICH's office. We thank them for their work.

And then there are the advocates. Not many bills have more than 800 groups in its support. It is quite a coalition when you get President Trump and virtually all of the conservation, sportsmen, angler, and environmental groups behind the same bill. We owe all of them thanks for that. Sally Jewell, the former Secretary of the Interior, has been at the forefront of much of that. We hope that once this passes the Senate tomorrow with a big vote, they will carry it across the finish line in the House of Representatives.

The Federal Government is not always the most popular entity in the United States, but sometimes we are. When our military keeps our country safe, we are grateful for that. When the National Institutes of Health creates medical miracles, we are grateful for that. We are grateful when the Federal Government creates 419 properties—from the National Mall to Pearl Harbor, to the Grand Canyon, to the Great Smokies—for us to enjoy and preserve.

England has its history, Italy has its art, and Egypt has its pyramids. But the United States of America has the great American outdoors. It is an essential part of the American character, and the Great American Outdoors Act is an essential part of being good stewards of what Ken Burns has called our best idea, so that the next generation can enjoy the outdoors as this generation has been privileged to do.

I yield the floor.

The PRESIDING OFFICER (Ms. MCSALLY). The Senator from Louisiana.

Mr. CASSIDY. Madam President, I rise to speak about the Great American Outdoors Act or, more particularly, about the absence of a coastal resiliency amendment that I wish to have included.

Let me begin by congratulating Senators CORY GARDNER and STEVE DAINES, from Colorado and Montana, respectively, of their pending success in passing the Great American Outdoors Act. It takes lots of work to build enough support to get legislation

to this floor for a vote, and even more to see that it passes. The people of Montana and Colorado should be proud of how their Senators fought and delivered billions to restore their national parks. I commend my colleagues.

Those who have followed the debate know that I have opposed the bill as written. National parks are national treasures, but what led to my opposition is, I believe, that the Senate had the opportunity to help the more than 135 million Americans who live in a coastal parish or county by concomitantly funding flood mitigation and coastal resiliency projects. I fought hard to include a provision that would have invested in the coast to fortify against hurricanes and other catastrophic flooding events. Funding coastal resiliency would have passed as part of this legislation. It is an opportunity lost, but I have been reassured that enough Senators care about the issue, and perhaps they care about the issue because of the arguments that I have made.

I will review these arguments first for the Nation and then for the area of the Nation most affected by coastal erosion, which is Louisiana, and then speak about possible solutions.

First, over 272 million Americans live in coastal States, and 134 million Americans live in a parish or county directly on the coast, and they know sea levels are rising. Because sea levels are rising, they are increasingly exposed to flooding. Now, if Congress does not act on coastal resiliency, these Americans, their lives, their communities, and livelihood will be increasingly in danger.

By the way, the American taxpayer will spend billions in disaster recovery because the Federal Government declined to invest in prevention on the front end. Just to make this point, I will show my first poster.

These are major coastal flood events since 2003, and these are only the named storms. It does not include the flood events that were not named, and some everybody remembers. Ivan was $20.5 billion. Katrina was $125 billion. Ike was $30 billion. Sandy was $65 billion. Isaac was $10 billion. Harvey was $125 billion. Irma was $50 billion. And Maria was $90 billion. If you are in one of the States affected by one of these storms, to say that name brings to mind friends that were lost, communities that were devastated, and lives that were overturned. This is merely the accounting, which totals, since 2003, that the Federal Government has spent $617.9 billion in recovery after these storms, and that does not include unnamed flood events.

Just as examples, people along the coast, wherever you are on the coast in the United States, including the Great Lakes, are at increased risk for large scale devastation, in part, because of sea levels rising, and natural barriers to absorb storm surge are eroding away.

Let's just go around the Nation. Let's first look at the Alaskan village of Kivalina, located on an island that is literally vanishing because of sea level rise. There you see kind of a rock jetty around it, but the rock jetty is kind of missing over here. But you can imagine, as sea levels rise, and waves, which in this picture are not there but you know in that area of the world are high at times, this will fulfill the Army Corps of Engineers' prediction that in 10 years, this island will be uninhabitable.

Alaska's Senator, LISA MURKOWSKI, recognizes the threat to her State should barrier islands disappear. I thank her for her support during the debate on the Great American Outdoors Act for increased funds for coastal resiliency.

That is our northern part. Let's go to the Virgin Islands.

Erosion has eliminated many trees and water vegetation that are vital to absorbing storm surge. These problems were compounded by Hurricane Irma, meaning that the next major hurricane could be worse. Could it be worse than that? Look at the American Virgin Islands after Hurricane Irma. If it is worse than that, then this may be as the island is in Alaska—threatening to be uninhabitable.

Rising sea levels are threatening beaches up and down the coast of California, eliminating barrier islands in North Carolina and Georgia, and causing property values to fall and insurance rates to rise where cases are at their worst.

But let me speak of the worst-case scenario of sea level rising and land receding. Unfortunately, from my perspective, the worst area is in Louisiana. By the time I am through with this speech, Louisiana will have lost about half a football field of land from the coast; it is washing away that fast. To date, we have lost land equal to the size of Delaware. At the current rate, Louisiana will lose about 640,000 more acres by 2050. That is like cutting Rhode Island out of the eastern coast.

I mention Rhode Island and will take that opportunity to thank SHELDON WHITEHOUSE from Rhode Island for recognizing the challenges coasts face and working with me to provide more support for more resiliency. He actually came down and looked at our plan.

Wherever you see red, in a very reasonable scenario, that land will be gone by year 50. And you can see that New Orleans effectively becomes an island. Can you imagine what the Federal Government would have to pay if a big storm came through without any wetlands to decrease the intensity? That would damage not just New Orleans but all the ports that inland United States depend on to get their goods to the rest of the world. I will have more on the importance of that port system later.

As the marshes sink into the gulf, Louisiana is losing more than our treasured wetlands and the wildlife that call them home; we are losing natural barriers that save populated areas from the full brunt of hurricane forces.

According to NOAA, peak floods can be reduced by up to 60 percent in watersheds that contain 15 percent wetlands. These wetlands act as natural sponges for floodwaters and buffer storm surges. The wetland vegetation holds sediment in place with their roots, and this preserves the land and further helps to absorb waves.

What I just described is a dire forecast, but it is also a reality that is playing out. We had a storm a week ago. Tropical Storm Cristobal struck Louisiana. Here we see images of a damaged levee system in Grand Isle, where storm surge completely washed away 2,000 feet of protection.

Yes, those are buildings. Yes, that is a street. Yes, that is water in the middle of the street between the buildings. I will add that Grand Isle has lost about 9 feet of elevation over the past decades.

When this washed away, it exposed what is called a burrito levee underneath, and that was damaged as well.

Mayor David Camardelle recently told the Times-Picayune—the newspaper in New Orleans—that the damage Grand Isle suffers ''is a crisis situation. I'm worried this island will be cut in half.''

Cristobal also flooded the old Mandeville neighborhood. This is Mandeville, and this is Cristobal. This shows how Lake Pontchartrain, which is the lake north of New Orleans, and the streets ashore basically merged for this storm event.

This is just from a tropical storm. Imagine if a bigger hurricane had landed instead—except we don't have to imagine. We can look at what happened. And unfortunately it will happen again.

What is at stake in Louisiana without more investment in resiliency? Let's start with lives. Hurricane Katrina killed 1,833 people and damaged or destroyed 800,000 homes. That was in Louisiana, in Mississippi, in Alabama, and in Florida. That is just one storm. We have actually seen loss of life worse since then in Puerto Rico, where Hurricane Maria claimed 3,057 lives. As I mentioned earlier, the dollar amount was greater in Sandy, which hit New York and New Jersey, and the most recent flooding events—Hurricane Harvey, for example, in the Houston area flooded so many homes. It is not just my home State; it is across the Nation.

By the way, impacting my home State impacts the rest of the Nation.

This is a picture from Hurricane Katrina. This Congress was very helpful in the aftermath. But let me speak about what will happen if we don't address these issues.

The Nation's energy infrastructure is threatened. The Gulf of Mexico generates about 90 percent of the funds used to pay for the Great American Outdoors Act. Oil and gas development, particularly in the Outer Continental Shelf, is that which funds this bill. Failing to secure the energy infrastructure can result in devastating damage

to the heart of America's energy production center should a major storm destroy the roads, ports, wells, and pipelines that keep America running.

There is a certain irony that this bill, which chose not to fund coastal resiliency, relies upon funding from an infrastructure that is endangered by the lack of coastal resiliency. But this, in turn, threatens America's heartland.

Trade from America's heartland to the rest of the world flows. Agricultural products are shipped down the Mississippi River to the Louisiana ports and then internationally—that is, so long as the ports keep functioning.

Again, let's look at the results of the damage to those ports—just the Port of New Orleans—after Hurricane Katrina. Damage to the Port of New Orleans after Hurricane Katrina resulted in corn exports falling 23 percent from the heartland—not from Louisiana but from Iowa, from the heartland, from Missouri, et cetera. Barley exports fell 100 percent. Wheat exports fell 54 percent. Soybean exports were down 25 percent. Total grain exports were down 24 percent.

It is clear that the United States benefits as a whole when Louisiana's coastline is fully functional and secure, both its energy supply—its funding for the Great American Outdoors Act—as well as the ability of farmers in the heartland to ship their goods internationally. But now the coastline is not secure. Aggressive action is needed to save the coastline—not just in my State but all around—to protect it from erosion and to protect it from flooding.

In Louisiana, the money generated from revenue sharing of offshore energy production by an amendment in the Louisiana State Constitution is invested into coastal resiliency. I am trying to make sure that we have the resources to continue to do so.

That brings us to revenue sharing. As I have said before, oil and gas development in the Gulf of Mexico generates 90 percent of the funding for the Great American Outdoors Act, and the gulf coast contributes billions of revenue to the Treasury annually, but the amount of money that is shared with our coastline is quite small relative to what inland States receive.

I bring this up because someone said: Well, Louisiana does get money from the coast.

Let me just kind of explain this slide. In this slide, this is the total amount of revenue for the Federal for fiscal year 2018 from oil and gas development in the Gulf of Mexico. You can see there is close to $5 billion generated. These States here—Alabama, Louisiana, Mississippi, and Texas—share $375 million of that money.

Let's look at the inland States. Here is all of the revenue from the inland States. The best I can tell, in that same year, New Mexico got about $1.25 billion. Wyoming got $1.15 billion. Colorado did pretty well; it looks like they got about $400 million or $500 million. So the Gulf Coast States split between them $375 million from a total of about $4.8 billion. New Mexico gets 50 percent of the money generated in their inland areas, and so they get close to $1.25 billion. Louisiana could do so much with $1.25 billion to protect and to rebuild its wetlands, the infrastructure for energy, the infrastructure for ports, and I could go on.

So folks are right. We do currently participate in revenue sharing. It is a shadow of what other States get with far less of a total amount.

By the way, our amendment, which I have written with Senator WHITEHOUSE, is based upon what is called GOMESA, the Gulf of Mexico Energy Security Act. In that, Gulf States keep 37.5 percent of the revenues, up until a cap of $375 million. I have mentioned that cap already. Additionally, there is $125 million put into the Land and Water Conservation Fund, that which is now going to receive an additional $900 million annually from the Great American Outdoors Act. My coastal amendment would remove that cap, meaning that Gulf States would have a more equitable share of the revenue we produce.

The LWCF would continue to get the $125 million it would receive, but there would be another amount of money that would go into the LWCF portion of this that would, under our amendment, go into a coastal resiliency fund. That coastal resiliency fund would be used all around the Nation. It could be used in Florida, in Georgia, in Maine, in Alaska, in Washington State, in Hawaii—you name it. Where we have beach communities threatened and coastal parishes and counties regularly flooding, this money would be available.

What I am asking for is fair treatment for the States that put in the work and contribute so mightily to the rest of the country. Hopefully with this, we can turn the tide of land loss.

By the way, the amendment we have is also combined with revenue sharing for offshore wind. This is SHELDON WHITEHOUSE's idea. So in the immediate and intermediate, there would be revenue sharing from oil and gas development, and in the long term, there would be revenue sharing from offshore wind as our Nation transitions to more of that as an energy source.

I have talked a lot about gloom and doom in this speech. Let's end on a hopeful note. Not all is lost. With smart strategies in funding, we can turn the tide on erosion, rebuild land, and strengthen the coastline.

There are examples of what is working. Terrebonne Parish is in South Louisiana. It is right on the Gulf of Mexico. It has a new flood wall, which recently saved 10,000 households from flooding. We invested in flood protection, and we saved 10,000 families from flooding. We saved money for the National Flood Insurance Program. A community is intact. Kids still go off on Saturday and play ball, and people still go to their jobs on Monday. Investing on the front end saved a heck of a lot on the back end—lives, communities, and money for the Federal taxpayer.

Let's look at a coastal rebuilding project we have. Davis Pond is an area along the Mississippi that has eroded. This is Google pictures. Here, you can see that in February of 1998, erosion had occurred such that all of this, which is along the coast, had eroded. You can see kind of a big lake right there, and you can see kind of a breakup of the land. You have a sense of an unhealthy nature. Even though this is a black-and-white photo, nonetheless you have that sense.

A diversion was built so that Mississippi River water could flood this area. In the 20 years since, you can see that the lake has filled in, that it is still wetland, it is still marsh, but here you have vegetation growing. Back here, if you stepped out of the boat, you sank into water. Now, you step out of the boat, and the vegetation is so thick that it supports you as you walk along. This is what can happen with wise management.

Look at this community. This community is now protected because we now have a barrier of wetlands. So rebuilding wetlands saves communities. It allows nature to do its work. It saves the taxpayer dollars in the long run.

I am going to show another example—Mardi Gras Pass, a naturally forming distributary of the Mississippi River that is building new land. Mardi Gras Pass has grown by 13 acres since 2012.

Let's see if I have my pictures straight here. Here is the Mississippi River, and here is where the river kind of spontaneously broke through right in this area right here.

Since then, as it continues to flow through, we have something which doesn't look very healthy here, which increasingly has vegetation. Here is a bayou, which increasingly is building up vegetation. I am not sure these picture do it justice, but now you actually have trees growing, and you have such a density of land being built that you now again have oak trees, which Louisiana is famous for.

We can rebuild our coastline. The Mardi Gras Pass delivers fresh water, nutrients, and sediments to 15,000 acres of coastal marsh.

These projects take time, but they never get started without the type of funding I advocated to be included in the Great American Outdoors Act—the amount we could spend on the front end and save lives and dollars for the Federal taxpayer compared to the expenses required for storm recovery.

Let me conclude. I end the day by once again commending my colleagues, Senator GARDNER and DAINES, for getting their bill passed, but I also end by saying that we must continue to fight for dollars for coastal resiliency. The

need is far too great around the country. Lives and our economy depend on finding that solution.

I hope the Senators who said they recognize coastal needs will join the bipartisan coalition of Senators who now are asking that we invest in the coastal parishes and counties where 82 percent of Americans live in the States and 42 percent of Americans live in a parish or county, where spending money now can save lives, communities, and billions in taxpayer dollars later.

With that, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. GARDNER. I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

MORNING BUSINESS

Mr. GARDNER. Madam President, I ask unanimous consent that the Senate be in a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

ARMS SALES NOTIFICATION

Mr. RISCH. Madam President, section 36(b) of the Arms Export Control Act requires that Congress receive prior notification of certain proposed arms sales as defined by that statute. Upon such notification, the Congress has 30 calendar days during which the sale may be reviewed. The provision stipulates that, in the Senate, the notification of proposed sales shall be sent to the chairman of the Senate Foreign Relations Committee.

In keeping with the committee's intention to see that relevant information is available to the full Senate, I ask unanimous consent to have printed in the RECORD the notifications which have been received. If the cover letter references a classified annex, then such annex is available to all Senators in the office of the Foreign Relations Committee, room SD–423.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

DEFENSE SECURITY COOPERATION AGENCY,
Arlington, VA.

Hon. JAMES E. RISCH,
Chairman, Committee on Foreign Relations, United States Senate, Washington, DC.

DEAR MR. CHAIRMAN: Pursuant to the reporting requirements of Section 36(b)(1) of the Arms Export Control Act, as amended, we are forwarding herewith Transmittal No. 20–42 concerning the Navy's proposed Letter(s) of Offer and Acceptance to the Government of Canada for defense articles and services estimated to cost $862.3 million. After this letter is delivered to your office, we plan to issue a news release to notify the public of this proposed sale.

Sincerely,

CHARLES W. HOOPER,
Lieutenant General, USA, Director.

TRANSMITTAL NO. 20–42

Notice of Proposed Issuance of Letter of Offer Pursuant to Section 36(b)(1) of the Arms Export Control Act, as amended

(i) Prospective Purchaser: Government of Canada.

(ii) Total Estimated Value:

Major Defense Equipment*, $204.50 million.

Other, $657.80 million.

Total, $862.30 million.

(iii) Description Quantity or Quantities of Articles or Services under Consideration for Purchase:

Major Defense Equipment (MDE):

Fifty (50) Sidewinder AIM–9X Block II Tactical Missiles.

Fifty (50) Sidewinder AIM–9X Block II Captive Air Training Missiles (CATMs).

Ten (10) Sidewinder AIM–9X Block II Special Air Training Missiles (NATMs).

Ten (10) Sidewinder AIM–9X Block II Tactical Guidance Units.

Ten (10) Sidewinder AIM–9X Block II CATM Guidance Units.

Thirty-eight (38) APG–79(V)4 Active Electronically Scanned Array (AESA) Radar.

Thirty-eight (38) APG–79(V)4 AESA Radar A 1 Kits.

Twenty (20) Joint Standoff Weapon (JSOW) C, AGM–154C.

Forty-six (46) F/A–18A Wide Band RADOMEs.

Non-MDE: Also included are additional technical and logistics support for the AESA radar; upgrades to the Advanced Distributed Combat Training System (ADCTS) to ensure flight trainers remain current with the new technologies; software development to integrate the systems listed into the F/A–18A airframe and install Automated Ground Collision Avoidance System (Auto GCAS); thirty (30) Bomb Release Unit (BRU)—42 Triple Ejector Racks (TER); thirty (30) Improved Tactical Air Launched Decoy (ITALD); one hundred four (104) Data Transfer Device/Data Transfer Units (DTD/DTU); twelve (12) Joint Mission Planning System (JMPS); one hundred twelve (112) AN/ARC–210 RT–2036 (Gen 6) radios and F/A–18 integration equipment; support equipment; tools and test equipment; technical data and publications; U.S. Government and contractor engineering, technical, and logistics support services; and other related elements of logistical and program support.

(iv) Military Department: Navy (CN–P–LKZ, CN–P–LKW, CN–P–LLE, CN–P–LLA, CN–P–LKY, CN–P–LKX, CN–P–LDD, etc.).

(v) Prior Related Cases, if any: CN–P–FFE; CN–P–FEL; CN–P–LKS; CN–P–LKT.

(vi) Sales Commission, Fee, etc., Paid, Offered, or Agreed to be Paid: None.

(vii) Sensitivity of Technology Contained in the Defense Article or Defense Services Proposed to be Sold: See Attached Annex.

(viii) Date Report Delivered to Congress: June 15, 2020.

*As defined in Section 47(6) of the Arms Export Control Act.

POLICY JUSTIFICATION

Canada—Hornet Extension Program Related FMS Acquisitions

The Government of Canada has requested to buy fifty (50) Sidewinder AIM–9X Block II Tactical missiles; fifty (50) Sidewinder AIM–9X Block II Captive Air Training Missiles (CATMs); ten (10) Sidewinder AIM–9X Block II Special Air Training Missiles (NATMs); ten (10) Sidewinder AIM–9X Block II Tactical Guidance Units; ten (10) Sidewinder AIM–9X Block II CATM Guidance Units; thirty-eight (38) APG–79(V)4 Active Electronically Scanned Array (AESA) radar units; thirty-eight (38) APG–79(V)4 AESA Radar A1 kits; twenty (20) Joint Standoff Weapon (JSOW) C, AGM–154C; forty-six (46) F/A–18A Wide Band RADOMEs. Also included are additional technical and logistics support for the AESA radar; upgrades to the Advanced Distributed Combat Training System (ADCTS) to ensure flight trainers remain current with the new technologies; software development to integrate the systems listed into the F/A–18A airframe and install Automated Ground Collision Avoidance System (Auto GCAS); thirty (30) Bomb Release Unit (BRU)—42 Triple Ejector Racks (TER); thirty (30) Improved Tactical Air Launched Decoy (ITALD); one hundred four (104) Data Transfer Device/Data Transfer Units (DTD/DTU); twelve (12) Joint Mission Planning System (JMPS); one hundred twelve (112) AN/ARC–210 RT–2036 (Gen 6) radios and F/A–18 integration equipment; support equipment; tools and test equipment; technical data and publications; U.S. Government and contractor engineering, technical, and logistics support services; and other related elements of logistical and program support. The total estimated program cost is $862.3 million.

This proposed sale will support the foreign policy and national security objectives of the United States by helping to improve the military capability of Canada, a NATO ally that is an important force for ensuring political stability and economic progress and a contributor to military, peacekeeping and humanitarian operations around the world. This sale will provide Canada a 2-squadron bridge of enhanced F/A–18A aircraft to continue meeting NORAD and NATO commitments while it gradually introduces new advanced aircraft via the Future Fighter Capability Program between 2025 and 2035.

The proposed sale of the capabilities, as listed, will improve Canada's capability to meet current and future warfare threats and provide greater security for its critical infrastructure. This sale will provide Canada the ability to maximize the systems' employment and sustainment, significantly enhancing the warfighting capability of the Royal Canadian Air Force's F/A–18 aircraft. Canada will have no difficulty absorbing this equipment into its armed forces.

The proposed sale of this equipment and support will not alter the basic military balance in the region.

The prime contractors will be Raytheon Corporation, El Segundo, CA; General Dynamics Mission Systems, Marion, VA; The Boeing Company, St. Louis, MO; and Collins Aerospace, Cedar Rapids, IA. The purchaser typically requests offsets. Any offset agreement will be defined in negotiations between the purchaser and the contractor(s).

Implementation of this proposed sale will require the assignment of contractor representatives to Canada on an intermittent basis over the life of the case to support delivery and integration of items onto the existing F/A–18A aircraft and to provide supply support management, inventory control and equipment familiarization.

There will be no adverse impact on U.S. defense readiness as a result of this proposed sale.

TRANSMITTAL NO. 20–42

Notice of Proposed Issuance of Letter of Offer Pursuant to Section 36(b)(1) of the Arms Export Control Act

Annex Item No. vii

(vii) Sensitivity of Technology:

1. The following are included in this sale:

a. The AIM–9X Block II and Block II+ (Plus) SIDEWINDER Missile represents a substantial increase in missile acquisition and kinematics performance over the AIM–

9M and replaces the AIM–9X Block I Missile configuration. The missile includes a high off-boresight seeker, enhanced countermeasure rejection capability, low drag/high angle of attack airframe and the ability to integrate the Helmet Mounted Cueing System. The software algorithms are the most sensitive portion of the AIM–9X missile. The software continues to be modified via a preplanned product improvement (P3I) program in order to improve its counter-countermeasure capabilities. No software source code or algorithms will be released. The missile is classified as CONFIDENTIAL. The AIM–9X will result in the transfer of sensitive technology and information. The equipment, hardware, and documentation are classified CONFIDENTIAL. The software and operational performance are classified SECRET. The seeker/guidance control section and the target detector are CONFIDENTIAL and contain sensitive state-of-the-art technology. Manuals and technical documentation that are necessary or support operational use and organizational management are classified up to SECRET. Performance and operating logic of the counter-countermeasures circuits are classified SECRET. The hardware, software, and data identified are classified to protect vulnerabilities, design and performance parameters and similar critical information.

b. The AN/APG–79 Active Electronically Scanned Array (AESA) Radar System is classified SECRET. The radar provides the F/A–18A Hornet aircraft with all-weather, multimission capability for performing Air-to-Air and Air-to-Ground targeting and attack. Air-to-Air modes provide the capability for all-aspect target detection, long-range search and track, automatic target acquisition, and tracking of multiple targets. Air-to-Surface attack modes provide high-resolution ground mapping navigation, weapon delivery, and sensor cueing. The system component hardware (Antenna, Transmitter, Radar Data Processor, and Power Supply) is UNCLASSIFIED. The Receiver-Exciter hardware is CONFIDENTIAL. The radar Operational Flight Program (OFP) is classified SECRET. Documentation provided with the AN/APG–79 radar set is classified SECRET.

c. The AGM–154 Joint Standoff Weapon (JSOW) is used by Navy, Marine Corps, and Air Force, and allows aircraft to attack well-defended targets in day, night, and adverse weather conditions. AGM–154C carries a BROACH warhead. The BROACH warhead incorporates an advanced multi-stage warhead. JSOW–C uses the GPS Precise Positioning System (PPS), which provides for a more accurate capability than the commercial version of GPS. The JSOW–C incorporates components, software, and technical design information that are considered sensitive. The following JSOW–C components being conveyed by the proposed sale that are considered sensitive and are classified CONFIDENTIAL include the GPS/INS, IIR seeker, OFP software and missile operational characteristics and performance data. These elements are essential to the ability of the JSOW–C missile to selectively engage hostile targets under a wide range of operational, tactical, and environmental conditions.

d. The Wide Band RADOME (WBR) is a high performance nose radome designed for use with the Active Electronically Scanned Array (AESA) Radar. The WBR is required to leverage the full capability of the AESA Radar. The Radome will provide superior RF performance over broader AESA Radar operational bands which will give the user an advantage in operational scenarios. Specifically, the WBR will provide improved target detection with less interference and reduce jamming vulnerability. Purchasing the AESA without the WBR would significantly reduce the capability of the AESA and the user would gain very little advantage with the AESA.

e. The Upgrades to the Advanced Distributed Combat Training System (ADCTS), provides an aggressive program upgrade the warfighting capability of the F/A–18. The program will introduce new systems and weapons to the aircraft. In order to have pilots ready to utilize the new technologies, it is imperative that the user's Pilot Trainer (ADCTS) undergoes a parallel upgrade effort. The ADCTS is an integral part of the user's Pilot Training Syllabus and this procurement will address this requirement. It will provide pilots the ability to train with the new systems that will be resident in the aircraft in a simulated environment. This procurement will provide pilots the ability to maximize use of the new capabilities that will eventually translate to the operational environment and make the users Air Force a significant contributor to international coalition initiatives.

f. Software Development. The challenge facing the user nation is that in order to add all the new capabilities and weapons to the platform there is a parallel software effort required to ensure all the new capabilities have a software model that will support their integration and use. The success of the aggressive procurement of the systems and capabilities for the program will be dependent on the ability to develop and test the requisite software. This is a significant effort that will rely on Naval Air Weapons Station China Lake to develop the required products. This will entail development of the product, lab testing and eventually flight testing of the software loads. There will be some mutual software development, but the end result will depend on U.S. Government engineers to provide final check and approval of all software profiles. This FMS case funds this effort. Additionally, the software effort will support Automatic Ground Collision Avoidance System (A–GCAS). This system is also referred to as Automatic Terrain Avoidance Warning System (A–TAWS). This is flight control software that uses a terrain elevation database to calculate the aircraft's relative position above the ground. If it senses that the aircraft is on a collision course with the ground that is outside of normal parameters, it automatically commands the aircraft to roll wings level and recover away from a ground collision

g. The ADM–141C Improved Tactical Air-Launched Decoy (ITALD) is unclassified. The ITALD vehicle is intended to be delivered by sea- and land-based tactical aircraft, to cause an increase in the number of apparent targets to enemy defenses prior to or during air strikes. The ITALD system consists of the flight vehicle, launch rack (Improved Triple Ejector Rack (ITER)), Improved Decoy Tester/Programmer (IDTP), Radio Frequency Payload System Tester (PSST), and shipping/storage container. The ITALD is capable of functioning in the vehicle test mode, mission programming mode (using JMPS with ITALD UPC), GPS almanac uploading mode, captive carriage mode, launch mode, jettison mode, and free-flight mode.

h. The Joint Mission Planning System (JMPS) is classified SECRET. JMPS will provide mission planning capability for support of military aviation operations. It will also provide support for unit-level mission planning for all phases of military flight operations and have the capability to provide necessary mission data for the aircrew. JMPS will support the downloading of data to electronics data transfer devices for transfer to aircraft and weapon systems. A JMPS for a specific aircraft type will consist of basic planning tools called the Joint Mission Planning Environment (JMPE) mated with a Unique Planning Component (UPC) provided by the aircraft program. In addition, UPCs will be required for specific weapons, communication devices, and moving map displays. The JMPS will be tailored to the specific releasable configuration for the F/A–18A, with maximum commonality with the most advanced United States Marine Corps configuration of these aircraft.

i. The AN/ARC–210 RT–2036 (Gen 6) Radio's Line-of-sight data transfer rates up to 80 kb/s in a 25 kHz channel creating high-speed communication of critical situational awareness information for increased mission effectiveness. Software that is reprogrammable in the field via Memory Loader/Verifier Software making flexible use for multiple missions. The AN/ARC–210 has embedded software with programmable cryptography for secure communications. Relative to the 5th Generation AN/ARC–210 radios, the 6th generation AN/ARC–210 RT–2036 adds, in addition to newer hardware, the Mobile User Objective System (MUOS) capability. Access to the MUOS satellite constellation can be effectively controlled by withholding the relevant order wire keys from RT–2036 users.

2. If a technologically advanced adversary were to obtain knowledge of the specific hardware or software in this proposed sale, the information could be used to develop countermeasures which might reduce weapon system effectiveness or be used in the development of a system with similar or advance capabilities.

3. A determination has been made that the recipient country, the Government of Canada can provide substantially the same degree of protection for the classified and sensitive technology being released as the United States Government. This sale is necessary in furtherance if the United States Foreign Policy and National Security objectives outlined in the Policy Justification.

4. All defense articles and services listed in this transmittal have been authorized for release and export to the Government of Canada.

ADDITIONAL STATEMENTS

RECOGNIZING BEST MEMORIES ACADEMY

• Mr. RUBIO. Madam President, as chairman of the Senate Committee on Small Business and Entrepreneurship, each week I recognize a small business that exemplifies the American entrepreneurial spirit at the heart of our country. It is my privilege to recognize a woman-owned small business that provides an enriching environment for children and serves a diverse community. This week, it is my pleasure to honor Best Memories Academy of Orlando, FL, as the Senate Small Business of the Week.

For 20 years, Best Memories Academy has provided quality childcare for families in Orlando, FL. When her son was 2 years old, Lyana Vazquez, originally from Puerto Rico, began searching for a daycare program that would provide instruction in English and Spanish, but options were limited in the Orlando area. Undeterred, Lyana founded Best Memories Academy, to provide daycare and preschool programs with an emphasis on bilingual education.

Over the years, Best Memories Academy has expanded its services. Lyana developed a bilingual curriculum and built strong relationships with Orlando's growing Latino community. She hired educators who spoke English and Spanish, incorporating the LENA Grow Program into their training. This research-based program enabled staff to begin conversational language teaching during critical stages of language learning. In 2019, Best Memories Academy began offering kindergarten and first grade instruction in addition to voluntary prekindergarten and after-school care. They partnered with the Early Learning Coalition of Orange County, ELCOC, to host educational workshops and community outreach events, becoming one of the premier daycare centers in the area.

Like many other small businesses, Best Memories Academy experienced a sharp decline in revenue due to the coronavirus pandemic. As student enrollment dropped, Lyana modified her business operations to comply with the latest best practices from the Center for Disease Control, Florida Department of Health, and Florida Department of Children and Families. Together, she and her team assembled and dropped remote-learning packets for students, taking special care with the materials for children whose families lacked internet access. Despite the challenges, Lyana was determined to stay open to care for the children of essential workers and keep her employees paid.

When the U.S. Small Business Administration launched the Paycheck Protection Program PPP, Lyana immediately applied. The PPP provides forgivable loans to impacted small businesses and nonprofits who maintain their payroll during the COVID–19 pandemic. Nine days after she submitted an application, Best Memories Academy received funding for a PPP loan in early April. As a result, Lyana was able to keep her 12 employees paid and keep her business open until Florida began to reopen and students returned. For Lyana and her team, the Paycheck Protection Program didn't just provide a salary—it provided hope.

Best Memories Academy is a notable example of the role of relationship-driven small businesses in building community. I commend their work to provide high-quality bilingual education to children ranging from infancy to elementary school. Congratulations to Lyana and the entire team at Best Memories Academy. I look forward to watching your continued growth and success in the Orlando area.●

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–4821. A communication from the Director of Legislative Affairs, Federal Deposit Insurance Corporation, transmitting, pursuant to law, the report of a rule entitled ''Regulatory Capital Rule: Revised Transition of the Current Expected Credit Losses Methodology for Allowances; Correction'' (RIN3064–AF46) received in the Office of the President of the Senate on June 11, 2020; to the Committee on Banking, Housing, and Urban Affairs.

EC–4822. A communication from the Director of Legislative Affairs, Federal Deposit Insurance Corporation, transmitting, pursuant to law, the report of a rule entitled ''Interim Final Rule - Regulatory Capital Rule: Temporary Exclusion of U.S. Treasury Securities and Deposits at Federal Reserve Banks from the Supplementary Leverage Ratio for Depository Institutions'' (RIN3064–AF44) received in the Office of the President of the Senate on June 11, 2020; to the Committee on Banking, Housing, and Urban Affairs.

EC–4823. A communication from the Chairman and President of the Export-Import Bank, transmitting, pursuant to law, a report relative to transactions involving U.S. exports to Turkey; to the Committee on Banking, Housing, and Urban Affairs.

EC–4824. A communication from the Chairman and President of the Export-Import Bank, transmitting, pursuant to law, a report relative to transactions involving U.S. exports to various countries; to the Committee on Banking, Housing, and Urban Affairs.

EC–4825. A communication from the Chairman, Federal Maritime Commission, transmitting, pursuant to law, the Commission's Semiannual Report of the Inspector General for the period from October 1, 2019 through March 31, 2020; to the Committee on Homeland Security and Governmental Affairs.

EC–4826. A communication from the President and Chief Executive Officer, National Railroad Passenger Corporation, Amtrak, transmitting, pursuant to law, a report relative to Fiscal Year 2020 emergency funding in the CARES Act; to the Committee on Commerce, Science, and Transportation.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. COONS (for himself, Mr. WICKER, Mr. BOOKER, Mr. GRAHAM, Mr. REED, Mr. RUBIO, Ms. DUCKWORTH, Mrs. HYDE-SMITH, Ms. HARRIS, Mr. CASSIDY, Ms. BALDWIN, Mr. CORNYN, Mr. KING, and Ms. COLLINS):

S. 3964. A bill to amend the national service laws to prioritize national service programs and projects that are directly related to the response to and recovery from the COVID–19 public health emergency, and for other purposes; to the Committee on Finance.

By Mr. HEINRICH (for himself and Mr. PORTMAN):

S. 3965. A bill to accelerate the application of artificial intelligence in the Department of Defense and to strengthen the workforce that pertains to artificial intelligence, and for other purposes; to the Committee on Armed Services.

By Mr. CRUZ:

S. 3966. A bill to provide a tax credit to businesses that provide testing for COVID–19 to their employees; to the Committee on Finance.

By Mr. SCHATZ (for himself and Ms. HIRONO):

S. 3967. A bill to reform Federal Aviation Administration safety requirements for commercial air tour operators, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. COTTON:

S. 3968. A bill to create an award for law enforcement officers who exemplify best practices to reduce the excessive use of force or improve community policing, and for other purposes; to the Committee on the Judiciary.

By Mr. WICKER (for himself and Ms. CANTWELL):

S. 3969. A bill to amend title 49, United States Code, to reform the Federal Aviation Administration's aircraft certification process, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mrs. LOEFFLER:

S. 3970. A bill to amend the Department of Agriculture Reorganization Act of 1994 to promote an American agriculture first agenda and establish the position of Domestic Agriculture Supply Chain Administrator in the Office of the Secretary of Agriculture to connect United States farmers with foodbanks, grocers, and nonprofit food distributors during periods of food scarcity, and for other purposes; to the Committee on Agriculture, Nutrition, and Forestry.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. PORTMAN (for himself and Mr. BROWN):

S. Res. 623. A resolution commemorating Otto Frederick Warmbier and condemning the North Korean regime for their continued human rights abuses; to the Committee on Foreign Relations.

By Mr. COONS (for himself and Mr. RUBIO):

S. Res. 624. A resolution expressing the sense of the Senate that the activities of Russian national Yevgeniy Prigozhin and his affiliated entities pose a threat to the national interest and national security of the United States; to the Committee on Foreign Relations.

ADDITIONAL COSPONSORS

S. 631

At the request of Mr. CARPER, the name of the Senator from Montana (Mr. TESTER) was added as a cosponsor of S. 631, a bill to provide for the admission of the State of Washington, D.C. into the Union.

S. 2417

At the request of Mr. KENNEDY, the name of the Senator from Indiana (Mr. YOUNG) was added as a cosponsor of S. 2417, a bill to provide for payment of proceeds from savings bonds to a State with title to such bonds pursuant to the judgment of a court.

S. 3748

At the request of Mr. CORNYN, the name of the Senator from Montana (Mr. DAINES) was added as a cosponsor of S. 3748, a bill to award a Congressional Gold Medal to the United States Army Dust Off crews of the Vietnam War, collectively, in recognition of their extraordinary heroism and lifesaving actions in Vietnam.

S. 3756

At the request of Mr. GRASSLEY, the names of the Senator from Nebraska

(Mrs. FISCHER), the Senator from Missouri (Mr. BLUNT) and the Senator from South Dakota (Mr. ROUNDS) were added as cosponsors of S. 3756, a bill to direct the Secretary of Agriculture to establish a renewable fuel feedstock reimbursement program.

S. 3933

At the request of Mr. CORNYN, the name of the Senator from New York (Mrs. GILLIBRAND) was added as a cosponsor of S. 3933, a bill to restore American leadership in semiconductor manufacturing by increasing federal incentives in order to enable advanced research and development, secure the supply chain, and ensure long-term national security and economic competitiveness.

S. 3955

At the request of Mr. PAUL, the name of the Senator from Indiana (Mr. BRAUN) was added as a cosponsor of S. 3955, a bill to prohibit no-knock warrants, and for other purposes.

S. RES. 509

At the request of Mr. TOOMEY, the names of the Senator from Oregon (Mr. WYDEN) and the Senator from Oklahoma (Mr. LANKFORD) were added as cosponsors of S. Res. 509, a resolution calling upon the United Nations Security Council to adopt a resolution on Iran that extends the dates by which Annex B restrictions under Resolution 2231 are currently set to expire.

S. RES. 615

At the request of Mr. GARDNER, the name of the Senator from Texas (Mr. CRUZ) was added as a cosponsor of S. Res. 615, a resolution recognizing the 70th anniversary of the outbreak of the Korean War and the transformation of the United States-South Korea alliance into a mutually beneficial, global partnership.

AMENDMENT NO. 1639

At the request of Mr. LEE, the name of the Senator from Utah (Mr. ROMNEY) was added as a cosponsor of amendment No. 1639 intended to be proposed to H.R. 1957, a bill to amend the Internal Revenue Code of 1986 to modernize and improve the Internal Revenue Service, and for other purposes.

AMENDMENT NO. 1640

At the request of Mr. LEE, the name of the Senator from Utah (Mr. ROMNEY) was added as a cosponsor of amendment No. 1640 intended to be proposed to H.R. 1957, a bill to amend the Internal Revenue Code of 1986 to modernize and improve the Internal Revenue Service, and for other purposes.

AMENDMENT NO. 1641

At the request of Mr. LEE, the name of the Senator from Utah (Mr. ROMNEY) was added as a cosponsor of amendment No. 1641 intended to be proposed to H.R. 1957, a bill to amend the Internal Revenue Code of 1986 to modernize and improve the Internal Revenue Service, and for other purposes.

AMENDMENT NO. 1643

At the request of Mr. LEE, the name of the Senator from Utah (Mr. ROMNEY) was added as a cosponsor of amendment No. 1643 intended to be proposed to H.R. 1957, a bill to amend the Internal Revenue Code of 1986 to modernize and improve the Internal Revenue Service, and for other purposes.

AMENDMENT NO. 1646

At the request of Mr. LEE, the name of the Senator from Utah (Mr. ROMNEY) was added as a cosponsor of amendment No. 1646 intended to be proposed to H.R. 1957, a bill to amend the Internal Revenue Code of 1986 to modernize and improve the Internal Revenue Service, and for other purposes.

AMENDMENT NO. 1647

At the request of Mr. LEE, the name of the Senator from Utah (Mr. ROMNEY) was added as a cosponsor of amendment No. 1647 intended to be proposed to H.R. 1957, a bill to amend the Internal Revenue Code of 1986 to modernize and improve the Internal Revenue Service, and for other purposes.

AMENDMENT NO. 1650

At the request of Mr. LEE, the name of the Senator from Utah (Mr. ROMNEY) was added as a cosponsor of amendment No. 1650 intended to be proposed to H.R. 1957, a bill to amend the Internal Revenue Code of 1986 to modernize and improve the Internal Revenue Service, and for other purposes.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 623—COMMEMORATING OTTO FREDERICK WARMBIER AND CONDEMNING THE NORTH KOREAN REGIME FOR THEIR CONTINUED HUMAN RIGHTS ABUSES

Mr. PORTMAN (for himself and Mr. BROWN) submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 623

Whereas Otto Frederick Warmbier was born on December 12, 1994, in Cincinnati, Ohio, to parents Fred and Cindy Warmbier;

Whereas, upon his graduation as Salutatorian from Wyoming High School in 2013, Otto attended the University of Virginia;

Whereas, on December 29, 2015, Otto flew to North Korea as part of a guided tour;

Whereas, on January 2, 2016, the Government of the Democratic People's Republic of Korea arrested Otto Warmbier on false charges of ''subversion'' and committing a ''hostile act'';

Whereas, on March 16, 2016, Otto Warmbier was convicted and sentenced to 15 years of hard labor;

Whereas, as a result of his mistreatment at the hands of North Korean authorities, Otto Warmbier suffered a serious medical emergency which placed him into a comatose state, and the North Korean authorities failed to report the deterioration of Otto Warmbier's physical condition to United States authorities;

Whereas, on June 13, 2017, after 17 months in captivity, the United States Department of State announced that it had secured the release of Otto Warmbier, whereupon he was medically evacuated from North Korea in a comatose state to the University of Cincinnati Medical Center;

Whereas, on June 19, 2017, Otto Warmbier died in the hospital as a result of his mistreatment at the hands of the Government of the Democratic People's Republic of Korea;

Whereas, on December 24, 2018, the United States District Court for the District of Columbia concluded that the Government of the Democratic People's Republic of Korea was responsible for the ''torture, hostage taking, and extrajudicial killing'' of Otto Warmbier;

Whereas, on December 18, 2019, in an annual resolution, the United Nations General Assembly condemned ''the long-standing and ongoing systematic, widespread and gross violations of human rights in and by'' North Korea; and

Whereas, on December 20, 2019, the Otto Warmbier North Korea Nuclear Sanctions and Enforcement Act of 2019 (title LXXI of Public Law 116–92), was enacted: Now, therefore, be it

Resolved, That, in recognition of the 3rd anniversary of Otto Warmbier's passing on June 19, 2020, the Senate—

(1) remembers and celebrates the life of Otto Frederick Warmbier, a young man with great potential;

(2) condemns the Government of the Democratic People's Republic of Korea, which is responsible for the unjustified arrest, mistreatment, and death of Otto Warmbier;

(3) calls for the United States Government to continue to use its voice and vote in the United Nations to condemn systematic human rights violations in North Korea; and

(4) calls for the sanctions enacted in the Otto Warmbier North Korea Nuclear Sanctions and Enforcement Act of 2019 (title LXXI of Public Law 116–92) to remain fully implemented until such time that the Government of the Democratic People's Republic of Korea commits to the verifiable suspension of its proliferation and testing of weapons of mass destruction, and has agreed to multilateral talks, including the United States Government, with the goal of permanently and verifiably limiting North Korea's weapons of mass destruction and ballistic missile programs.

SENATE RESOLUTION 624—EXPRESSING THE SENSE OF THE SENATE THAT THE ACTIVITIES OF RUSSIAN NATIONAL YEVGENIY PRIGOZHIN AND HIS AFFILIATED ENTITIES POSE A THREAT TO THE NATIONAL INTEREST AND NATIONAL SECURITY OF THE UNITED STATES

Mr. COONS (for himself and Mr. RUBIO) submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 624

Whereas Yevgeniy Prigozhin is a Russian national who has maintained close personal ties with Russian Federation President Vladimir Putin since the early 2000s;

Whereas Yevgeniy Prigozhin is the presumed financier of the Wagner Group, also known as the Private Military Company (PMC) Wagner, a Russian mercenary organization staffed by current and former military and intelligence officers, and is the financier of the Internet Research Agency and other organizations engaged in online influence operations;

Whereas entities such as Wagner have been linked to the Government of the Russian Federation and are used to conduct military action, subversive operations, and disinformation campaigns on the Government's behalf while giving it an appearance of plausible deniability;

Whereas the Wagner Group was involved in the Russian Federation's military takeover and illegal annexation of Ukraine's Crimea region in February and March 2014, and in the subsequent insurgencies in the eastern Ukrainian regions of Donetsk and Luhansk;

Whereas the Wagner Group has been providing military support to the regime of Bashar al-Assad in Syria since 2015, fighting alongside its forces and helping it recapture significant parts of the country;

Whereas, on February 7, 2018, the Wagner Group led an armed assault on United States troops near the city of Deir al-Zour in eastern Syria, prompting a United States counterattack, in what the Washington Post has described as ''the deadliest United States-Russia clash since the Cold War'';

Whereas the Wagner Group has supported Khalifa Haftar and his ''Libyan National Army'' by providing mercenaries, artillery, tanks, drones, and ammunition in violation of a United Nations arms embargo, with Yevgeniy Prigozhin personally attending a meeting between Haftar and Russian Defense Minister Sergei Shoigu in Moscow on November 7, 2018;

Whereas a United Nations report made public on May 6, 2020, concluded that the Wagner Group has operated up to 1,200 military contractors in Libya, including snipers and specialized military teams, serving ''as an effective force multiplier'' for Haftar's army;

Whereas Yevgeniy Prigozhin and his affiliated entities have been tied to influence operations on behalf of the Government of the Russian Federation in Africa, with entities associated with Prigozhin reportedly operating in at least 20 countries, including the Central African Republic, Madagascar, Mozambique, and Sudan;

Whereas about 235 Russian military and private security personnel have deployed to the Central African Republic since 2017, some of whom are reportedly employed by the Wagner Group, and some of whom provide personal security for President Faustin-Archange Touadéra;

Whereas Russian national Valery Zakharov, who is reportedly a former intelligence official, has served as a top national security advisor to Central African Republic President Faustin-Archange Touadéra since at least 2018;

Whereas, in July 2018, Russian journalists Orkhan Dzhemal, Kirill Radchenko, and Alexander Rastorguyev were murdered in the Central African Republic while working on a documentary about the activities of the Wagner Group in that country;

Whereas neither the Government of the Central African Republic nor the Government of the Russian Federation are conducting credible and thorough investigations into the murder of these 3 journalists;

Whereas, according to an investigation by the London-based Dossier Center, the journalists had been tracked by officers of the Central African Republic gendarmerie who were in close communication with Russian nationals with ties to Prigozhin, including Alexander Sotov, who in turn was reportedly in contact with Zakharov;

Whereas companies owned by Yevgeniy Prigozhin reportedly had made regular payments to senior Central African Republic officials, including the Police Chief and the Minister of National Security;

Whereas, on December 20, 2016, the Department of the Treasury designated Yevgeniy Prigozhin under Executive Order 13661, ''Blocking Property of Additional Persons Contributing to the Situation in Ukraine,'' ''for having materially assisted, sponsored, or provided financial, material, or technological support for, or goods or services in support of, senior officials of the Russian Federation'';

Whereas, on June 20, 2017, the Department of the Treasury designated the Wagner Group under Executive Order 13660, ''Blocking Property of Certain Persons Contributing to the Situation in Ukraine,'' ''for being responsible for or complicit in, or having engaged in, directly or indirectly, actions or policies that threaten the peace, security, stability, sovereignty, or territorial integrity of Ukraine'';

Whereas, on March 15, 2018, the Department of the Treasury designated Yevgeniy Prigozhin, his affiliated entities, including the Internet Research Agency, and his subordinates under Executive Order 13694, ''Blocking the Property of Certain Persons Engaging in Significant Malicious Cyber-Enabled Activities,'' for being ''involved in interfering with [United States] election processes or institutions'';

Whereas, on February 16, 2018, the Department of Justice announced the indictment of Yevgeniy Prigozhin and his affiliated entities, including the Internet Research Agency, for engaging in ''operations to interfere with the United States political system, including the 2016 United States presidential election'' and conducting ''information warfare'' against the United States;

Whereas, on September 20, 2018, the Department of State added Prigozhin, his affiliated entities, including the Internet Research Agency, and the Wagner Group to the list of persons identified as part of, or operating for or on behalf of, the defense or intelligence sectors of the Government of the Russian Federation under section 231 of the Countering America's Adversaries Through Sanctions Act (22 U.S.C. 9525);

Whereas, on September 30, 2019, under Executive Order 13848, the Department of the Treasury took additional steps to increase pressure on Prigozhin by designating physical assets—3 aircraft and a yacht—and 3 associated front companies of his;

Whereas, on February 15, 2019, Gavin Williamson, then-United Kingdom Defense Secretary, said that the ''clandestine use of proxies, mercenary armies like the infamous and unaccountable Wagner Group, allows the Kremlin to get away with murder while denying the blood on their hands'';

Whereas, on December 13, 2018, John Bolton, then-Assistant to the President for National Security Affairs, affirmed that ''the predatory practices pursued by China and Russia. . . in Africa. . . pose a significant threat to United States national security interests''; and

Whereas General Stephen J. Townsend, Commander of the United States Africa Command, on April 2, 2019, expressed great ''concern'' about the Wagner group, and, on January 30, 2020, noted that private military contractors such as Wagner, are ''leading the fight in Libya against the UN-backed and U.S.-recognized Government of National Accord'': Now, therefore, be it

Resolved, That it is the sense of the Senate that—

(1) the activities of Russian national Yevgeniy Prigozhin, his affiliated entities, and the Wagner Group pose a threat to the national interests and national security of the United States; and

(2) the President, in addition to maintaining sanctions on Yevgeniy Prigozhin, his affiliated entities, and the Wagner Group, should work with Congress to develop and execute a strategy drawing on the multiple instruments of United States national power available to the President, to counter the malign influence and activities of Prigozhin, the entities linked to him, and the Wagner Group.

AUTHORITY FOR COMMITTEES TO MEET

Mr. GARDNER. Mr. President, I have 4 requests for committees to meet during today's session of the Senate. They have the approval of the Majority and Minority leaders.

Pursuant to rule XXVI, paragraph 5(a), of the Standing Rules of the Senate, the following committees are authorized to meet during today's session of the Senate:

COMMITTEE ON BANKING, HOUSING, AND URBAN AFFAIRS

The Committee on Banking, Housing, and Urban Affairs is authorized to meet during the session of the Senate on Tuesday, June 16, 2020, at 10 a.m., to conduct a hearing.

COMMITTEE ON COMMERCE, SCIENCE, AND TRANSPORTATION

The Committee on Commerce, Science, and Transportation is authorized to meet during the session of the Senate on Tuesday, June 16, 2020, at 2:30 p.m., to conduct a hearing on nominations.

COMMITTEE ON ENERGY AND NATURAL RESOURCES

The Committee on Energy and Natural Resources is authorized to meet during the session of the Senate on Tuesday, June 16, 2020, at 10 a.m., to conduct a hearing.

COMMITTEE ON THE JUDICIARY

The Committee on the Judiciary is authorized to meet during the session of the Senate on Tuesday, June 16, 2020, at 2:30 p.m., to conduct a hearing.

RECOGNIZING THE IMPORTANCE OF THE YOUNG SOUTHEAST ASIAN LEADERS INITIATIVE TO THE RELATIONSHIP BETWEEN THE UNITED STATES AND THE MEMBER STATES OF THE ASSOCIATION OF SOUTHEAST ASIAN NATIONS AND TO ADVANCING THE POLICY OF THE UNITED STATES IN THE INDO-PACIFIC REGION

Mr. GARDNER. Madam President, I ask unanimous consent that the Senate proceed to the consideration of Calendar No. 465, S. Res. 392.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The bill clerk read as follows:

A resolution (S. Res. 392) recognizing the importance of the Young Southeast Asian Leaders Initiative to the relationship between the United States and the member states of the Association of Southeast Asian Nations and to advancing the policy of the United States in the Indo-Pacific region.

There being no objection, the Senate proceeded to consider the resolution, which had been reported from the Committee on Foreign Relations, with an amendment to strike all after the resolving clause and insert the part printed in italic, and with an amendment to strike the preamble and insert the part printed in italic, as follows:

Whereas the Young Southeast Asian Leaders Initiative (YSEALI) was created in 2013 to build

a cadre of emerging leaders in member states of the Association of Southeast Asian Nations (ASEAN) with the goal of fostering regional cooperation and partnership with the United States;

Whereas YSEALI is composed of influential young leaders between 18 and 35 years of age from ASEAN countries (Brunei, Burma, Cambodia, Laos, Indonesia, Malaysia, the Philippines, Singapore, Thailand, and Vietnam) and Timor-Leste who are making a difference in their communities, countries, and the region;

Whereas 65 percent of the population of the ASEAN region is under 35 years of age, and these 400,000,000 youth will determine the future of the region for decades to come;

Whereas YSEALI aims to further strengthen the enduring partnership between the United States and ASEAN;

Whereas YSEALI bolsters the ASEAN Socio-Cultural Community pillar that seeks to build a people-centered, people-oriented ASEAN community, as reiterated at the 52nd ASEAN Foreign Ministers' Meeting in Bangkok in July 2019;

Whereas YSEALI encourages its leaders to partner with each other and the United States Government to address common challenges, including economic growth, sustainable development, education, and civic engagement;

Whereas YSEALI academic and professional exchange programs in the United States allow visiting leaders to experience the culture and values of the United States first-hand, while establishing personal and professional ties to experts, institutions, organizations, companies, and local governments in the United States;

Whereas participants in YSEALI exchanges, upon returning to their countries, help promote a positive understanding of the United States;

Whereas YSEALI allows United States experts to visit ASEAN countries to share their expertise and work with YSEALI alumni on projects that advance common goals;

Whereas YSEALI programs in the Indo-Pacific region build the capacity of civil society in the fields of human rights, good governance, anti-corruption and transparency, social entrepreneurship, and media literacy, which are key to the Indo-Pacific efforts of the United States Government;

Whereas YSEALI programming increases the visibility of the United States in the Indo-Pacific region;

Whereas, in seven years, YSEALI has grown into a thriving community of more than 5,000 alumni and more than 140,000 virtual network participants;

Whereas YSEALI alumni are already distinguishing themselves as influential government officials, entrepreneurs, human rights activists, journalists, social entrepreneurs, and educators;

Whereas outstanding YSEALI alumni include two former Malaysian cabinet ministers and a Pulitzer Prize-winning Burmese journalist imprisoned for investigating human rights violations against the Rohingya;

Whereas YSEALI alumni are valuable partners to embassies and agencies of the United States overseas;

Whereas the Asia Reassurance Initiative Act of 2018 (Public Law 115–409; 132 Stat. 5387) (referred to in this preamble as ''ARIA'') emphasized the importance of ASEAN to the United States and supported the elevation of the relationship between the United States and ASEAN to a strategic partnership; and

Whereas ARIA authorized $25,000,000 to be appropriated for each of fiscal years 2019 through 2023 to support Indo-Pacific young leaders initiatives, including YSEALI, the ASEAN Youth Volunteers Program, and other people-to-people exchange programs that focus on building the capacity of democracy, human rights, and good governance activists in the Indo-Pacific region: Now, therefore, be it

Resolved, That the Senate—

(1) celebrates the partnership of the United States with young leaders in Southeast Asia;

(2) recognizes the importance of the Young Southeast Asian Leaders Initiative (YSEALI) to—

(A) advancing the soft power of the United States in Southeast Asia; and

(B) promoting human rights, democracy, and good governance in the Indo-Pacific region;

(3) emphasizes the key role of YSEALI in—

(A) strengthening the relationship of the United States with the member states of the Association of Southeast Asian Nations (ASEAN); and

(B) elevating the profile and standing of the United States as a major partner in the region;

(4) stresses the importance of YSEALI in building leadership capacity among civil society, governments, and private enterprises in ASEAN member states and across Southeast Asia; and

(5) encourages the Department of State to promote the YSEALI program to the maximum extent possible as a valuable tool to advance mutually beneficial cooperation with partners in the Indo-Pacific region.

Mr. GARDNER. Madam President, I ask unanimous consent that the committee-reported substitute amendment to the resolution be agreed to; that the resolution, as amended, be agreed to; that the committee-reported amendment to the preamble be agreed to; that the preamble, as amended, be agreed to; and that the motions to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The committee-reported amendment, in the nature of a substitute, was agreed to.

The resolution (S. Res. 392), as amended, was agreed to.

The committee-reported amendment to the preamble was agreed to.

The preamble, as amended, was agreed to.

The resolution, as amended, with its preamble, as amended, reads as follows:

S. RES. 392

Whereas the Young Southeast Asian Leaders Initiative (YSEALI) was created in 2013 to build a cadre of emerging leaders in member states of the Association of Southeast Asian Nations (ASEAN) with the goal of fostering regional cooperation and partnership with the United States;

Whereas YSEALI is composed of influential young leaders between 18 and 35 years of age from ASEAN countries (Brunei, Burma, Cambodia, Laos, Indonesia, Malaysia, the Philippines, Singapore, Thailand, and Vietnam) and Timor-Leste who are making a difference in their communities, countries, and the region;

Whereas 65 percent of the population of the ASEAN region is under 35 years of age, and these 400,000,000 youth will determine the future of the region for decades to come;

Whereas YSEALI aims to further strengthen the enduring partnership between the United States and ASEAN;

Whereas YSEALI bolsters the ASEAN Socio-Cultural Community pillar that seeks to build a people-centered, people-oriented ASEAN community, as reiterated at the 52nd ASEAN Foreign Ministers' Meeting in Bangkok in July 2019;

Whereas YSEALI encourages its leaders to partner with each other and the United States Government to address common challenges, including economic growth, sustainable development, education, and civic engagement;

Whereas YSEALI academic and professional exchange programs in the United States allow visiting leaders to experience the culture and values of the United States first-hand, while establishing personal and professional ties to experts, institutions, organizations, companies, and local governments in the United States;

Whereas participants in YSEALI exchanges, upon returning to their countries, help promote a positive understanding of the United States;

Whereas YSEALI allows United States experts to visit ASEAN countries to share their expertise and work with YSEALI alumni on projects that advance common goals;

Whereas YSEALI programs in the Indo-Pacific region build the capacity of civil society in the fields of human rights, good governance, anti-corruption and transparency, social entrepreneurship, and media literacy, which are key to the Indo-Pacific efforts of the United States Government;

Whereas YSEALI programming increases the visibility of the United States in the Indo-Pacific region;

Whereas, in seven years, YSEALI has grown into a thriving community of more than 5,000 alumni and more than 140,000 virtual network participants;

Whereas YSEALI alumni are already distinguishing themselves as influential government officials, entrepreneurs, human rights activists, journalists, social entrepreneurs, and educators;

Whereas outstanding YSEALI alumni include two former Malaysian cabinet ministers and a Pulitzer Prize-winning Burmese journalist imprisoned for investigating human rights violations against the Rohingya;

Whereas YSEALI alumni are valuable partners to embassies and agencies of the United States overseas;

Whereas the Asia Reassurance Initiative Act of 2018 (Public Law 115–409; 132 Stat. 5387) (referred to in this preamble as ''ARIA'') emphasized the importance of ASEAN to the United States and supported the elevation of the relationship between the United States and ASEAN to a strategic partnership; and

Whereas ARIA authorized $25,000,000 to be appropriated for each of fiscal years 2019 through 2023 to support Indo-Pacific young leaders initiatives, including YSEALI, the ASEAN Youth Volunteers Program, and other people-to-people exchange programs that focus on building the capacity of democracy, human rights, and good governance activists in the Indo-Pacific region: Now, therefore, be it

Resolved, That the Senate—

(1) celebrates the partnership of the United States with young leaders in Southeast Asia;

(2) recognizes the importance of the Young Southeast Asian Leaders Initiative (YSEALI) to—

(A) advancing the soft power of the United States in Southeast Asia; and

(B) promoting human rights, democracy, and good governance in the Indo-Pacific region;

(3) emphasizes the key role of YSEALI in—

(A) strengthening the relationship of the United States with the member states of the Association of Southeast Asian Nations (ASEAN); and

(B) elevating the profile and standing of the United States as a major partner in the region;

(4) stresses the importance of YSEALI in building leadership capacity among civil society, governments, and private enterprises in ASEAN member states and across Southeast Asia; and

(5) encourages the Department of State to promote the YSEALI program to the maximum extent possible as a valuable tool to advance mutually beneficial cooperation with partners in the Indo-Pacific region.

RECOGNIZING THE 75TH ANNIVERSARY OF THE AMPHIBIOUS LANDING ON THE JAPANESE ISLAND OF IWO JIMA DURING WORLD WAR II AND THE RAISINGS OF THE FLAG OF THE UNITED STATES ON MOUNT SURIBACHI

Mr. GARDNER. Madam President, I ask unanimous consent that the Senate proceed to the consideration of Calendar No. 468, S. Res. 502.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The bill clerk read as follows:

A resolution (S. Res. 502) recognizing the 75th anniversary of the amphibious landing on the Japanese island of Iwo Jima during World War II and the raisings of the flag of the United States on Mount Suribachi.

There being no objection, the Senate proceeded to consider the resolution, which had been reported from the Committee on Foreign Relations.

Mr. GARDNER. Madam President, I ask unanimous consent that the resolution be agreed to; that the preamble be agreed to; and that the motions to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 502) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in the RECORD of February 13, 2020, under ''Submitted Resolutions.'')

SUPPORTING THE ROLE OF THE UNITED STATES IN HELPING SAVE THE LIVES OF CHILDREN AND PROTECTING THE HEALTH OF PEOPLE IN DEVELOPING COUNTRIES WITH VACCINES AND IMMUNIZATION THROUGH GAVI, THE VACCINE ALLIANCE

Mr. GARDNER. I ask unanimous consent that the Senate proceed to the consideration of Calendar No. 469, S. Res. 511.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The bill clerk read as follows:

A resolution (S. Res. 511) supporting the role of the United States in helping save the lives of children and protecting the health of people in developing countries with vaccines and immunization through GAVI, the Vaccine Alliance.

There being no objection, the Senate proceeded to consider the resolution, which had been reported from the Committee on Foreign Relations, with an amendment to strike all after the resolving clause and insert the part printed in italic, and with an amendment to strike the preamble and insert the part printed in italic, as follows:

Whereas access to vaccines and routine immunizations can protect children from deadly but preventable diseases, reduce poverty, and contribute to economic growth by enabling people to live longer, healthier, and more productive lives;

Whereas investments in the development and deployment of vaccines and immunizations can also help enhance global health security by reducing the incidence of deadly and debilitating diseases and containing the spread of infectious diseases before they become pandemic health threats;

Whereas, prior to 2000, resources for and access to vaccines for children in the developing world were declining, immunization rates were stagnant or decreasing, and nearly 10,000,000 children were dying each year before reaching their 5th birthday;

Whereas, prior to 2000, it was common for new life-saving vaccines to take up to 15 years to be introduced in the world's least developed countries;

Whereas, in 2000, the United States Government joined forces with the Bill & Melinda Gates Foundation, the United Nations Children's Fund (UNICEF), the World Health Organization, the World Bank, other donor governments, and representatives of developing countries, faith-based organizations, civil society, and the private sector, including the vaccine industry, to create the Global Alliance for Vaccines and Immunization (now known as GAVI or GAVI, the Vaccine Alliance), a public-private partnership to expand access to new and underused vaccines, reduce the incidence of deadly and debilitating diseases, prevent epidemics, and save lives;

Whereas GAVI has since supported country-led vaccine initiatives in 73 countries, enabled immunizations for more than 760,000,000 of the world's most vulnerable children, helped avert an estimated 13,000,000 deaths, and contributed to a 70-percent reduction in the number of deaths due to vaccine-preventable diseases;

Whereas country ownership and sustainability are at the core of the GAVI model, which requires each eligible country to commit their own domestic resources to vaccination and immunization programs;

Whereas 15 countries have transitioned from GAVI support and are now self-financing their own vaccination and immunization programs, 3 more are expected to transition by the end of 2020, and an additional 10 countries are expected to transition by 2025 (in total, 40 percent of the original set of GAVI-eligible countries);

Whereas GAVI has transformed the market for vaccines by pooling demand from developing countries, securing predictable financing, expanding the global supplier base, enhancing the competitiveness and security of supply chains, and creating efficiencies that are expected to generate an estimated $900,000,000 in savings between 2021 and 2025;

Whereas, in addition to its current portfolio of vaccines, GAVI is working to support the roll-out and scale-up of newly approved vaccines for diphtheria, tetanus and pertussis (DTP) boosters, hepatitis B birth dose, multivalent meningococcal, respiratory syncytia (RSV), routine oral cholera, and rabies;

Whereas GAVI also collaborates with the Global Polio Eradication Initiative to bring polio vaccines into routine immunization programs, strengthen health systems, and implement additional polio protections;

Whereas GAVI has made significant progress in supporting the development and stockpiling of an effective vaccine to combat Ebola;

Whereas GAVI is participating in efforts to test and implement an effective vaccine to prevent malaria, a disease that kills more than 270,000 children a year;

Whereas GAVI is already helping countries maintain life-saving immunization programs in the midst of the ongoing COVID–19 pandemic to prevent multiple outbreaks and further loss of life from vaccine-preventable diseases;

Whereas GAVI also is working to help countries meet the threat of COVID–19 by providing vital resources, training, and supplies to help protect health workers and expand access to diagnostic testing;

Whereas GAVI will play a critical role in helping to rebuild immunization systems so that once the immediate crisis is over, catch-up immunization campaigns can begin and COVID–19 vaccines can be introduced;

Whereas, in April 2020, GAVI joined the Access to COVID–19 Tools Accelerator, a collaboration of global health organizations aimed at accelerating development, production, and equitable access to new COVID–19 technologies, serving as the co-lead of the vaccines work stream within the initiative;

Whereas, on June 4, 2020, the United Kingdom will host an online virtual Global Vaccine Summit, GAVI's third replenishment conference, with an ambitious goal to raise $7,400,000,000 in new donor commitments;

Whereas, with these additional resources, GAVI plans to support the immunization of 300,000,000 children against potentially fatal diseases and save an additional 7,000,000 to 8,000,000 lives between 2021 and 2025; and

Whereas the United States has been a leading supporter of GAVI since its inception, and its continued commitment will be essential to the achievement of the alliance's goals for 2021 through 2025: Now, therefore, be it

Resolved, That the Senate—

(1) commends the work of GAVI and its partners for their efforts to expand access to vaccines and immunizations for the most vulnerable men, women, and children in developing countries;

(2) affirms the continued support of the United States Government for GAVI as an efficient and effective mechanism to advance global health security and save lives by—

(A) reducing the incidence of deadly and debilitating diseases;

(B) leveraging donor, partner country, and private sector investments in health systems capable of sustainably delivering vaccines and immunizations; and

(C) reducing the cost of vaccines while promoting supply chain security and sustainability;

(3) affirms the support of the United States Government for the goal of securing at least $7,400,000,000 in donor commitments for GAVI's third replenishment conference, to be held on June 4, 2020, hosted by the United Kingdom;

(4) urges donor countries and private sector partners to step up the fight against vaccine-preventable deaths and increase their pledges for the third replenishment conference;

(5) urges GAVI partner countries to continue to make and meet ambitious co-financing commitments to sustain progress in ending vaccine-preventable deaths; and

(6) encourages the United States Agency for International Development (USAID) and the Centers for Disease Control and Prevention, in cooperation with GAVI, to continue their work to strengthen public health capacity to introduce and sustain the use of new and underused vaccines in routine immunization programs.

Mr. GARDNER. I ask unanimous consent that the committee-reported substitute amendment to the resolution be agreed to.

The PRESIDING OFFICER. Without objection, it is so ordered.

The committee-reported amendment, in the nature of a substitute, was agreed to.

Mr. GARDNER. I know of no further debate on the resolution, as amended.

The PRESIDING OFFICER. Is there further debate?

Hearing no further debate, the question is on agreeing to the resolution, as amended.

The resolution (S. Res. 511), as amended, was agreed to.

Mr. GARDNER. I ask unanimous consent that the committee-reported amendment to the preamble be agreed to; that the preamble, as amended, be

agreed to; and that the motions to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The committee-reported amendment to the preamble was agreed to.

The preamble, as amended, was agreed to.

The resolution, with its preamble, as amended, was agreed to as follows:

S. RES. 511

Whereas access to vaccines and routine immunizations can protect children from deadly but preventable diseases, reduce poverty, and contribute to economic growth by enabling people to live longer, healthier, and more productive lives;

Whereas investments in the development and deployment of vaccines and immunizations can also help enhance global health security by reducing the incidence of deadly and debilitating diseases and containing the spread of infectious diseases before they become pandemic health threats;

Whereas, prior to 2000, resources for and access to vaccines for children in the developing world were declining, immunization rates were stagnant or decreasing, and nearly 10,000,000 children were dying each year before reaching their 5th birthday;

Whereas, prior to 2000, it was common for new life-saving vaccines to take up to 15 years to be introduced in the world's least developed countries;

Whereas, in 2000, the United States Government joined forces with the Bill & Melinda Gates Foundation, the United Nations Children's Fund (UNICEF), the World Health Organization, the World Bank, other donor governments, and representatives of developing countries, faith-based organizations, civil society, and the private sector, including the vaccine industry, to create the Global Alliance for Vaccines and Immunization (now known as GAVI or GAVI, the Vaccine Alliance), a public-private partnership to expand access to new and underused vaccines, reduce the incidence of deadly and debilitating diseases, prevent epidemics, and save lives;

Whereas GAVI has since supported country-led vaccine initiatives in 73 countries, enabled immunizations for more than 760,000,000 of the world's most vulnerable children, helped avert an estimated 13,000,000 deaths, and contributed to a 70-percent reduction in the number of deaths due to vaccine-preventable diseases;

Whereas country ownership and sustainability are at the core of the GAVI model, which requires each eligible country to commit their own domestic resources to vaccination and immunization programs;

Whereas 15 countries have transitioned from GAVI support and are now self-financing their own vaccination and immunization programs, 3 more are expected to transition by the end of 2020, and an additional 10 countries are expected to transition by 2025 (in total, 40 percent of the original set of GAVI-eligible countries);

Whereas GAVI has transformed the market for vaccines by pooling demand from developing countries, securing predictable financing, expanding the global supplier base, enhancing the competitiveness and security of supply chains, and creating efficiencies that are expected to generate an estimated $900,000,000 in savings between 2021 and 2025;

Whereas, in addition to its current portfolio of vaccines, GAVI is working to support the roll-out and scale-up of newly approved vaccines for diphtheria, tetanus and pertussis (DTP) boosters, hepatitis B birth dose, multivalent meningococcal, respiratory syncytia (RSV), routine oral cholera, and rabies;

Whereas GAVI also collaborates with the Global Polio Eradication Initiative to bring polio vaccines into routine immunization programs, strengthen health systems, and implement additional polio protections;

Whereas GAVI has made significant progress in supporting the development and stockpiling of an effective vaccine to combat Ebola;

Whereas GAVI is participating in efforts to test and implement an effective vaccine to prevent malaria, a disease that kills more than 270,000 children a year;

Whereas GAVI is already helping countries maintain life-saving immunization programs in the midst of the ongoing COVID–19 pandemic to prevent multiple outbreaks and further loss of life from vaccine-preventable diseases;

Whereas GAVI also is working to help countries meet the threat of COVID–19 by providing vital resources, training, and supplies to help protect health workers and expand access to diagnostic testing;

Whereas GAVI will play a critical role in helping to rebuild immunization systems so that once the immediate crisis is over, catch-up immunization campaigns can begin and COVID–19 vaccines can be introduced;

Whereas, in April 2020, GAVI joined the Access to COVID–19 Tools Accelerator, a collaboration of global health organizations aimed at accelerating development, production, and equitable access to new COVID–19 technologies, serving as the co-lead of the vaccines work stream within the initiative;

Whereas, on June 4, 2020, the United Kingdom will host an online virtual Global Vaccine Summit, GAVI's third replenishment conference, with an ambitious goal to raise $7,400,000,000 in new donor commitments;

Whereas, with these additional resources, GAVI plans to support the immunization of 300,000,000 children against potentially fatal diseases and save an additional 7,000,000 to 8,000,000 lives between 2021 and 2025; and

Whereas the United States has been a leading supporter of GAVI since its inception, and its continued commitment will be essential to the achievement of the alliance's goals for 2021 through 2025: Now, therefore, be it

Resolved, That the Senate—

(1) commends the work of GAVI and its partners for their efforts to expand access to vaccines and immunizations for the most vulnerable men, women, and children in developing countries;

(2) affirms the continued support of the United States Government for GAVI as an efficient and effective mechanism to advance global health security and save lives by—

(A) reducing the incidence of deadly and debilitating diseases;

(B) leveraging donor, partner country, and private sector investments in health systems capable of sustainably delivering vaccines and immunizations; and

(C) reducing the cost of vaccines while promoting supply chain security and sustainability;

(3) affirms the support of the United States Government for the goal of securing at least $7,400,000,000 in donor commitments for GAVI's third replenishment conference, to be held on June 4, 2020, hosted by the United Kingdom;

(4) urges donor countries and private sector partners to step up the fight against vaccine-preventable deaths and increase their pledges for the third replenishment conference;

(5) urges GAVI partner countries to continue to make and meet ambitious co-financing commitments to sustain progress in ending vaccine-preventable deaths; and

(6) encourages the United States Agency for International Development (USAID) and the Centers for Disease Control and Prevention, in cooperation with GAVI, to continue their work to strengthen public health capacity to introduce and sustain the use of new and underused vaccines in routine immunization programs.

EXPRESSING THE SENSE OF THE SENATE THAT THE UNITED STATES SHOULD CONTINUE TO SUPPORT THE PEOPLE OF NICARAGUA IN THEIR PEACEFUL EFFORTS TO PROMOTE THE RESTORATION OF DEMOCRACY AND THE DEFENSE OF HUMAN RIGHTS, AND USE THE TOOLS UNDER UNITED STATES LAW TO INCREASE POLITICAL AND ECONOMIC PRESSURE ON THE GOVERNMENT OF DANIEL ORTEGA

Mr. GARDNER. Madam President, I ask unanimous consent that the Senate proceed to the consideration of Calendar No. 471, S. Res. 525.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The bill clerk read as follows:

A resolution (S. Res. 525) expressing the sense of the Senate that the United States should continue to support the people of Nicaragua in their peaceful efforts to promote the restoration of democracy and the defense of human rights, and use the tools under United States law to increase political and economic pressure on the government of Daniel Ortega.

There being no objection, the Senate proceeded to consider the resolution, which had been reported from the Committee on Foreign Relations, with amendments and an amendment to the preamble, as follows:

(The parts of the resolution intended to be stricken are shown in boldface brackets and the parts of the resolution intended to be inserted are shown in italics.

(The part of the preamble intended to be inserted is shown in italic.)

S. RES. 525

Whereas the government of Daniel Ortega has concentrated power and brought about the progressive deterioration of democratic conditions in Nicaragua;

Whereas recent elections in Nicaragua, including the 2016 presidential election, have been marred by irregularities and characterized by significant restrictions on the participation of opposition political parties and the absence of credible international and local electoral observers;

Whereas Nicaraguan security forces, paramilitary, police, and other actors working under the direction of the Ortega regime committed gross violations of human rights and acts of repression, resulting in more than 325 deaths, over 2,000 injuries, and at least 800 arbitrary detentions during the peaceful protests that took place in 2018, according to the Organization of American States;

Whereas a report by the Interdisciplinary Group of Independent Experts, appointed by the Organization of American States Inter-American Commission on Human Rights, determined that the Ortega regime used deliberate, lethal force against protesters and committed acts of torture that meet the international legal standard of crimes against humanity;

Whereas an estimated 82,000 Nicaraguans fled the country between April 2018 and October 2019, according to the United Nations High Commissioner for Refugees;

Whereas the Government and people of Costa Rica have graciously accepted nearly 70,000 Nicaraguans, including enrolling children in public primary schools, allowing access to legal employment, and making efforts to strengthen the capacity of Costa Rica's asylum system;

Whereas the Ortega government failed to comply with its commitment to release all political prisoners, releasing just 392 people, of which 286 were released to house arrest with charges still pending;

Whereas Nicaragua's Civic Alliance for Justice and Democracy alleges that there remain over 150 political prisoners held in Nicaraguan prisons as of November 29, 2019;

Whereas a United States citizen and Navy veteran, 57-year-old Eddy Montes, was shot and killed while in the custody of the Nicaraguan police at La Modelo Prison on May 16, 2019;

Whereas the Government of Nicaragua has failed in its national response to prevent the spread and transmission of COVID–19, including through its refusal to implement COVID–19 precautions or allow widespread testing for local transmission;

Whereas, on May 8, 2020, according to Amnesty International, over a dozen people who remain in detention after being arrested for participating in the 2018 protests have now demonstrated symptoms consistent with COVID–19;

Whereas the government of Daniel Ortega has severely restricted freedom of the press by closing five local television stations, attacking independent radio stations, arbitrarily detaining journalists, and arbitrarily restricting print supplies from entering the country;

Whereas, beginning on November 14, 2019, Nicaraguan police conducted attacks on churches throughout the country, cut water to hunger strikers barricaded inside a church in Masaya, and arrested 13 people attempting to bring them water;

Whereas doctors, lawyers, academics, and other professionals in Nicaragua face persecution and, in some cases torture, based on suspicion of aiding or sympathizing with protestors;

Whereas the Ortega regime has violated the economic and political rights of indigenous communities, Afro-descendent populations, rural campesinos, land rights defenders, and individuals living in the Caribbean Autonomous Regions of Nicaragua;

Whereas, on November 27, 2018, Executive Order 13851 was issued, which blocks the property of certain persons involved in the Nicaraguan crisis, and its application was expanded by the Office of Foreign Asset Control of the Department of the Treasury on September 4, 2019;

Whereas the bipartisan Nicaragua Human Rights and Anticorruption Act of 2018 (Public Law 115–335; commonly referred to as the ''NICA Act'') was signed into law on December 20, 2018, imposing restrictions on lending to the Nicaraguan government by international financial institutions and requiring the President to sanction non-United States persons implicated in egregious human rights abuses and corruption in Nicaragua;

Whereas the NICA Act expresses the support of Congress for a negotiated solution to the Nicaraguan crisis and includes an annual certification to waive sanctions if the Ortega government takes steps to restore democratic governance and uphold human rights;

Whereas, in the absence of such steps, the Department of State and the Department of the Treasury have imposed targeted sanctions on Nicaraguan officials and entities, including First Lady and Vice President Rosario Murillo, Daniel Ortega's sons, Rafael Ortega Murillo and Laureano Ortega Murillo, and Nicaragua's Banco Corporativo (Bancorp);

Whereas, in June 2019, the Government of Canada imposed sanctions on 12 members of the Government of Nicaragua engaged in gross and systemic human rights violations; and

Whereas, in advance of any future election, the Government of Nicaragua urgently needs to undertake electoral reforms, including the appointment of independent new magistrates to the Supreme Electoral Council, the restoration of a 50 percent plus one threshold for the presidential election, the establishment of a second round of voting if the electoral threshold is not reached, the establishment of a detailed electoral calendar, and stronger observation by political parties: Now, therefore, be it

Resolved, That the Senate—

(1) calls on the Government of Nicaragua to immediately release all political prisoners without conditions and cease all acts of violence, repression, and intimidation against dissenting voices in Nicaragua;

(2) urges the Ortega government to respect Nicaraguans' constitutional rights and implement the electoral reforms mentioned above in order to permit the holding of free, fair, and transparent elections;

(3) encourages the United States Government to align United States sanctions with diplomatic efforts to advance electoral reforms that could lead to free, fair, and transparent elections in Nicaragua;

(4) expresses full support for the people of Nicaragua, Nicaraguan independent media, and Nicaraguan civil society organizations that are working for a peaceful return to democratic order in Nicaragua;

(5) supports the efforts of the United States Government to apply pressure on the Ortega government in order *to* hold accountable those actors involved in human rights abuses, acts of significant corruption, and the undermining of democratic institutions in Nicaragua;

(6) urges the international community to hold the Ortega government accountable for human rights abuses and to restrict its access to foreign financing unless or until it allows for free, fair, and transparent elections monitored by credible international and local electoral [observers; and] *observers;*

(7) urges the United States Government to investigate and hold accountable those responsible for the death of Eddy Montes, a United States citizen and Navy veteran, who was shot and killed while in the custody of the Nicaraguan police at La Modelo Prison on May 16, [2019.] *2019; and*

(8) urges the Ortega government to implement measures consistent with public health guidance to limit the spread of coronavirus in Nicaragua.

Mr. GARDNER. I ask unanimous consent that the committee-reported amendments to the resolution be agreed to; that the resolution, as amended, be agreed to; that the preamble, as amended, be agreed to; and that the motions to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The committee-reported amendments were agreed to.

The resolution (S. Res. 525), as amended, was agreed to.

The committee-reported amendment to the preamble was agreed to.

The preamble, as amended, was agreed to.

The resolution, as amended, with its preamble, as amended, reads as follows:

S. RES. 525

Whereas the government of Daniel Ortega has concentrated power and brought about the progressive deterioration of democratic conditions in Nicaragua;

Whereas recent elections in Nicaragua, including the 2016 presidential election, have been marred by irregularities and characterized by significant restrictions on the participation of opposition political parties and the absence of credible international and local electoral observers;

Whereas Nicaraguan security forces, paramilitary, police, and other actors working under the direction of the Ortega regime committed gross violations of human rights and acts of repression, resulting in more than 325 deaths, over 2,000 injuries, and at least 800 arbitrary detentions during the peaceful protests that took place in 2018, according to the Organization of American States;

Whereas a report by the Interdisciplinary Group of Independent Experts, appointed by the Organization of American States Inter-American Commission on Human Rights, determined that the Ortega regime used deliberate, lethal force against protesters and committed acts of torture that meet the international legal standard of crimes against humanity;

Whereas an estimated 82,000 Nicaraguans fled the country between April 2018 and October 2019, according to the United Nations High Commissioner for Refugees;

Whereas the Government and people of Costa Rica have graciously accepted nearly 70,000 Nicaraguans, including enrolling children in public primary schools, allowing access to legal employment, and making efforts to strengthen the capacity of Costa Rica's asylum system;

Whereas the Ortega government failed to comply with its commitment to release all political prisoners, releasing just 392 people, of which 286 were released to house arrest with charges still pending;

Whereas Nicaragua's Civic Alliance for Justice and Democracy alleges that there remain over 150 political prisoners held in Nicaraguan prisons as of November 29, 2019;

Whereas a United States citizen and Navy veteran, 57-year-old Eddy Montes, was shot and killed while in the custody of the Nicaraguan police at La Modelo Prison on May 16, 2019;

Whereas the Government of Nicaragua has failed in its national response to prevent the spread and transmission of COVID–19, including through its refusal to implement COVID–19 precautions or allow widespread testing for local transmission;

Whereas, on May 8, 2020, according to Amnesty International, over a dozen people who remain in detention after being arrested for participating in the 2018 protests have now demonstrated symptoms consistent with COVID–19;

Whereas the government of Daniel Ortega has severely restricted freedom of the press by closing five local television stations, attacking independent radio stations, arbitrarily detaining journalists, and arbitrarily restricting print supplies from entering the country;

Whereas, beginning on November 14, 2019, Nicaraguan police conducted attacks on churches throughout the country, cut water to hunger strikers barricaded inside a church in Masaya, and arrested 13 people attempting to bring them water;

Whereas doctors, lawyers, academics, and other professionals in Nicaragua face persecution and, in some cases torture, based on suspicion of aiding or sympathizing with protestors;

Whereas the Ortega regime has violated the economic and political rights of indigenous communities, Afro-descendent populations, rural campesinos, land rights defenders, and individuals living in the Caribbean Autonomous Regions of Nicaragua;

Whereas, on November 27, 2018, Executive Order 13851 was issued, which blocks the property of certain persons involved in the Nicaraguan crisis, and its application was expanded by the Office of Foreign Asset Control of the Department of the Treasury on September 4, 2019;

Whereas the bipartisan Nicaragua Human Rights and Anticorruption Act of 2018 (Public Law 115–335; commonly referred to as the ''NICA Act'') was signed into law on December 20, 2018, imposing restrictions on lending to the Nicaraguan government by international financial institutions and requiring the President to sanction non-United States persons implicated in egregious human rights abuses and corruption in Nicaragua;

Whereas the NICA Act expresses the support of Congress for a negotiated solution to the Nicaraguan crisis and includes an annual certification to waive sanctions if the Ortega government takes steps to restore democratic governance and uphold human rights;

Whereas, in the absence of such steps, the Department of State and the Department of the Treasury have imposed targeted sanctions on Nicaraguan officials and entities, including First Lady and Vice President Rosario Murillo, Daniel Ortega's sons, Rafael Ortega Murillo and Laureano Ortega Murillo, and Nicaragua's Banco Corporativo (Bancorp);

Whereas, in June 2019, the Government of Canada imposed sanctions on 12 members of the Government of Nicaragua engaged in gross and systemic human rights violations; and

Whereas, in advance of any future election, the Government of Nicaragua urgently needs to undertake electoral reforms, including the appointment of independent new magistrates to the Supreme Electoral Council, the restoration of a 50 percent plus one threshold for the presidential election, the establishment of a second round of voting if the electoral threshold is not reached, the establishment of a detailed electoral calendar, and stronger observation by political parties: Now, therefore, be it

Resolved, That the Senate—

(1) calls on the Government of Nicaragua to immediately release all political prisoners without conditions and cease all acts of violence, repression, and intimidation against dissenting voices in Nicaragua;

(2) urges the Ortega government to respect Nicaraguans' constitutional rights and implement the electoral reforms mentioned above in order to permit the holding of free, fair, and transparent elections;

(3) encourages the United States Government to align United States sanctions with diplomatic efforts to advance electoral reforms that could lead to free, fair, and transparent elections in Nicaragua;

(4) expresses full support for the people of Nicaragua, Nicaraguan independent media, and Nicaraguan civil society organizations that are working for a peaceful return to democratic order in Nicaragua;

(5) supports the efforts of the United States Government to apply pressure on the Ortega government in order to hold accountable those actors involved in human rights abuses, acts of significant corruption, and the undermining of democratic institutions in Nicaragua;

(6) urges the international community to hold the Ortega government accountable for human rights abuses and to restrict its access to foreign financing unless or until it allows for free, fair, and transparent elections monitored by credible international and local electoral observers;

(7) urges the United States Government to investigate and hold accountable those responsible for the death of Eddy Montes, a United States citizen and Navy veteran, who was shot and killed while in the custody of the Nicaraguan police at La Modelo Prison on May 16, 2019; and

(8) urges the Ortega government to implement measures consistent with public health guidance to limit the spread of coronavirus in Nicaragua.

SUPPORTING THE GOALS OF INTERNATIONAL WOMEN'S DAY

Mr. GARDNER. Madam President, I ask unanimous consent that the Senate proceed to the consideration of Calendar No. 472, S. Res. 533.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The bill clerk read as follows:

A resolution (S. Res. 533) supporting the goals of International Women's Day.

The PRESIDING OFFICER. There being no objection, the Senate proceeded to consider the resolution, which had been reported from the Committee on Foreign Relations, with an amendment to strike all after the resolving clause and insert the part printed in italic, and with an amendment to strike the preamble and insert the part printed in italic, as follows:

S. RES. 533

Whereas, as of March 2020, there are approximately 3,764,000,000 women and girls in the world;

Whereas women and girls around the world—

(1) have fundamental human rights;

(2) play a critical role in providing and caring for their families and driving positive change in their communities;

(3) contribute substantially to food security, economic growth, the prevention and resolution of conflict, and the sustainability of peace and stability; and

(4) must have meaningful opportunities to more fully participate in and lead the political, social, and economic lives of their communities;

Whereas the advancement and empowerment of women and girls around the world is a foreign policy priority for the United States and is critical to the achievement of global peace and prosperity;

Whereas 2020 marks the anniversary of significant milestones toward advancing the human rights and equality of women and girls, including—

(1) the 100th anniversary of women's suffrage in the United States; and

(2) the 20th anniversary of the Women, Peace, and Security Agenda, which was established through the unanimous adoption of United Nations Security Council Resolution 1325 in October 2000;

Whereas the National Security Strategy of the United States, published in December 2017—

(1) declares that ''[s]ocieties that empower women to participate fully in civic and economic life are more prosperous and peaceful'';

(2) supports ''efforts to advance women's equality, protect the rights of women and girls, and promote women and youth empowerment programs''; and

(3) recognizes that ''governments that fail to treat women equally do not allow their societies to reach their potential'';

Whereas, on October 6, 2017, the Women, Peace, and Security Act of 2017 (22 U.S.C. 2152j et seq.) was enacted into law, which includes requirements for a government-wide ''Women, Peace, and Security Strategy'' to promote and strengthen the participation of women in peace negotiations and conflict prevention overseas, enhanced training for relevant United States Government personnel, and follow-up evaluations of the effectiveness of the strategy;

Whereas the United States Strategy on Women, Peace, and Security, dated June 2019, recognizes that—

(1) the ''[s]ocial and political marginalization of women strongly correlates with the likelihood that a country will experience conflict'';

(2) there is a ''tremendous amount of untapped potential among the world's women and girls to identify, recommend, and implement effective solutions to conflict'', and there are ''benefits derived from creating opportunities for women and girls to serve as agents of peace via political, economic, and social empowerment''; and

(3) barriers to the meaningful participation of women and girls in conflict prevention and resolution efforts ''include under-representation in political leadership, pervasive violence against women and girls, and persistent inequality in many societies'';

Whereas, according to the United Nations Entity for Gender Equality and the Empowerment of Women (commonly referred to as ''UN Women''), peace negotiations are more likely to end in a peace agreement when women and women's groups play a meaningful role in the negotiation process;

Whereas, according to a study by the International Peace Institute, a peace agreement is 35 percent more likely to last at least 15 years if women participate in the development of the peace agreement;

Whereas there are 83 national action plans relating to the empowerment of women around the world, 11 regional action plans, and at least 9 additional national action plans in development;

Whereas the joint strategy of the Department of State and the United States Agency for International Development (USAID) entitled ''Department of State & USAID Joint Strategy on Countering Violent Extremism'' and dated May 2016—

(1) notes that women can play a critical role in identifying and addressing drivers of violent extremism in their families, communities, and broader society; and

(2) commits to supporting programs that engage women ''as key stakeholders in preventing and countering violent extremism in their communities'';

Whereas, according to the Bureau of International Narcotics and Law Enforcement Affairs of the Department of State, the full and meaningful participation of women in criminal justice professions and security forces vastly enhances the effectiveness of the security forces;

Whereas, despite the contributions of women to society, hundreds of millions of women and girls around the world continue to be denied the right to participate freely in civic and economic life, lack fundamental legal protections, and remain vulnerable to exploitation and abuse;

Whereas, every year, approximately 12,000,000 girls are married before they reach the age of 18, which means that—

(1) nearly 33,000 girls are married every day; or

(2) nearly 23 girls are married every minute;

Whereas, despite global progress, it is predicted that by 2030 more than 150,000,000 more girls will marry before reaching the age of 18, and approximately 2,400,000 girls who are married before reaching the age of 18 are under the age of 15;

Whereas girls living in countries affected by conflict or other humanitarian crises are often the most vulnerable to child marriage, and 9 of the 10 countries with the highest rates of child marriage are considered fragile or extremely fragile;

Whereas, according to the International Labour Organization, 71 percent of the estimated 40,300,000 victims of modern slavery in 2016 were women or girls;

Whereas, according to the United Nation's Children's Fund (commonly referred to as ''UNICEF'')—

(1) approximately ¼ of girls between the ages of 15 and 19 have been victims of some form of physical violence;

(2) approximately 120,000,000 girls worldwide, slightly more than 1 in 10, have experienced forced sexual acts; and

(3) an estimated 1 in 3 women around the world has experienced some form of physical or sexual violence;

Whereas, according to the 2018 report of the United Nations Office on Drugs and Crime entitled ''Global Report on Trafficking in Persons'', from 2003 to 2018, 72 percent of all detected trafficking victims were women or girls;

Whereas, on August 10, 2012, the United States Government launched a strategy entitled ''United States Strategy to Prevent and Respond to Gender-Based Violence Globally'', which is the first interagency strategy that—

(1) addresses gender-based violence around the world;

(2) advances the rights and status of women and girls;

(3) promotes gender equality in United States foreign policy; and

(4) works to bring about a world in which all individuals can pursue their aspirations without the threat of violence;

Whereas, in June 2016, the Department of State released an update to that strategy, underscoring that ''[p]reventing and responding to gender-based violence is a cornerstone of the U.S. Government's commitment to advancing human rights and promoting gender equality and the empowerment of women and girls'';

Whereas, despite the achievements of individual female leaders and evidence that democracy and equality under the law form a mutually reinforcing relationship in which higher levels of equality are strongly correlated with the relative state of peace of a country, a healthier domestic security environment, and lower levels of aggression toward other countries—

(1) women around the world remain vastly underrepresented in—

(A) national and local legislatures and governments; and

(B) other high-level positions; and

(2) according to the Inter-Parliamentary Union, women account for only 25 percent of national parliamentarians and 21 percent of government ministers;

Whereas the ability of women and girls to realize their full potential is critical to the ability of a country to achieve strong and lasting economic growth, self-reliance, and political and social stability;

Whereas the overall level of violence against women is a better predictor of the peacefulness of a country, the compliance of a country with international treaty obligations, and the relations of a country with neighboring countries than indicators measuring the level of democracy, level of wealth, or level of institutionalization of the country;

Whereas, although the United Nations Millennium Project reached the goal of achieving gender parity in primary education in most countries in 2015, more work remains to be done to achieve gender equality in primary and secondary education, and particularly in secondary education worldwide as gender gaps persist and widen, by addressing—

(1) discriminatory practices;

(2) harmful cultural and social norms;

(3) inadequate sanitation facilities, including facilities to manage menstruation;

(4) child, early, and forced marriage;

(5) poverty;

(6) early pregnancy and motherhood;

(7) conflict and insecurity; and

(8) other factors that favor boys or devalue girls' education;

Whereas, according to the United Nations Educational, Scientific and Cultural Organization—

(1) approximately 132,000,000 girls between the ages of 6 and 17 remain out of school;

(2) girls living in countries affected by conflict are 2.5 times more likely to be out of primary school than boys;

(3) girls are twice as likely as boys to never set foot in a classroom; and

(4) up to 30 percent of girls who drop out of school do so because of adolescent pregnancy or child marriage;

Whereas women around the world face a variety of constraints that severely limit their economic participation and productivity and remain underrepresented in the labor force;

Whereas the economic empowerment of women is inextricably linked to a myriad of other human rights that are essential to the ability of women to thrive as economic actors, including—

(1) living lives free of violence and exploitation;

(2) achieving the highest possible standard of health and well-being;

(3) enjoying full legal and human rights, such as access to registration, identification, and citizenship documents, and freedom of movement;

(4) access to formal and informal education;

(5) access to, and equal protection under, land and property rights;

(6) access to fundamental labor rights;

(7) the implementation of policies to address disproportionate care burdens; and

(8) receiving business and management skills and leadership opportunities;

Whereas closing the global gender gap in labor markets could increase worldwide gross domestic product by as much as $28,000,000,000,000 by 2025;

Whereas, pursuant to section 3(b) of the Women's Entrepreneurship and Economic Empowerment Act of 2018 (22 U.S.C. 2151–2(b)), it is the international development cooperation policy of the United States—

(1) to reduce gender disparities with respect to economic, social, political, educational, and cultural resources, as well as wealth, opportunities, and services;

(2) to strive to eliminate gender-based violence and mitigate its harmful effects on individuals and communities, including through efforts to develop standards and capacity to reduce gender-based violence in the workplace and other places where women work;

(3) to support activities that secure private property rights and land tenure for women in developing countries, including—

(A) supporting legal frameworks that give women equal rights to own, register, use, profit from, and inherit land and property;

(B) improving legal literacy to enable women to exercise the rights described in subparagraph (A); and

(C) improving the capacity of law enforcement and community leaders to enforce such rights;

(4) to increase the capability of women and girls to fully exercise their rights, determine their life outcomes, assume leadership roles, and influence decision making in households, communities, and societies; and

(5) to improve the access of women and girls to education, particularly higher education opportunities in business, finance, and management, in order to enhance financial literacy and business development, management, and strategy skills;

Whereas, pursuant to National Security Presidential Memorandum 16, entitled ''Promoting Women's Global Development and Prosperity'', ''It is the policy of the United States to enhance the opportunity for women to meaningfully participate in, contribute to, and benefit from economic opportunities as individuals, workers, consumers, innovators, entrepreneurs, and investors, so that they enjoy the same access, rights, and opportunities as men to participate in, contribute to, control, and benefit from economic activity.'';

Whereas, according to the World Health Organization, global maternal mortality decreased by approximately 44 percent between 1990 and 2015, yet approximately 830 women and girls continue to die from preventable causes relating to pregnancy or childbirth each day, and 99 percent of all maternal deaths occur in developing countries;

Whereas, according to the United Nations, of the 830 women and adolescent girls who die every day from preventable causes relating to pregnancy and childbirth, 507 die each day in countries that are considered fragile because of conflict or disaster, accounting for approximately ⅗ of all maternal deaths worldwide;

Whereas the Office of the United Nations High Commissioner for Refugees reports that women and girls comprise approximately ½ of the 67,200,000 refugees and internally displaced or stateless individuals in the world;

Whereas women and girls in humanitarian emergencies, including those subject to forced displacement, face increased and exacerbated vulnerabilities to—

(1) gender-based violence, including, rape, child marriage, domestic violence, human trafficking, and sexual exploitation and assault;

(2) disruptions in education and livelihood;

(3) lack of access to health services; and

(4) food insecurity and malnutrition;

Whereas malnutrition poses a variety of threats to women and girls specifically, as malnutrition can weaken their immune systems, making them more susceptible to infections, and affects their capacity to survive childbirth, and children born of malnourished women and girls are more likely to have cognitive impairments and higher risk of disease throughout their lives;

Whereas it is imperative—

(1) to alleviate violence and discrimination against women and girls; and

(2) to afford women and girls every opportunity to be full and productive members of their communities; and

Whereas March 8, 2020, is recognized as International Women's Day, a global day—

(1) to celebrate the economic, political, and social achievements of women in the past, present, and future; and

(2) to recognize the obstacles that women face in the struggle for equal rights and opportunities: Now, therefore, be it

Resolved, That the Senate—

(1) supports the goals of International Women's Day;

(2) recognizes that the fundamental human rights of women and girls have intrinsic value that affect the quality of life of women and girls;

(3) recognizes that the empowerment of women and girls is inextricably linked to the potential of a country to generate—

(A) economic growth and self-reliance;

(B) sustainable peace and democracy; and

(C) inclusive security;

(4) recognizes and honors individuals in the United States and around the world, including women human rights defenders, activists, and civil society leaders, who have worked throughout history to ensure that women and girls are guaranteed equality and fundamental human rights;

(5) recognizes the unique cultural, historical, and religious differences throughout the world and urges the United States Government to act with respect and understanding toward legitimate differences when promoting any policies;

(6) reaffirms the commitment—

(A) to end discrimination and violence against women and girls;

(B) to ensure the safety, health, and welfare of women and girls;

(C) to pursue policies that guarantee the fundamental human rights of women and girls worldwide; and

(D) to promote meaningful and significant participation of women in every aspect of society and community, including conflict prevention, protection, peacemaking, and peacebuilding;

(7) supports sustainable, measurable, and global development that seeks to achieve gender equality and the empowerment of women and girls; and

(8) encourages the people of the United States to observe International Women's Day with appropriate programs and activities.

Mr. GARDNER. I ask unanimous consent that the committee-reported substitute amendment to the resolution be agreed to.

The PRESIDING OFFICER. Without objection, it is so ordered.

The committee-reported amendment in the nature of a substitute was agreed to.

Mr. GARDNER. Madam President, I know of no further debate on the resolution, as amended.

The PRESIDING OFFICER. Is there further debate?

Hearing none, the question is on adoption of the resolution, as amended.

The resolution (S. Res. 533), as amended, was agreed to.

Mr. GARDNER. I ask unanimous consent that the committee-reported amendment to the preamble be agreed to; that the preamble, as amended, be agreed to; and that the motions to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The committee-reported amendment to the preamble in the nature of a substitute was agreed to.

The preamble, as amended, was agreed to.

The resolution, as amended, with its preamble, as amended, reads as follows:

S. RES. 533

Whereas, as of March 2020, there are approximately 3,764,000,000 women and girls in the world;

Whereas women and girls around the world—

(1) have fundamental human rights;

(2) play a critical role in providing and caring for their families and driving positive change in their communities;

(3) contribute substantially to food security, economic growth, the prevention and resolution of conflict, and the sustainability of peace and stability; and

(4) must have meaningful opportunities to more fully participate in and lead the political, social, and economic lives of their communities;

Whereas the advancement and empowerment of women and girls around the world is a foreign policy priority for the United States and is critical to the achievement of global peace and prosperity;

Whereas 2020 marks the anniversary of significant milestones toward advancing the human rights and equality of women and girls, including—

(1) the 100th anniversary of women's suffrage in the United States; and

(2) the 20th anniversary of the Women, Peace, and Security Agenda, which was established through the unanimous adoption of United Nations Security Council Resolution 1325 in October 2000;

Whereas the National Security Strategy of the United States, published in December 2017—

(1) declares that ''[s]ocieties that empower women to participate fully in civic and economic life are more prosperous and peaceful'';

(2) supports ''efforts to advance women's equality, protect the rights of women and girls, and promote women and youth empowerment programs''; and

(3) recognizes that ''governments that fail to treat women equally do not allow their societies to reach their potential'';

Whereas, on October 6, 2017, the Women, Peace, and Security Act of 2017 (22 U.S.C. 2152j et seq.) was enacted into law, which includes requirements for a government-wide ''Women, Peace, and Security Strategy'' to promote and strengthen the participation of women in peace negotiations and conflict prevention overseas, enhanced training for relevant United States Government personnel, and follow-up evaluations of the effectiveness of the strategy;

Whereas the United States Strategy on Women, Peace, and Security, dated June 2019, recognizes that—

(1) the ''[s]ocial and political marginalization of women strongly correlates with the likelihood that a country will experience conflict'';

(2) there is a ''tremendous amount of untapped potential among the world's women and girls to identify, recommend, and implement effective solutions to conflict'', and there are ''benefits derived from creating opportunities for women and girls to serve as agents of peace via political, economic, and social empowerment''; and

(3) barriers to the meaningful participation of women and girls in conflict prevention and resolution efforts ''include under-representation in political leadership, pervasive violence against women and girls, and persistent inequality in many societies'';

Whereas, according to the United Nations Entity for Gender Equality and the Empowerment of Women (commonly referred to as ''UN Women''), peace negotiations are more likely to end in a peace agreement when women and women's groups play a meaningful role in the negotiation process;

Whereas, according to a study by the International Peace Institute, a peace agreement is 35 percent more likely to last at least 15 years if women participate in the development of the peace agreement;

Whereas there are 83 national action plans relating to the empowerment of women around the world, 11 regional action plans, and at least 9 additional national action plans in development;

Whereas the joint strategy of the Department of State and the United States Agency for International Development (USAID) entitled ''Department of State & USAID Joint Strategy on Countering Violent Extremism'' and dated May 2016—

(1) notes that women can play a critical role in identifying and addressing drivers of violent extremism in their families, communities, and broader society; and

(2) commits to supporting programs that engage women ''as key stakeholders in preventing and countering violent extremism in their communities'';

Whereas, according to the Bureau of International Narcotics and Law Enforcement Affairs of the Department of State, the full and meaningful participation of women in criminal justice professions and security forces vastly enhances the effectiveness of the security forces;

Whereas, despite the contributions of women to society, hundreds of millions of women and girls around the world continue to be denied the right to participate freely in civic and economic life, lack fundamental legal protections, and remain vulnerable to exploitation and abuse;

Whereas, every year, approximately 12,000,000 girls are married before they reach the age of 18, which means that—

(1) nearly 33,000 girls are married every day; or

(2) nearly 23 girls are married every minute;

Whereas, despite global progress, it is predicted that by 2030 more than 150,000,000 more girls will marry before reaching the age of 18, and approximately 2,400,000 girls who are married before reaching the age of 18 are under the age of 15;

Whereas girls living in countries affected by conflict or other humanitarian crises are often the most vulnerable to child marriage, and 9 of the 10 countries with the highest rates of child marriage are considered fragile or extremely fragile;

Whereas, according to the International Labour Organization, 71 percent of the estimated 40,300,000 victims of modern slavery in 2016 were women or girls;

Whereas, according to the United Nation's Children's Fund (commonly referred to as ''UNICEF'')—

(1) approximately ¼ of girls between the ages of 15 and 19 have been victims of some form of physical violence;

(2) approximately 120,000,000 girls worldwide, slightly more than 1 in 10, have experienced forced sexual acts; and

(3) an estimated 1 in 3 women around the world has experienced some form of physical or sexual violence;

Whereas, according to the 2018 report of the United Nations Office on Drugs and Crime entitled ''Global Report on Trafficking in Persons'', from 2003 to 2018, 72 percent of all detected trafficking victims were women or girls;

Whereas, on August 10, 2012, the United States Government launched a strategy entitled ''United States Strategy to Prevent and Respond to Gender-Based Violence Globally'', which is the first interagency strategy that—

(1) addresses gender-based violence around the world;

(2) advances the rights and status of women and girls;

(3) promotes gender equality in United States foreign policy; and

(4) works to bring about a world in which all individuals can pursue their aspirations without the threat of violence;

Whereas, in June 2016, the Department of State released an update to that strategy, underscoring that ''[p]reventing and responding to gender-based violence is a cornerstone of the U.S. Government's commitment to advancing human rights and promoting gender equality and the empowerment of women and girls'';

Whereas, despite the achievements of individual female leaders and evidence that democracy and equality under the law form a mutually reinforcing relationship in which higher levels of equality are strongly correlated with the relative state of peace of a country, a healthier domestic security environment, and lower levels of aggression toward other countries—

(1) women around the world remain vastly underrepresented in—

(A) national and local legislatures and governments; and

(B) other high-level positions; and

(2) according to the Inter-Parliamentary Union, women account for only 25 percent of national parliamentarians and 21 percent of government ministers;

Whereas the ability of women and girls to realize their full potential is critical to the ability of a country to achieve strong and

lasting economic growth, self-reliance, and political and social stability;

Whereas the overall level of violence against women is a better predictor of the peacefulness of a country, the compliance of a country with international treaty obligations, and the relations of a country with neighboring countries than indicators measuring the level of democracy, level of wealth, or level of institutionalization of the country;

Whereas, although the United Nations Millennium Project reached the goal of achieving gender parity in primary education in most countries in 2015, more work remains to be done to achieve gender equality in primary and secondary education, and particularly in secondary education worldwide as gender gaps persist and widen, by addressing—

(1) discriminatory practices;

(2) harmful cultural and social norms;

(3) inadequate sanitation facilities, including facilities to manage menstruation;

(4) child, early, and forced marriage;

(5) poverty;

(6) early pregnancy and motherhood;

(7) conflict and insecurity; and

(8) other factors that favor boys or devalue girls' education;

Whereas, according to the United Nations Educational, Scientific and Cultural Organization—

(1) approximately 132,000,000 girls between the ages of 6 and 17 remain out of school;

(2) girls living in countries affected by conflict are 2.5 times more likely to be out of primary school than boys;

(3) girls are twice as likely as boys to never set foot in a classroom; and

(4) up to 30 percent of girls who drop out of school do so because of adolescent pregnancy or child marriage;

Whereas women around the world face a variety of constraints that severely limit their economic participation and productivity and remain underrepresented in the labor force;

Whereas the economic empowerment of women is inextricably linked to a myriad of other human rights that are essential to the ability of women to thrive as economic actors, including—

(1) living lives free of violence and exploitation;

(2) achieving the highest possible standard of health and well-being;

(3) enjoying full legal and human rights, such as access to registration, identification, and citizenship documents, and freedom of movement;

(4) access to formal and informal education;

(5) access to, and equal protection under, land and property rights;

(6) access to fundamental labor rights;

(7) the implementation of policies to address disproportionate care burdens; and

(8) receiving business and management skills and leadership opportunities;

Whereas closing the global gender gap in labor markets could increase worldwide gross domestic product by as much as $28,000,000,000,000 by 2025;

Whereas, pursuant to section 3(b) of the Women's Entrepreneurship and Economic Empowerment Act of 2018 (22 U.S.C. 2151–2(b)), it is the international development cooperation policy of the United States—

(1) to reduce gender disparities with respect to economic, social, political, educational, and cultural resources, as well as wealth, opportunities, and services;

(2) to strive to eliminate gender-based violence and mitigate its harmful effects on individuals and communities, including through efforts to develop standards and capacity to reduce gender-based violence in the workplace and other places where women work;

(3) to support activities that secure private property rights and land tenure for women in developing countries, including—

(A) supporting legal frameworks that give women equal rights to own, register, use, profit from, and inherit land and property;

(B) improving legal literacy to enable women to exercise the rights described in subparagraph (A); and

(C) improving the capacity of law enforcement and community leaders to enforce such rights;

(4) to increase the capability of women and girls to fully exercise their rights, determine their life outcomes, assume leadership roles, and influence decision making in households, communities, and societies; and

(5) to improve the access of women and girls to education, particularly higher education opportunities in business, finance, and management, in order to enhance financial literacy and business development, management, and strategy skills;

Whereas, pursuant to National Security Presidential Memorandum 16, entitled ''Promoting Women's Global Development and Prosperity'', ''It is the policy of the United States to enhance the opportunity for women to meaningfully participate in, contribute to, and benefit from economic opportunities as individuals, workers, consumers, innovators, entrepreneurs, and investors, so that they enjoy the same access, rights, and opportunities as men to participate in, contribute to, control, and benefit from economic activity.'';

Whereas, according to the World Health Organization, global maternal mortality decreased by approximately 44 percent between 1990 and 2015, yet approximately 830 women and girls continue to die from preventable causes relating to pregnancy or childbirth each day, and 99 percent of all maternal deaths occur in developing countries;

Whereas, according to the United Nations, of the 830 women and adolescent girls who die every day from preventable causes relating to pregnancy and childbirth, 507 die each day in countries that are considered fragile because of conflict or disaster, accounting for approximately ⅗ of all maternal deaths worldwide;

Whereas the Office of the United Nations High Commissioner for Refugees reports that women and girls comprise approximately ½ of the 67,200,000 refugees and internally displaced or stateless individuals in the world;

Whereas women and girls in humanitarian emergencies, including those subject to forced displacement, face increased and exacerbated vulnerabilities to—

(1) gender-based violence, including, rape, child marriage, domestic violence, human trafficking, and sexual exploitation and assault;

(2) disruptions in education and livelihood;

(3) lack of access to health services; and

(4) food insecurity and malnutrition;

Whereas malnutrition poses a variety of threats to women and girls specifically, as malnutrition can weaken their immune systems, making them more susceptible to infections, and affects their capacity to survive childbirth, and children born of malnourished women and girls are more likely to have cognitive impairments and higher risk of disease throughout their lives;

Whereas it is imperative—

(1) to alleviate violence and discrimination against women and girls; and

(2) to afford women and girls every opportunity to be full and productive members of their communities; and

Whereas March 8, 2020, is recognized as International Women's Day, a global day—

(1) to celebrate the economic, political, and social achievements of women in the past, present, and future; and

(2) to recognize the obstacles that women face in the struggle for equal rights and opportunities: Now, therefore, be it

Resolved, That the Senate—

(1) supports the goals of International Women's Day;

(2) recognizes that the fundamental human rights of women and girls have intrinsic value that affect the quality of life of women and girls;

(3) recognizes that the empowerment of women and girls is inextricably linked to the potential of a country to generate—

(A) economic growth and self-reliance;

(B) sustainable peace and democracy; and

(C) inclusive security;

(4) recognizes and honors individuals in the United States and around the world, including women human rights defenders, activists, and civil society leaders, who have worked throughout history to ensure that women and girls are guaranteed equality and fundamental human rights;

(5) recognizes the unique cultural, historical, and religious differences throughout the world and urges the United States Government to act with respect and understanding toward legitimate differences when promoting any policies;

(6) reaffirms the commitment—

(A) to end discrimination and violence against women and girls;

(B) to ensure the safety, health, and welfare of women and girls;

(C) to pursue policies that guarantee the fundamental human rights of women and girls worldwide; and

(D) to promote meaningful and significant participation of women in every aspect of society and community, including conflict prevention, protection, peacemaking, and peacebuilding;

(7) supports sustainable, measurable, and global development that seeks to achieve gender equality and the empowerment of women and girls; and

(8) encourages the people of the United States to observe International Women's Day with appropriate programs and activities.

COMMEMORATING THE 75TH ANNIVERSARY OF THE LIBERATION OF THE DACHAU CONCENTRATION CAMP DURING WORLD WAR II

Mr. GARDNER. Madam President, I ask unanimous consent that the Senate proceed to the consideration of Calendar No. 473, S. Res. 542.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The bill clerk read as follows:

A resolution (S. Res. 542) commemorating the 75th anniversary of the liberation of the Dachau concentration camp during World War II.

There being no objection, the Senate proceeded to consider the resolution, which had been reported from the Committee on Foreign Relations, with an amendment to strike all after the resolving clause and insert the part printed in italic, and with an amendment to strike the preamble and insert the part printed in italic, as follows:

S. RES. 542

Whereas the Dachau concentration camp, established in March 1933—

(1) was the first concentration camp established by the German National Socialist, or ''Nazi'', government;

(2) served as a model for all subsequent Nazi concentration camps;

(3) was a training center for the notoriously brutal SS concentration camp guards; and

(4) operated continuously until the end of World War II in 1945;

Whereas the Dachau concentration camp housed Germans who were deemed political, racial, or social threats by the Nazi regime, including Communists, Social Democrats, Jews, Roma, members of the clergy, Jehovah's Witnesses, and other religious and cultural minorities;

Whereas, in addition to Germans, prisoners at the Dachau concentration camp included Poles, Hungarians, Austrians, Italians, Lithuanians, Czechs, Slovenes, Belgians, and other foreign nationals from countries occupied or invaded by Germany;

Whereas the Nazis imprisoned more than 200,000 civilians in the Dachau concentration camp and the more than 100 subcamps of the Dachau concentration camp;

Whereas the Nazis murdered tens of thousands of innocent civilians, and allowed countless others to die from disease, starvation, malnutrition, and exhaustion, at the Dachau concentration camp, one of many camps where the Nazis brutally killed millions of people, including 6,000,000 Jews during the Holocaust;

Whereas the Nazis tortured, and conducted medical experiments that led to the death or permanent disabling of, hundreds of civilian prisoners at the Dachau concentration camp, including by—

(1) subjecting the prisoners to pressure extremes;

(2) submersing the prisoners in freezing water;

(3) forcing the prisoners to drink salt water; and

(4) infecting the prisoners with malaria;

Whereas the Nazis subjected civilian prisoners at the Dachau concentration camp to forced labor—

(1) first for the initial construction and expansion of the camp; and

(2) later primarily for armaments production to supply the German military;

Whereas, following the advance of Allied Forces, the Nazi regime began the systematic transfer of prisoners from evacuated concentration camps to the Dachau concentration camp for continued imprisonment, resulting in the deaths of thousands of weakened and malnourished prisoners and leading to the discovery of the infamous ''Dachau death train'', consisting of nearly 40 railroad cars containing the bodies of approximately 2,310 prisoners;

Whereas, in December 1943, Dwight D. Eisenhower was appointed as Supreme Commander of the Allied Expeditionary Forces and led the formal coordination of the Allied Forces, with the mission to liberate Europe;

Whereas the main Dachau concentration camp was liberated on April 29, 1945;

Whereas that liberation was led by—

(1) the 45th Infantry ''Thunderbird'' Division of the Seventh Army of the United States (referred to in this preamble as the ''45th Infantry Division''), under the leadership of Lieutenant Colonel Felix Sparks, member of the Colorado Army National Guard and Commander of the Third Battalion of the 157th Infantry Regiment of the 45th Infantry Division;

(2) the 42nd Infantry ''Rainbow'' Division of the Seventh Army of the United States (referred to in this preamble as the ''42nd Infantry Division''), under the leadership of Brigadier General Henning Linden; and

(3) the 20th Armored Division of the Seventh Army of the United States (referred to in this preamble as the ''20th Armored Division'');

Whereas the 45th Infantry Division—

(1) was composed of National Guard units from Colorado, Oklahoma, Arizona, and New Mexico; and

(2) deployed in June 1943 in support of the Allied Forces during World War II;

Whereas the 42nd Infantry Division—

(1) was composed of personnel from every State of the United States; and

(2) deployed in December 1944 in support of the Allied Forces during World War II;

Whereas the 20th Armored Division—

(1) was activated at Fort Campbell and, until October of 1944, trained soldiers and qualified those soldiers for overseas shipment as replacement soldiers for armored units; and

(2) deployed in February 1945 in support of the Allied Forces during World War II;

Whereas, in the European theater of operation, the 45th Infantry Division suffered—

(1) 1,831 deaths in battle; and

(2) 7,791 battle casualties;

Whereas, in the European theater of operation, the 42nd Infantry Division suffered—

(1) 655 deaths in battle; and

(2) 3,971 battle casualties;

Whereas, in the European theater of operation, the 20th Armored Division suffered—

(1) 59 deaths in battle; and

(2) 186 battle casualties;

Whereas, in 1985, the United States Army Center of Military History and the United States Holocaust Memorial Museum honored the 45th Infantry Division, the 42nd Infantry Division, and the 20th Armored Division with recognition as ''liberating units''; and

Whereas commemoration of the liberation of the Dachau concentration camp will instill in all people of the United States a greater awareness of the unspeakable tragedies of the Holocaust: Now, therefore, be it

Resolved, That the Senate—

(1) commemorates April 29, 2020, as the 75th anniversary of the liberation of the Dachau concentration camp during World War II;

(2) calls on all people of the United States to remember the tens of thousands of innocent victims murdered at the Dachau concentration camp as part of the Holocaust, the 6,000,000 Jews killed throughout the Holocaust, and all of the victims of the Nazi reign of terror; and

(3) recognizes the valorous efforts of the 45th Infantry Division, the 42nd Infantry Division, and the 20th Armored Division of the Seventh Army of the United States in the liberation of the thousands of individuals imprisoned at the Dachau concentration camp.

Mr. GARDNER. Madam President, I ask unanimous consent that the committee-reported substitute amendment to the resolution be agreed to; that the resolution, as amended, be agreed to; that the committee-reported amendment to the preamble be agreed to; that the preamble, as amended, be agreed to; and that the motions to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The committee-reported amendment in the nature of a substitute was agreed to.

The resolution (S. Res. 542), as amended, was agreed to.

The committee-reported amendment to the preamble was agreed to.

The preamble was agreed to.

The resolution, as amended, with its preamble, as amended, reads as follows:

S. RES. 542

Whereas the Dachau concentration camp, established in March 1933—

(1) was the first concentration camp established by the German National Socialist, or ''Nazi'', government;

(2) served as a model for all subsequent Nazi concentration camps;

(3) was a training center for the notoriously brutal SS concentration camp guards; and

(4) operated continuously until the end of World War II in 1945;

Whereas the Dachau concentration camp housed Germans who were deemed political, racial, or social threats by the Nazi regime, including Communists, Social Democrats, Jews, Roma, members of the clergy, Jehovah's Witnesses, and other religious and cultural minorities;

Whereas, in addition to Germans, prisoners at the Dachau concentration camp included Poles, Hungarians, Austrians, Italians, Lithuanians, Czechs, Slovenes, Belgians, and other foreign nationals from countries occupied or invaded by Germany;

Whereas the Nazis imprisoned more than 200,000 civilians in the Dachau concentration camp and the more than 100 subcamps of the Dachau concentration camp;

Whereas the Nazis murdered tens of thousands of innocent civilians, and allowed countless others to die from disease, starvation, malnutrition, and exhaustion, at the Dachau concentration camp, one of many camps where the Nazis brutally killed millions of people, including 6,000,000 Jews during the Holocaust;

Whereas the Nazis tortured, and conducted medical experiments that led to the death or permanent disabling of, hundreds of civilian prisoners at the Dachau concentration camp, including by—

(1) subjecting the prisoners to pressure extremes;

(2) submersing the prisoners in freezing water;

(3) forcing the prisoners to drink salt water; and

(4) infecting the prisoners with malaria;

Whereas the Nazis subjected civilian prisoners at the Dachau concentration camp to forced labor—

(1) first for the initial construction and expansion of the camp; and

(2) later primarily for armaments production to supply the German military;

Whereas, following the advance of Allied Forces, the Nazi regime began the systematic transfer of prisoners from evacuated concentration camps to the Dachau concentration camp for continued imprisonment, resulting in the deaths of thousands of weakened and malnourished prisoners and leading to the discovery of the infamous ''Dachau death train'', consisting of nearly 40 railroad cars containing the bodies of approximately 2,310 prisoners;

Whereas, in December 1943, Dwight D. Eisenhower was appointed as Supreme Commander of the Allied Expeditionary Forces and led the formal coordination of the Allied Forces, with the mission to liberate Europe;

Whereas the main Dachau concentration camp was liberated on April 29, 1945;

Whereas that liberation was led by—

(1) the 45th Infantry ''Thunderbird'' Division of the Seventh Army of the United States (referred to in this preamble as the ''45th Infantry Division''), under the leadership of Lieutenant Colonel Felix Sparks, member of the Colorado Army National Guard and Commander of the Third Battalion of the 157th Infantry Regiment of the 45th Infantry Division;

(2) the 42nd Infantry ''Rainbow'' Division of the Seventh Army of the United States (referred to in this preamble as the ''42nd Infantry Division''), under the leadership of Brigadier General Henning Linden; and

(3) the 20th Armored Division of the Seventh Army of the United States (referred to in this preamble as the ''20th Armored Division'');

Whereas the 45th Infantry Division—

(1) was composed of National Guard units from Colorado, Oklahoma, Arizona, and New Mexico; and

(2) deployed in June 1943 in support of the Allied Forces during World War II;

Whereas the 42nd Infantry Division—

(1) was composed of personnel from every State of the United States; and

(2) deployed in December 1944 in support of the Allied Forces during World War II;

Whereas the 20th Armored Division—

(1) was activated at Fort Campbell and, until October of 1944, trained soldiers and qualified those soldiers for overseas shipment as replacement soldiers for armored units; and

(2) deployed in February 1945 in support of the Allied Forces during World War II;

Whereas, in the European theater of operation, the 45th Infantry Division suffered—

(1) 1,831 deaths in battle; and

(2) 7,791 battle casualties;

Whereas, in the European theater of operation, the 42nd Infantry Division suffered—

(1) 655 deaths in battle; and

(2) 3,971 battle casualties;

Whereas, in the European theater of operation, the 20th Armored Division suffered—

(1) 59 deaths in battle; and

(2) 186 battle casualties;

Whereas, in 1985, the United States Army Center of Military History and the United States Holocaust Memorial Museum honored the 45th Infantry Division, the 42nd Infantry Division, and the 20th Armored Division with recognition as ''liberating units''; and

Whereas commemoration of the liberation of the Dachau concentration camp will instill in all people of the United States a greater awareness of the unspeakable tragedies of the Holocaust: Now, therefore, be it

Resolved, That the Senate—

(1) commemorates April 29, 2020, as the 75th anniversary of the liberation of the Dachau concentration camp during World War II;

(2) calls on all people of the United States to remember the tens of thousands of innocent victims murdered at the Dachau concentration camp as part of the Holocaust, the 6,000,000 Jews killed throughout the Holocaust, and all of the victims of the Nazi reign of terror; and

(3) recognizes the valorous efforts of the 45th Infantry Division, the 42nd Infantry Division, and the 20th Armored Division of the Seventh Army of the United States in the liberation of the thousands of individuals imprisoned at the Dachau concentration camp.

IMPROVING SOCIAL SECURITY'S SERVICE TO VICTIMS OF IDENTITY THEFT ACT

Mr. GARDNER. Madam President, I ask unanimous consent that the Committee on Finance be discharged from further consideration of S. 3731 and the Senate proceed to its immediate consideration.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the bill by title.

The bill clerk read as follows:

A bill (S. 3731) to amend title VII of the Social Security Act to provide for a single point of contact at the Social Security Administration for individuals who are victims of identity theft.

There being no objection, the committee was discharged and the Senate proceeded to consider the bill.

Mr. GARDNER. Madam President, I ask unanimous consent that the bill be considered read a third time and passed and that the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (S. 3731) was ordered to be engrossed for a third reading, was read the third time, and passed as follows:

(The bill will be printed in a future edition of the RECORD.)

ORDERS FOR WEDNESDAY, JUNE 17, 2020

Mr. GARDNER. Madam President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 10 a.m., Wednesday, June 17; further, that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, the time for the two leaders be reserved for their use later in the day, and that morning business be closed; further, that following leader remarks, the Senate resume consideration of Calendar No. 75, H.R. 1957. Finally, I ask unanimous consent that notwithstanding the provisions of rule XXII, the postcloture time with respect to H.R. 1957, as amended, expire at 11:45 a.m. on Wednesday, June 17.

The PRESIDING OFFICER. Without objection, it is so ordered.

ADJOURNMENT UNTIL 10 A.M. TOMORROW

Mr. GARDNER. Madam President, if there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order.

There being no objection, the Senate, at 6:15 p.m., adjourned until Wednesday, June 17, 2020, at 10 a.m.

Daily Digest

Senate

Chamber Action

Routine Proceedings, pages S2981–S3024

Measures Introduced: Seven bills and two resolutions were introduced, as follows: S. 3964–3970, and S. Res. 623–624. **Page S3012**

Measures Passed:

Young Southeast Asian Leaders Initiative: Senate agreed to S. Res. 392, recognizing the importance of the Young Southeast Asian Leaders Initiative to the relationship between the United States and the member states of the Association of Southeast Asian Nations and to advancing the policy of the United States in the Indo-Pacific region, after agreeing to the committee amendment in the nature of a substitute. **Pages S3014–15**

Iwo Jima 75th Anniversary: Senate agreed to S. Res. 502, recognizing the 75th anniversary of the amphibious landing on the Japanese island of Iwo Jima during World War II and the raisings of the flag of the United States on Mount Suribachi. **Page S3016**

Vaccine Alliance: Senate agreed to S. Res. 511, supporting the role of the United States in helping save the lives of children and protecting the health of people in developing countries with vaccines and immunization through GAVI, the Vaccine Alliance, after agreeing to the committee amendment in the nature of a substitute. **Pages S3016–17**

Support of Nicaragua: Senate agreed to S. Res. 525, expressing the sense of the Senate that the United States should continue to support the people of Nicaragua in their peaceful efforts to promote the restoration of democracy and the defense of human rights, and use the tools under United States law to increase political and economic pressure on the government of Daniel Ortega, after agreeing to the committee amendments. **Pages S3017–19**

International Women's Day: Senate agreed to S. Res. 533, supporting the goals of International Women's Day, after agreeing to the committee amendment in the nature of a substitute. **Pages S3019–22**

Liberation of Dachau 75th Anniversary: Senate agreed to S. Res. 542, commemorating the 75th anniversary of the liberation of the Dachau concentration camp during World War II, after agreeing to the committee amendment in the nature of a substitute. **Pages S3022–24**

Improving Social Security's Service to Victims of Identity Theft Act: Committee on Finance was discharged from further consideration of S. 3731, to amend title VII of the Social Security Act to provide for a single point of contact at the Social Security Administration for individuals who are victims of identity theft, and the bill was then passed. **Page S3024**

Measures Considered:

Taxpayer First Act—Agreement: Senate continued consideration of H.R. 1957, to amend the Internal Revenue Code of 1986 to modernize and improve the Internal Revenue Service. **Pages S2982–S3010**

A unanimous-consent agreement was reached providing for further consideration of the bill, post-cloture, at approximately 10 a.m., on Wednesday, June 17, 2020; and that notwithstanding the provisions of Rule XXII, the post-cloture time with respect to the bill expire at 11:45 a.m., on Wednesday, June 17, 2020. **Page S3024**

Executive Communications: **Page S3012**

Additional Cosponsors: **Pages S3012–13**

Statements on Introduced Bills/Resolutions: **Pages S3013–14**

Additional Statements: **Pages S3011–12**

Authorities for Committees to Meet: **Page S3014**

Adjournment: Senate convened at 10 a.m. and adjourned at 6:15 p.m., until 10 a.m. on Wednesday, June 17, 2020. (For Senate's program, see the remarks of the Acting Majority Leader in today's Record on page S3024.)

Committee Meetings

(Committees not listed did not meet)

FCC SPECTRUM AUCTIONS PROGRAM OVERSIGHT

Committee on Appropriations: Subcommittee on Financial Services and General Government concluded an oversight hearing to examine the Federal Communications Commission spectrum auctions program for fiscal year 2021, after receiving testimony from Ajit Pai, Chairman, Federal Communications Commission.

SEMIANNUAL MONETARY POLICY REPORT TO CONGRESS

Committee on Banking, Housing, and Urban Affairs: Committee concluded a hearing to examine the semiannual monetary policy report to Congress, after receiving testimony from Jerome H. Powell, Chair, Board of Governors of the Federal Reserve System.

NOMINATIONS

Committee on Commerce, Science, and Transportation: Committee concluded a hearing to examine the nominations of Joel Szabat, of Maryland, to be Under Secretary of Transportation for Policy, Michael P. O'Rielly, of New York, to be a Member of the Federal Communications Commission, Nancy B. Beck, of New York, to be Chairman of the Consumer Product Safety Commission, and to be a Commissioner of the Consumer Product Safety Commission, and Michael J. Walsh, Jr., of Virginia, to be General Counsel, and Mary A. Toman, of California, to be Under Secretary for Economic Affairs, both of the Department of Commerce, after the nominees testified and answered questions in their own behalf.

COVID–19 IMPACT ON ENERGY INDUSTRY

Committee on Energy and Natural Resources: Committee concluded a hearing to examine the impacts of COVID–19 on the energy industry, after receiving testimony from Stephen Nalley, Deputy Administrator, Energy Information Administration, Department of Energy; David M. Turk, International Energy Agency, Paris, France; Lisa Jacobson, Business Council for Sustainable Energy, and Frank J. Macchiarola, American Petroleum Institute, both of Washington, D.C.; and Jackie Roberts, National Association of State Utility Advocates, Charleston, West Virginia.

POLICE USE OF FORCE AND COMMUNITY RELATIONS

Committee on the Judiciary: Committee concluded a hearing to examine police use of force and community relations, after receiving testimony from Erin Nealy Cox, United States Attorney for the Northern District of Texas, and Bill Woolf, Senior Advisor to the Office of the Assistant Attorney General, Office of Justice Programs, both of the Department of Justice; Mayor Melvin Carter, Saint Paul, Minnesota; Phillip Atiba Goff, Center for Policing Equity, New York, New York; Doug Logan, Jr., Grimke Seminary, Richmond, Virginia; S. Lee Merritt, Merritt Law Firm, Philadelphia, Pennsylvania; Vanita Gupta, The Leadership Conference on Civil and Human Rights, Washington, D.C.; Art Acevedo, Houston Police Department, Houston, Texas, on behalf of the Major Cities Chiefs Association; Patrick Yoes, Fraternal Order of Police, Norco, Louisiana; Cerelyn J. Davis, Durham Police Department, Durham, North Carolina, on behalf of the National Organization of Black Law Enforcement Executives; and Steven R. Casstevens, Buffalo Grove Police Department, Buffalo Grove, Illinois, on behalf of International Association of Chiefs of Police.

House of Representatives

Chamber Action

The House was not in session today. The House is scheduled to meet at 10 a.m. on Thursday, June 18, 2020.

Committee Meetings

RACIAL DISPARITY IN THE MILITARY JUSTICE SYSTEM—HOW TO FIX THE CULTURE

Committee on Armed Services: Subcommittee on Military Personnel held a hearing entitled ''Racial Disparity in the Military Justice System—How to Fix the Culture''. Testimony was heard from Brenda

Farrell, Director, Defense Capabilities and Management Team, Government Accountability Office; Lieutenant General Charles N. Pede, Judge Advocate General, U.S. Army; Vice Admiral John G. Hannink, Judge Advocate General, U.S. Navy; Lieutenant General Jeffrey A. Rockwell, Judge Advocate General, U.S. Air Force; Major General Daniel J. Lecce, Staff Judge Advocate to the Commandant of the Marine Corps, U.S. Marine Corps; and a public witness.

REVIVING OUR ECONOMY: COVID–19'S IMPACT ON THE ENERGY SECTOR

Committee on Energy and Commerce: Subcommittee on Energy held a hearing entitled ''Reviving our Economy: COVID–19's Impact on the Energy Sector''. Testimony was heard from public witness.

CYBERCRIMINALS AND FRAUDSTERS: HOW BAD ACTORS ARE EXPLOITING THE FINANCIAL SYSTEM DURING THE COVID–19 PANDEMIC

Committee on Financial Services: Subcommittee on National Security, International Development, and Monetary Policy held a hearing entitled ''Cybercriminals and Fraudsters: How Bad Actors Are Exploiting the Financial System During the COVID–19 Pandemic''. Testimony was heard from public witnesses.

OBJECTIVES OF U.S. ARMS SALES TO THE GULF: EXAMINING STRATEGIC GOALS, RISKS AND BENEFITS

Committee on Foreign Affairs: Subcommittee on the Middle East, North Africa, and International Terrorism held a hearing entitled ''Objectives of U.S. Arms Sales to the Gulf: Examining Strategic Goals, Risks and Benefits''. Testimony was heard from public witnesses.

BUSINESS AS USUAL? ASSESSING HOW DHS CAN RESUME OPERATIONS SAFELY

Committee on Homeland Security: Subcommittee on Oversight, Management, and Accountability held a hearing entitled ''Business as Usual? Assessing How DHS Can Resume Operations Safely''. Testimony was heard from public witnesses.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR WEDNESDAY, JUNE 17, 2020

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Commerce, Science, and Transportation: to hold hearings to examine the Federal Aviation Administration's oversight of aircraft certification, 10 a.m., SD–G50.

Committee on Environment and Public Works: to hold hearings to examine responding to the challenges facing recycling in the United States, 10 a.m., SD–106.

Committee on Finance: to hold hearings to examine the President's 2020 trade policy agenda, 3 p.m., SD–G50.

Committee on Foreign Relations: to receive a closed briefing on assessing arms control, focusing on new START and beyond, 4:30 p.m., SVC–217.

Committee on Health, Education, Labor, and Pensions: to hold hearings to examine telehealth, focusing on lessons learned from the COVID–19 pandemic, 10 a.m., SD–430.

Committee on the Judiciary: to hold hearings to examine the nominations of John W. Holcomb, to be United States District Judge for the Central District of California, Brett H. Ludwig, to be United States District Judge for the Eastern District of Wisconsin, R. Shireen Matthews, and Todd Wallace Robinson, both to be a United States District Judge for the Southern District of California, and Christy Criswell Wiegand, to be United States District Judge for the Western District of Pennsylvania, 10 a.m., SD–226.

Select Committee on Intelligence: business meeting to consider pending intelligence matters, 1:45 p.m., S–216, Capitol.

House

Committee on Energy and Commerce, Subcommittee on Health, hearing entitled ''Health Care Inequality: Confronting Racial and Ethnic Disparities in COVID–19 and the Health Care System'', 11:30 a.m., Webex.

Committee on Financial Services, Full Committee, hearing entitled ''Monetary Policy and the State of the Economy'', 12 p.m., Webex.

Committee on Foreign Affairs, Subcommittee on Oversight and Investigations, hearing entitled ''Diversity and Diplomacy: Why an Inclusive State Department Would Strengthen U.S. Foreign Policy'', 1 p.m., Webex.

Committee on the Judiciary, Full Committee, markup on H.R. 7120, the ''Justice in Policing Act of 2020'', 10 a.m., CVC–200 and Webex.

Committee on Small Business, Full Committee, hearing entitled ''Paycheck Protection Program: Loan Forgiveness and Other Challenges'', 1 p.m., Webex.

Committee on Transportation and Infrastructure, Full Committee, markup on H.R. 2, the ''INVEST in America Act'', 10 a.m., 2167 Rayburn and Webex.

Committee on Ways and Means, Full Committee, hearing entitled ''The 2020 Trade Policy Agenda'', 10 a.m., 1100 Longworth and Webex.

Next Meeting of the **SENATE**

10 a.m., Wednesday, June 17

Senate Chamber

Program for Wednesday: Senate will continue consideration of H.R. 1957, Taxpayer First Act (the legislative vehicle for the Great American Outdoors Act), post-cloture.

At 11:45 a.m., Senate will vote on passage of H.R. 1957, as amended. Following disposition of the bill, Senate will vote on the motion to invoke cloture on the nomination of Justin Reed Walker, of Kentucky, to be United States Circuit Judge for the District of Columbia Circuit.

Next Meeting of the **HOUSE OF REPRESENTATIVES**

10 a.m., Thursday, June 18

House Chamber

Program for Thursday: House will meet in Pro Forma session at 10 a.m.

Congressional Record

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